



CHAPTER i.

An Act to consolidate with amendments certain of the Local Acts in force within the city of Leeds to make further provision in regard to the various undertakings of the Corporation and to make better provision for the health and local government of the city and for other purposes. A.D. 1905.
[14th April 1905.]

WHEREAS there are in force in the city of Leeds numerous Local Acts which relate to the improvement and local government of the city including the supply of gas water and electricity the construction and working of tramways and other matters :

And whereas many of the provisions of those Acts have been superseded by subsequent legislation and ought to be repealed and it would be of local and public advantage if such of their provisions as it is deemed expedient to retain were consolidated with certain amendments and additions in one Act :

And whereas it is expedient at the same time to extend in various respects the powers of the Corporation relating to matters comprised in those enactments and to other matters of health and local government :

And whereas it is expedient that the powers of the Corporation in regard to the taking and appropriation of water from the rivers Wharfe and Washburn and the discharge of compensation water into those rivers should be altered as provided by this Act :

And whereas the Corporation have acquired by purchase under the provisions of the Electric Supply Order 1891 confirmed by the Electric Lighting Orders Confirmation (No. 12) Act 1891 the electricity undertaking established by virtue of the said Order and such undertaking is now vested in the Corporation and it is

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And whereas it is expedient that the other powers contained in this Act should be conferred on the Corporation :

And whereas the purposes aforesaid cannot be effected without the authority of Parliament :

And whereas an absolute majority of the whole number of the council at a meeting held on the first day of January one thousand nine hundred and four after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Yorkshire Post a local newspaper published and circulating in the city such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the city fund and city rate :

And whereas such resolution was published twice in the said Yorkshire Post and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the second day of March one thousand nine hundred and four being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule of the Borough Funds Act 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.
Preliminary.

Short title
and com-
mencement.

PART I.
PRELIMINARY.

1. This Act may be cited as the Leeds Corporation (Consolidation) Act 1905 and shall save as otherwise in this Act expressed commence and take effect on the first day of June one thousand nine hundred and five which date is hereinafter referred to as "the commencement of this Act."

2. This Act is divided into Parts as follows :—

Part	I.—Preliminary.
Part	II.—Water.
Part	III.—Gas.
Part	IV.—Tramways.
Part	V.—Electricity.
Part	VI.—Markets and fairs. Slaughter-houses.
Part	VII.—Public Buildings.
Part	VIII.—Parks.
Part	IX.—Burial Grounds.
Part	X.—Lands.
Part	XI.—Building Regulations.
Part	XII.—Streets Sewers and Drains.
Part	XIII.—Courts.
Part	XIV.—Dangerous Places.
Part	XV.—Hoardings Advertisements and Sky Signs.
Part	XVI.—Street and other Police Offences.
Part	XVII.—Hackney Carriages.
Part	XVIII.—Marine Store Dealers Brokers &c.
Part	XIX.—Music and Dancing Licences.
Part	XX.—Infectious Diseases.
Part	XXI.—Sanitary Provisions.
Part	XXII.—Nuisances.
Part	XXIII.—Common Lodging-houses.
Part	XXIV.—Smoke Prevention.
Part	XXV.—Rates.
Part	XXVI.—Financial Provisions.
Part	XXVII.—Police.
Part	XXVIII.—Miscellaneous.
Part	XXIX.—Repeal.

3. The limits of this Act shall save as otherwise in this Act expressed or implied be the city. Limits of
Act.

4. The several words and expressions to which by the Acts wholly or partially incorporated with this Act and by the Public Health Acts meanings are assigned shall in this Act have the same respective meanings unless there is something in the subject or context repugnant to such construction and in the Acts wholly or partially incorporated with this Act for the purposes of this Act Interpreta-
tion.

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“the undertakers” or “the company” or “the commissioners” means the Corporation And in this Act unless the subject or context otherwise requires—

“The Corporation” means the lord mayor aldermen and citizens of the city of Leeds ;

“The city” means the city of Leeds ;

“The lord mayor” means the lord mayor of the city ;

“The council” means the council of the city ;

“The town clerk” and “the treasurer” mean respectively the town clerk and the treasurer of the city ;

“The medical officer of health” means the medical officer of health of the city and includes any person duly appointed by the Corporation with the approval of the Local Government Board to act as assistant to the medical officer of health and to perform such of the powers and duties (statutory or otherwise) of the medical officer of health as may with the consent of the medical officer of health be prescribed by the Local Government Board ;

“The city engineer” means the engineer or surveyor of the city and “the surveyor” means any officer for the time being appointed by the Corporation to execute the duties of that office ;

“The city fund” “the city rate” “the consolidated fund” “the consolidated rate” and “the highway rate” mean respectively the city fund the city rate the consolidated fund the consolidated rate and the highway rate of the city ;

“Corporation Acts and Orders” means the Acts of Parliament the parts and sections of Acts of Parliament and the Provisional Orders confirmed by Parliament set out or referred to in the First and Fifteenth Schedules to this Act and this Act ;

“The waterworks undertaking” includes all lands reservoirs properties works buildings stations machinery plant mains apparatus appliances rights powers and privileges for the time being belonging to or held or used or enjoyed by the Corporation for or in relation to waterworks and the diversion collection storage and distribution of water or otherwise for or in relation to or in connection with the supply of water by them ;

- “The gasworks undertaking” includes all lands properties works buildings machinery plant mains apparatus appliances rights powers and privileges for the time being belonging to or held or used or enjoyed by the Corporation for or in relation to gasworks or the manufacture storage or distribution or otherwise for or in relation to or in connection with the supply of gas by them ;
- “Mechanical power” means steam electrical and any other motive power not being animal power ;
- “Engine” includes motor ;
- “The authorised tramways” means the tramways authorised to be constructed by the Corporation at the passing of this Act but the construction of which has not been completed ;
- “The Corporation tramways” means any tramways belonging to demised to or worked by or authorised to be constructed by the Corporation and whether within or beyond the city ;
- “The tramways undertaking” includes the Corporation tramways and also all lands buildings stations machinery appliances apparatus rights powers and privileges for the time being belonging to the Corporation or held or used or enjoyed by them for or in relation to or in connection with the Corporation tramways ;
- “The electricity undertaking” includes all lands properties works buildings stations machinery plant mains apparatus appliances rights powers and privileges for the time being belonging to or held or used or enjoyed by the Corporation for or in relation to or in connection with the supply of electricity by them ;
- “The markets undertaking” includes all lands properties buildings apparatus appliances rights powers and privileges for the time being vested in held used or enjoyed by the Corporation for the purposes of or in connection with markets fairs slaughter-houses or dead-meat markets ;
- “Closet accommodation” means any receptacle for human excreta and the fittings and apparatus connected therewith ;
- “Cattle” includes horses asses mules sheep goats and swine ;
- “Dairy” means any farm farmhouse cowshed milk-store milkshop or other place from which milk is supplied or in which milk is kept for purposes of sale ;
- “Dairyman” means any cowkeeper purveyor of milk or occupier of a dairy ;

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- “Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the city ;
- “Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or reborrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed ;
- “Principal moneys” means any moneys owing or to be owing or borrowed or to be borrowed by the Corporation under any statutory borrowing power (including borrowing powers under this Act) and whether raised or secured upon or by Corporation stock annuity certificate funded debt Corporation bills or promissory notes mortgages bonds Leeds Gas Light Company’s debenture stock Leeds New Gas Company’s debenture stock or otherwise howsoever ;
- “Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond stock debenture debenture stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation ;
- “Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and rates or contributions leviable by or on the precept of the Corporation ;
- “Telegraphic line” has the same meaning as in the Telegraph Act 1878 ;
- “The Smithfield Hall” means the hall and buildings which the Corporation are by this Act authorised to erect on the North Street recreation ground ;

“Park” means any park pleasure-ground place of public use and recreation or open space for the time being belonging to or managed by or under the control of the Corporation and whether within or beyond the city;

“Court” means the whole or any part of any present or future court alley entry passage yard way or place used with or common or appurtenant to two or more dwelling-houses;

“Daily penalty” means a penalty for each day on which any offence is continued by a person after conviction.

5. The Lands Clauses Acts (except the provisions with respect to the purchase and taking of lands otherwise than by agreement);

Incorporation of
general Acts.

The Waterworks Clauses Act 1847 (except the provisions with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and except section 83 relating to accounts) but that Act shall be read and have effect as if the words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” were omitted from section 44;

The Waterworks Clauses Act 1863;

The Gasworks Clauses Act 1847 (with the exception of the provisions with respect to the amount of profit to be received by the undertakers when the gasworks are carried on for their benefit) and the Gasworks Clauses Act 1871 (with the exception of sections 6 7 8 35 and 45 of the Act);

Section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870 Provided that section 19 shall be read and have effect as if the words “but nothing in this Act contained shall authorise any local authority to place and run carriages upon such tramways and to demand and take tolls and charges in respect of the use of such carriages” were omitted from that section Provided further that the power of purchase conferred upon local authorities under the Tramways Act 1870 shall not apply in respect of so much of the Corporation tramways as is laid in the township of Roundhay in the West Riding of the county of York nor to the tramways undertaking of the Horsforth District Council by this Act transferred to the Corporation;

The schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of section 7 thereof);

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The provisions of the Markets and Fairs Clauses Act 1847

“ With respect to the construction of this Act and any Act
“ incorporated therewith ” and “ With respect to the holding
“ of the market or fair and the protection thereof ” (with
the exception of section 12 of the Act) and “ With respect
“ to the weighing of goods and carts ” and “ With respect to
“ stallages rents and tolls to be taken by the undertakers ”
(with the exception of sections 31 and 32 of the Act) and
section 42 of the Act the marginal note whereof is “ Byelaws
“ may be made for all or any of the purposes herein named ”;

The provisions of the Towns Improvement Clauses Act 1847
“ With respect to slaughter-houses ”;

are hereby (save so far as any of their provisions are expressly
excepted or varied by this Act) incorporated with this Act and this
Act for the purposes of such incorporated Acts shall be deemed to be
and shall be the special Act within the meaning of any such Acts.

Appointment
of com-
mittees by
council.

6.—(1) In any case where it may be desirable in the general
interest of the city that a committee appointed under section 22 of
the Municipal Corporations Act 1882 should be authorised to enter
into any contract for the purchase of lands or undertakings or to
take action in any matter or business requiring prompt decision
without the acts of that committee being previously submitted to
the council for their approval the council may notwithstanding the
provisions of that section by resolution defining in each case the
contract matter or business to be so dealt with delegate to that
committee such of their powers and duties in relation to such
contract matter or business as may be particularly specified in
the resolution Provided always that in no case shall there be
delegated to any such committee the power to make any rate or
to borrow any money.

(2) The acts and proceedings of every such committee within
the limits of such delegation shall be deemed the acts and pro-
ceedings of the council and such acts and proceedings shall unless
the council otherwise direct be reported to the council.

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Water.

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WATER.

Water
undertaking
to continue
vested in
Corporation.

7. The waterworks undertaking as it exists at the commence-
ment of this Act shall (subject to the provisions of the Corporation
Acts and Orders) be and continue vested in the Corporation and be
held used and enjoyed by them.

8.—(1) The Corporation may from time to time maintain renew alter and discontinue their waterworks undertaking or any part thereof and may erect lay down provide and maintain additional and other aqueducts mains pipes tanks meters buildings works and apparatus and do all other acts and provide all other things in any way connected with waterworks or with the supply of water in such manner as they from time to time think proper.

Power to maintain waterworks and supply water.

(2) In carrying out the provisions of this Part of this Act the Corporation shall have all the powers of a local authority under section 54 of the Public Health Act 1875 and the provisions of that section shall apply accordingly and for this purpose the water limits shall be deemed to be the district of the Corporation and in exercising the powers of that section the Corporation shall be subject to the restrictions imposed by sections 308 327 328 329 and 332 of the said Act.

9. The Corporation may for the purposes of their waterworks undertaking purchase take and hold (by agreement but not otherwise) in addition to their other powers in that behalf any land and hereditaments not exceeding in the whole two hundred acres which the Corporation may require for the purposes of their waterworks undertaking but the Corporation shall not create or permit a nuisance on any such lands.

Corporation may acquire other lands by agreement for purposes of water undertaking.

10. The Corporation may impound take and divert the waters of the River Washburn and its tributaries above the embankment of the Lindley Wood Reservoir and as and for compensation for the impounding taking and appropriating of the waters so authorised to be impounded taken and appropriated as aforesaid the Corporation shall cause to be discharged from the Lindley Wood Reservoir into the River Washburn and thence over the weir at Washburn Foot into the River Wharfe a quantity of water not being less than two thousand seven hundred and seventy-eight gallons per minute continuously.

Power to take water from Washburn Valley.

11. The Corporation shall maintain and continue at or near to Washburn Foot the existing or other suitable gauge for measuring the said quantity of water and such gauge shall be open to the inspection and examination of the several persons for the time being interested in the water so to flow or be discharged through or over the same.

Gauge at Washburn Foot.]

12. In the event of any difference or disagreement between the Corporation and the parties interested in the water to be

Disputes as to gauge to be referred to arbitration.

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discharged over or through the said gauge and weir with respect to the construction or use of the aforesaid gauge and weir and other apparatus or any parts thereof such difference or disagreement shall from time to time be settled and determined by a hydraulic engineer to be agreed upon by the parties in difference or failing agreement by a hydraulic engineer to be nominated on the application of either party after seven days' notice in writing to the other by the President for the time being of the Institution of Civil Engineers in London.

Penalty in
case of de-
fault.

13. In case the Corporation omit or fail to discharge or cause to flow the said quantity of water by this Act required to flow or be discharged over or through the aforesaid gauge and weir the Corporation shall for every day on which such omission or failure shall occur forfeit and pay to each of the occupiers of mills and works injuriously affected by any such omission or failure who may respectively sue for and recover the same any sum not exceeding the sum of five pounds and shall make compensation to any owner lessee or occupier of lands on the course of the streams along which such several quantities of water ought to have flowed or been discharged who may have been injuriously affected by any such omission or failure for and in respect of all damage sustained by them respectively by reason of such omission or failure.

Restriction
on taking
water below
Lindley
Wood Reser-
voir.

14.—(1) From and after the date of the commencement of this Act any existing powers of the Corporation to take water from the River Washburn at any point below the Lindley Wood Reservoir or to take water at any point from the River Wharfe shall cease but subject to the regular discharge by the Corporation of the compensation water by the section of this Act the marginal note whereof is "Power to take water from Washburn Valley" required to be discharged over the weir at Washburn Foot the Corporation shall be entitled and they are hereby authorised pending and during the execution and completion of the aqueducts and reservoirs authorised by the Leeds Corporation Water Act 1901 and for a period of five years thereafter to abstract water from the River Washburn below the Lindley Wood Reservoir and above the said weir.

(2) From and after the date when the powers of the Corporation of taking water from the River Washburn below Lindley Wood shall cease the Corporation shall maintain the existing gauge or erect and maintain another suitable gauge at the Lindley Wood Reservoir for measuring the quantity of water to be discharged from such reservoir as by this Act required and thereafter the sections

of this Act the marginal notes whereof respectively are "Gauge at Washburn Foot" "Disputes as to gauge to be referred to arbitration" and "Penalty in case of default" shall be read and construed as if the said gauge to be erected at Lindley Wood had been referred to throughout such sections in addition to the gauge at Washburn Foot.

15. Nothing in this Act contained shall prevent Francis Hawksworth Fawkes or other riparian owner from time to time and at all times hereafter from using the water in transitu between the Lindley Wood Reservoir and Washburn Foot as he might have done had this Act not been passed but so nevertheless as not to injure the quality of the water for the purposes of the Corporation.

This Act not to prevent riparian owners from using water of Washburn.

16. For protecting the interests of the Earl of Harewood as riparian owner and other the riparian owners on the River Wharfe below Washburn Foot and for securing the continuous and uninterrupted flow of the quantity of water by this Act stipulated to be discharged into the River Wharfe at or near Washburn Foot the Corporation shall in addition to the other provisions in that behalf of this Act conform to and observe the following provisions:—

For protection of Earl of Harewood and other riparian owners on Wharfe.

- (1) If and whenever the Earl of Harewood or the owner for the time being of Harewood Park shall be of opinion that the gauge to be maintained at Washburn Foot is not maintained or repaired so as accurately to measure the quantity of water flowing through the said gauge into the River Wharfe or that the quantity of water by this Act stipulated to be discharged over the said gauge into the River Wharfe is not actually discharged then it shall be lawful for the said Earl or of the owner for the time being of Harewood Park to appoint some competent civil engineer to be approved if the Corporation shall so require by the President for the time being of the Institution of Civil Engineers in London to view examine and report upon the efficiency and state of repair of any such gauge and the quantity of water actually discharged over the same:
- (2) If at any time the said gauge shall in the opinion of the said engineer as aforesaid be from the state of repair or otherwise insufficient for the purposes required by this Act the Corporation on receiving notice thereof shall remedy the inefficiency at their own expense and on their failure so to do within fourteen days it shall be lawful for the Earl of Harewood or the owner for the

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time being of Harewood Park but subject to the approval of the said engineer as aforesaid to cause such works to be done and performed in connection with the said gauge as shall be necessary for making the same efficient and the expenses incurred in so doing shall be recoverable from the Corporation in a summary manner :

- (3) All the costs attending the employment of any such engineer as aforesaid shall be paid by the Corporation but the total amount of such costs payable by the Corporation in any one year commencing the first of January shall not exceed fifty guineas :
- (4) The provisions of this section shall not be deemed to take away or abridge any of the powers or remedies of the said owners either at law or under this Act for enforcing the discharge of the prescribed quantity of water over the weir at Washburn Foot or the erection construction and maintenance of suitable gauges for measuring such quantity or for obtaining the penalties or compensation payable in case of the omission or failure by the Corporation to discharge or cause to flow the prescribed quantity of water aforesaid :
- (5) Save as herein expressly provided with reference to the impounding and taking of the waters of the River Washburn nothing in this Act shall alter or affect the estates rights or interests of the Right Honourable Henry Ulick Earl of Harewood or be deemed to confer on the Corporation any further powers in respect of his said estate other than such as were in existence immediately before the passing of this Act.

Existing
reservoirs.

17. The Corporation may use for the purposes of the storage therein and the distribution therefrom of water their existing reservoirs known respectively by the names of the Fewston the Swinsty the Lindley Wood the Eccup the Moortown the Bramley the Wortley the Woodhouse Moor and the Harehills Reservoirs.

Right of
fishing in
part of Eccup
Reservoir re-
served to
George Lane
Fox.

18. Whereas certain lands now forming part of the Eccup Reservoir were acquired by the Corporation from one George Lane Fox subject to the reservation of all rights of sporting and amusement thereover Now it is hereby enacted that the heirs and assigns of the said George Lane Fox shall have the right of sporting and amusement over and of fishing in so much of the

said reservoir as is upon and over the said lands but so nevertheless as not to foul the water of the reservoir nor in any way to injure the works of the Corporation.

19. The limits within which the Corporation are and shall be authorised to sell and supply water and to exercise all their rights powers and privileges relating to the supply of water (in this Act referred to as "the water limits") are and shall be the city of Leeds and also the township of Roundhay in the Leeds (Roundhay and Seacroft) Rural District and the townships of Adel-cum-Eccup Alwoodley Arthington Bramhope Denton Esholt Farnley Hawks-worth Lindley Menston Newall-with-Clifton Pool and Timble Little in the Wharfedale Rural District and the townships of Dun Keswick East Keswick Harewood Weardley Weeton Wigton and Wike in the Wetherby Rural District and the urban districts of Burley-in-Wharfedale and Otley all in the West Riding of the county of York.

Limits for
water supply.

20. The Corporation shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house in any street in which any pipe of the Corporation shall be laid or of any person who under the provisions of this Act shall be entitled to demand a supply of water for domestic purposes furnish to such owner or occupier or other person a sufficient supply of water for domestic use at the rates not exceeding those hereinafter specified (that is to say):—

Rates for
domestic
supply.

If there be no watercloset in the dwelling-house or part of the dwelling-house to be supplied with water at the following rates:—

Where the annual value of such dwelling-house does not exceed twenty pounds at a rate per centum per annum not exceeding seven pounds ten shillings:

Where the annual value exceeds twenty pounds but does not exceed forty pounds at a rate per centum per annum not exceeding seven pounds:

Where the annual value exceeds forty pounds but does not exceed sixty pounds at a rate per centum per annum not exceeding six pounds ten shillings:

Where the annual value exceeds sixty pounds but does not exceed eighty pounds at a rate per centum per annum not exceeding six pounds:

Where the annual value exceeds eighty pounds but does not exceed one hundred pounds at a rate per centum per annum not exceeding five pounds ten shillings:

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Where the annual value exceeds one hundred pounds at a rate per centum per annum not exceeding five pounds :

If there be a watercloset or waterclosets in or in connection with such dwelling-house then in addition to the rates above specified the following rates shall be payable (that is to say) :—

For one watercloset any sum not exceeding ten shillings and sixpence per annum :

For each additional watercloset any sum not exceeding five shillings and threepence per annum :

Provided always that it shall not be incumbent on the Corporation to charge all houses under the annual values in the foregoing provisions mentioned with the same amount of percentage but they may charge less amounts so however that the charge to all houses is regulated by the annual values and such annual value shall be taken to be and shall be the gross estimated rental value at which such house shall be assessed to the poor rate. Provided that where the rent is chargeable on the annual value of a part only of any hereditament entered in the valuation list such annual value shall be a fairly apportioned part of the gross estimated rental value ascertained as aforesaid the apportionment in case of dispute to be ascertained by a court of summary jurisdiction :

Provided also that where the Corporation supply any premises situate beyond the city they may in addition to the ordinary charges for the time being made for a like supply within the city charge not more than twenty pounds per centum on the amount of the ordinary charges aforesaid but in no case shall such additional charges be more than ten pounds per centum above the maximum amounts hereinbefore provided for domestic purposes.

As to domestic purposes.

21. In addition to the purposes set out in section 12 of the Waterworks Clauses Act 1863 a supply of water for domestic purposes shall not include a supply of water for washing any carriages.

Rates payable by owners of small houses.

22. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Corporation so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner. Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

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Discount for
prompt pay-
ment.

23. The Corporation may if they think fit make an allowance by way of discount not exceeding the rate of five pounds per centum on all sums of money due to the Corporation for the supply of water from any person who pays the same within such time of the demand thereof as the Corporation think fit to prescribe in that behalf and notice to this effect shall be endorsed on every demand note in respect of such charges. Provided that the Corporation shall make the same allowance to all customers under similar circumstances.

24. The Corporation may supply water for other than domestic purposes on such terms and conditions as the Corporation think fit and may supply water by measure either for domestic or other purposes and may if they think fit enter into agreements with respect to any such supply to any person and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates:

Supply of
water for
other than
domestic
purposes and
by measure.

Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes.

25. It shall be lawful for the Corporation to enter into contracts with the owner of any tenement or hereditament situate in the neighbourhood of any water main or pipe of the Corporation though not within the water limits and also with any local authority or company not within such water limits to take and use the water of the Corporation upon such terms and conditions and for such period as may be agreed upon between them:

Power to
supply water
outside water
limits.

Provided always that the Corporation shall not supply water under any contract if and so long as their doing so would prevent them from giving throughout the water limits a sufficient supply for domestic purposes.

26. Notwithstanding anything in this Act or any Act incorporated therewith it shall not be obligatory on the Corporation to supply water to any premises at a height greater than that to which it will flow by gravitation from the main for the time being supplying those premises nor shall the Corporation be liable to any penalty or to any damages for not supplying water if the want of such supply arises from frost unusual drought or unavoidable cause or accident.

Height of
supply.

27.—(1) The Corporation may if requested by any person supplied or about to be supplied by them with water furnish to

Power to
supply water
fittings and
materials.

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him and repair or alter at his expense but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans water-closets apparatus and receptacles as are required or permitted by their regulations (in this section referred to as "water fittings") and may provide all materials and do all work necessary or proper in that behalf and the reasonable charges of the Corporation in providing such materials and executing such work shall be paid by the person requiring the same.

(2) The provisions of section 14 of the Waterworks Clauses Act 1863 shall extend to authorise the Corporation to let for hire any water fittings to any such person as aforesaid.

Notice to
Corporation
of connecting
or disconnect-
ing meters.

28. Before any person connects or disconnects any meter by means of which any of the water of the Corporation is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Corporation of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Corporation and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Injuring
meters &c.

29. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Corporation or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Corporation shall (without prejudice to any other right or remedy for the protection of the Corporation) be liable to a fine not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained :

And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Corporation or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Corporation the Corporation may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be

necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Corporation by the person so offending and may be recovered by them as water rates are recoverable. The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Corporation when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

30.—(1) The Corporation may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as “water fittings”) to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

Byelaws for preventing waste &c. of water.

(2) Such byelaws shall apply only in the case of premises to which the Corporation are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

(3) In case of failure of any person to observe such byelaws as are for the time being in force the Corporation may if they think fit after twenty-four hours’ notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Corporation as the water rates in respect of the premises are recoverable.

31. The Corporation shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Corporation not bound to supply several houses by one pipe.

32. A notice to the Corporation from a consumer for the discontinuance of the supply of water shall not be of any effect

Notice of discontinuance.

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PART II.
Water.

[Ch. i.] *Leeds Corporation (Consolidation) Act, 1905.* [5 EDW. 7.]

unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the waterworks office of the Corporation.

Power to lay
water pipes
in streets not
dedicated to
public use.

33. The Corporation may on the application of the owner or occupier of any premises abutting on or being erected in any street laid out but not dedicated to public use within the water limits supply such premises with water and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for the furnishing such supply in the same way and to the same extent as if such street had been dedicated to the public use.

Certain lands
not to be
superfluous
lands.

34. Any lands acquired or held by the Corporation under the provisions of the Leeds Corporation Water Act 1901 or of this Act for the purposes of their waterworks undertaking shall not be deemed to be superfluous lands within the meaning of either of the said Acts or of the Lands Clauses Acts respectively.

Position in
relation to
powers of
Leeds Cor-
poration
Water Act
1901.

35. The powers of the Corporation under this Part of this Act shall be deemed to be in addition to and not in derogation of the powers conferred on the Corporation by the Leeds Corporation Water Act 1901 and in sections 29 to 34 (both inclusive) of that Act the expressions "waters" and "waterworks" shall include and be deemed to include any waters and waterworks which the Corporation may for the time being be authorised respectively to take or impound or make and maintain in the Washburn Valley or elsewhere and the expression "drainage areas" in the said sections 29 to 34 shall include and be deemed to include the said Washburn Valley and any other area within which any rivers streams or waters which the Corporation may for the time being be authorised to take or impound shall flow or arise and the expression "waterworks undertaking" shall have and be deemed to have the same meaning as in this Act:

Provided that section 30 (Power to lay down sewers and drains in drainage areas) of the Leeds Corporation Water Act 1901 shall be read and have effect as if the following proviso were added to that section (namely):—

Provided that with respect to the drainage area of the River Washburn and for the purposes of the Waterworks Clauses Act 1847 and this section the said drainage area shall be deemed to be the limits of the special Act and the county council of the West Riding of Yorkshire shall be deemed to be the person having the control or management of all main roads and county bridges

within the said drainage area and twenty-eight clear days shall be substituted for three clear days in regard to the notices to be given to the said county council under section 30 of the said Act of 1847 :

Provided also that section 34 (Byelaws for securing purity of water) of the Leeds Corporation Water Act 1901 shall be read and have effect as if the following subsection were added to that section (namely):—

(6) In addition to the public notice provided for by section 184 of the Public Health Act 1875 the Corporation shall in respect of byelaws intended to operate within the drainage area of the River Washburn give to the county council of the West Riding of the county of York notice of their intention to apply for the confirmation of any such byelaws one month at least before the application to the Local Government Board for such confirmation.

36. All the interest on any principal moneys borrowed by the Corporation and applied by them for the purposes of the waterworks undertaking and all other the costs charges and expenses of and incident thereto on revenue account shall be paid and satisfied out of the city fund and all the rates charges damages penalties and other moneys received by or for the benefit of the Corporation on account of revenue in respect of their waterworks undertaking shall be paid and carried to the credit of that fund and the Corporation shall keep as part of their accounts a separate account as in this Act hereinafter provided.

Expenses and receipts under Part II. of Act.

37. Nothing in or done under this Part of this Act or any byelaw thereunder shall extend to interfere with take away abridge or prejudicially affect any right power authority jurisdiction or privilege of the West Riding of Yorkshire Rivers Board.

Saving of rights of West Riding of Yorkshire Rivers Board.

38. Nothing in this Act or in the said recited Acts or in any Act incorporated therewith respectively contained shall take away lessen prejudice or alter the powers and privileges of the mayor aldermen and citizens of the city of Bradford under the Bradford Waterworks Act 1854 the Bradford Corporation Waterworks Act 1854 the Bradford Corporation Waterworks Act 1858 and the Bradford Waterworks Act 1862 and the Acts incorporated therewith.

Saving of rights of Bradford under certain Acts.

PART III.

PART III. Gas.

GAS.

39. The gasworks undertaking as it exists at the commencement of this Act shall (subject to the provisions of the Corporation Acts and Orders) be and continue vested in the Corporation and be held used and enjoyed by them.

Gasworks undertaking to continue vested in Corporation.

A.D. 1905.

PART III.
Gas.

Power to
maintain gas-
works and
supply gas.

40. The Corporation may hold the lands described in the Second Schedule to this Act and may thereon erect maintain alter improve enlarge extend and renew or discontinue gasworks retorts gasometers receivers drains sewers mains pipes meters lamps lamp-posts burners stopcocks machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas within the limits of this Part of this Act and may make store and supply gas accordingly and may manufacture store sell provide supply and deal in coke tar and all other products or residuum of any materials employed in or resulting from the manufacture of gas.

Corporation
may acquire
other lands
by agree-
ment for pur-
poses of gas
undertaking.

41. The Corporation may for the purposes of their gas undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands described in the Second Schedule to this Act any lands and hereditaments not exceeding in the whole twenty-five acres which the Corporation may require for the purposes of their gasworks undertaking but the Corporation shall not create or permit a nuisance on any such lands and no lands shall be used by the Corporation for the purpose of manufacturing gas or residual products except the lands described in the Second Schedule to this Act.

Power to
deal in fit-
tings &c. and
fittings not
to be subject
to distress.

42.—(1) The Corporation may sell let for hire or otherwise deal in fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Corporation and the persons to or for whom the fittings are sold let fixed up repaired or removed.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the person in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Corporation as the actual owners thereof.

43.—(1) The limits of this Part of this Act (in this Act referred to as “the gas limits”) shall be the city and also the township of Roundhay in the Leeds (Roundhay and Seacroft) Rural District and the townships of Adel-cum-Eccup and Arthington in the Wharfedale Rural District the township of Shadwell in the Wetherby Rural District and that part of the township of Rothwell in the Rothwell Urban District in which mains of the Corporation had been laid on the first day of January one thousand nine hundred and four (and which is shown and distinguished by the pink colour on the plan signed in triplicate by the Right Honourable William Hillier Onslow Earl of Onslow the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred one of such signed plans has been deposited in the Parliament Office of the House of Lords one in the Private Bill Office of the House of Commons and one with the Town Clerk) all in the West Riding of the county of York.

(2) If at any time after the commencement of this Act any rural district within the gas limits shall be constituted an urban district and the urban district council of such district shall give not less than six months’ notice in writing to the Corporation of their desire to purchase that portion of the gasworks undertaking of the Corporation which is contained within such district and shall obtain the consent of the Local Government Board to such purchase and shall apply to Parliament or the Local Government Board for power to purchase such portion of the gasworks undertaking of the Corporation (except the mains and pipes or other apparatus which shall be necessary for supplying with gas any other part of the Corporation’s limits of supply) and to supply gas within such district then it shall not be lawful for the Corporation to oppose such application (except as to the details thereof) and if such powers be granted the Corporation shall sell and such district council shall purchase such portion of the gasworks undertaking of the Corporation (except as aforesaid) within the district of such district council at such price as shall be fixed in default of agreement by arbitration under the provisions of the Lands Clauses Acts and the Corporation shall pay the proceeds of any sale under this section into the redemption fund of the gasworks undertaking Provided always that after the completion of such purchase all obligations on the part of the Corporation to supply gas within such district shall cease and determine.

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PART III.
Gas.

Application
of Gasworks
Clauses Act
1871.

[Ch. i.] *Leeds Corporation (Consolidation) Act, 1905.* [5 Edw. 7.]

44. The Gasworks Clauses Act 1871 as incorporated with this Act shall apply to the gasworks undertaking of the Corporation as if the undertaking were authorised by this Act subject and according to the following provisions (that is to say):—

- (1) With reference to section 11 the prescribed distance shall be fifty feet and the cost of so much of any pipe for the supply of gas to any owner or occupier as may be laid beyond the line of street or road where the main of the Corporation is placed shall be defrayed by such owner or occupier and such owner or occupier shall if required by the Corporation pay in advance the estimated amount of such cost:
- (2) All gas supplied by the Corporation to any consumer of gas shall be supplied at such pressure as to balance a column of water from midnight to sunset not less than six-tenths of an inch and from sunset to midnight not less than eight-tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer:
- (3) The prescribed number of candles shall be not less than fourteen:
- (4) The prescribed burner shall be Sugg's No. 1 London Argand burner having twenty-four holes and having a six inch by one-and-three-quarter inch glass chimney and if at any time the flame rises above the top of the glass a six inch by two inch chimney shall be used and in making tests for illuminating power the gas shall be burned at such rate as to yield the maximum light for which such burner is designed or such other burner as shall for the time being be approved by the Board of Trade:
- (5) With reference to section 16 where the security is by way of a money deposit the Corporation shall pay interest after the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands:
- (6) With reference to section 28 the prescribed place shall be some part of the gasworks of the Corporation or such other place as may be appointed by the Corporation and the prescribed time shall be one month after the commencement of this Act.

45. The price of gas supplied by the Corporation by meter shall not exceed three shillings and sixpence per one thousand cubic feet.

46.—(1) The Corporation may allow rebates to consumers of gas in large quantities on such scale and subject to such conditions and regulations as they may from time to time prescribe but no such rebate shall in any case exceed twenty per centum and a rebate at least equal to that allowed to any consumer shall be allowed to every other consumer of the same or a greater quantity of gas.

(2) The Corporation may also if they think fit make an allowance by way of discount not exceeding the rate of five pounds per centum on all sums of money due to the Corporation for the supply of gas from any person who pays the same within such time of the demand thereof as the Corporation think fit to prescribe in that behalf and notice to this effect shall be endorsed on every demand note in respect of such charges. Provided that the Corporation shall make the same allowance to all customers under similar circumstances.

47. In order to enable the Corporation to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Corporation may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Corporation's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises:
- (2) The Corporation may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the gasworks office of the Corporation:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between

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PART III.
Gas.

[Ch. i.] *Leeds Corporation (Consolidation) Act, 1905. [5 Edw. 7.]*

the main and the consumer's meter shall be placed as near as reasonably practicable to the Corporation's main but within the outside wall of the building :

(5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Corporation and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Corporation Any officer of the Corporation duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Corporation's specification or if the meter is not placed as required by this section the Corporation may refuse to supply gas to the premises until the provisions of this section have been complied with :

(6) Any person to whom the Corporation refuses a supply of gas under the provisions of this section may appeal to a Petty Sessional Court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Corporation's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Power to
refuse supply
to persons in
debt for other
premises.

48. If a person requiring a supply of gas from the Corporation has previously quitted premises at which gas was supplied to him by the Corporation without paying to them all gas or meter rent due from him to the Corporation they may refuse to furnish to him a supply of gas until he pays the same.

Gas con-
sumers to
give notice to
Corporation
before re-
moving.

49. Twenty-four hours' notice in writing shall be given to the Corporation by every gas consumer before he shall quit any premises supplied with gas by meter by the Corporation and in default of such notice the consumer so quitting shall be liable to pay to the Corporation the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Corporation to supply gas to such premises whichever shall first occur and notice of the effect of this enactment shall be endorsed upon every demand note for gas rent payable to the Corporation.

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PART III.
Gas.

50. A notice to the Corporation from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the gasworks office of the Corporation.

Notice to
discontinue
supply of gas.

51. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Corporation.

Period of
error in de-
fective
meters.

52. The Corporation may on the application of the owner or occupier of any premises abutting on or being erected in any street laid out but not dedicated to public use within the gas limits supply such premises with gas and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for the furnishing such supply in the same way and to the same extent as if such street had been dedicated to the public use.

Power to lay
gas pipes in
streets not
dedicated to
public use.

53. The Corporation may contract with any local authority company or persons beyond the Corporation's limits of supply (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or persons supplying gas under Parliamentary powers in that district) for the supply to them respectively of gas in bulk upon such terms and conditions and for such period not exceeding in any case seven years from the making of the contract as shall be agreed upon.

Corporation
may contract
with local
authority &c.
for supply in
bulk.

54. All the interest on any principal moneys borrowed by the Corporation and applied by them for the purposes of the gasworks undertaking and all other the costs charges and expenses of and incidental thereto on revenue account shall be paid and satisfied out of the city fund and all the rates charges damages penalties and other moneys received by or for the benefit of the Corporation on account of revenue in respect of their gasworks undertaking shall be paid and carried to the credit of that fund. And the Corporation shall keep as part of their accounts a separate account as in this Act hereinafter provided.

Expenses and
receipts
under Part
III. of Act.

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PART IV.
Tramways.

PART IV.

TRAMWAYS.

Tramways undertaking to continue vested in Corporation.

55. The tramways undertaking as it exists at the commencement of this Act (including the tramways which are shortly described in the Third Schedule to this Act) shall subject to the provisions of this Act be and continue vested in the Corporation and shall be held used and enjoyed by them.

Power to maintain and work Corporation tramways.

56. The Corporation may make lay down renew work use and maintain the Corporation tramways or any of them together with all proper rails plates sleepers channels junctions turntables turnouts crossings passing places posts poles brackets wires stables carriage houses generating stations engine houses sheds buildings works and conveniences connected therewith or for the purposes thereof Provided that nothing in this Act shall authorise any interference with electric lines and works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section :

Provided also that in making or laying down the authorised tramways the Corporation shall make form and lay down the same in the lines and according to the levels and within the limits of deviation shown on the deposited plans and sections with respect thereto and in all respects in accordance with those plans and sections.

Gauge of Corporation tramways.

57. The Corporation tramways shall be constructed on a gauge of four feet eight and a half inches but carriages or trucks adapted to be run on railways shall not be run thereon.

As to rails of authorised tramways.

58. The rails of the authorised tramways shall be such as the Board of Trade may approve.

Plan of proposed mode of construction.

59. In addition to the requirements of section .26 of the Tramways Act 1870 the Corporation shall before they proceed to open or break up any street or road for the purpose of constructing any of the tramways lay before the Board of Trade a plan showing the proposed mode of constructing such tramways and a statement of the materials intended to be used therein and the Corporation shall not commence the construction of any of the tramways or part of any of the tramways respectively until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement.

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PART IV.
Tramways.

60. No part of the authorised tramways shall be opened for public traffic until it has been inspected and certified to be fit for such traffic by the Board of Trade.

Inspection by
Board of
Trade.

61.—(1) The Corporation shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the Corporation tramways and the substructure upon which the same rest and if the Corporation at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds and to a daily penalty not exceeding five pounds.

Penalty for
not maintain-
ing rails and
roads.

(2) In case it is represented in writing to the Board of Trade by twenty inhabitant ratepayers of the city or in the case of any of the Corporation tramways beyond the city by the road authority of the district in which such part of the Corporation tramways is situate or by twenty inhabitant ratepayers of such district that the Corporation have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or an assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Corporation to such penalty or penalties in respect thereof as is or are by this section imposed.

62. If the Corporation or any other road authority shall after the commencement of this Act alter the level of any street or road along or across which any part of any of the Corporation tramways is laid or is authorised to be laid the Corporation may and shall from time to time alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the street or road as altered.

Tramways to
be kept on
level of sur-
face of road.

63. Where in any street or road in which a double line of Corporation tramway is laid there shall be less width between the outside of the footpath on either side of the street or road and the nearest rail of the tramway than nine feet six inches the Corporation shall if and when required by the Board of Trade construct a crossover or crossovers connecting the one tramway with the other and by means of such crossover or crossovers the

Crossovers to
be constructed
where less
than a certain
width left
between foot-
path and
tramway.

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PART IV.
Tramways.

[Ch. i.] *Leeds Corporation (Consolidation) Act, 1905.* [5 EDW. 7.]

traffic shall when necessary be diverted from one tramway to the other.

Power to
make addi-
tional cross-
overs &c.

64.—(1) The Corporation may subject to the provisions of this Act with the consent of the Board of Trade make maintain alter and remove all such crossovers passing-places sidings junctions and other works in addition to those particularly specified in or authorised by this Act or otherwise as they find necessary or convenient for the efficient working of the Corporation tramways or for facilitating the traffic on the streets or roads in which the same are laid or for providing access to any warehouses stables or carriage-houses depôts engine-houses generating stations or works of the Corporation or for effecting junctions with any tramways.

(2) Notwithstanding anything shown on the deposited plans with respect to the Corporation tramways the Corporation may with the consent of the Board of Trade lay down double lines in lieu of single or interlacing lines or single lines in lieu of double or interlacing lines or interlacing lines in lieu of double or single lines on any of the Corporation tramways and if at any time the street or road in which any Corporation tramway or part thereof is authorised to be laid or is laid has been or shall be altered or widened the Corporation may with the like consent construct such tramway or part thereof or (as the case may be) take up or reconstruct the same in such position as they may think fit.

(3) Provided that in the construction of any such works no rail shall except with the consent of the Board of Trade be so laid that a less space than nine feet six inches shall intervene between it and the outside of the footpath on either side of the street if one-third of the owners or one-third of the occupiers of the houses shops or warehouses abutting on the place where such less space shall intervene shall by writing under their hands addressed and delivered to the Corporation within three weeks after receiving from the Corporation notice in writing of their intention express their objection thereto.

(4) Provided also that the Corporation in exercising the powers of this or the preceding section shall be subject to all conditions and restrictions for the protection of the railway companies in this Act contained and all provisions for such protection shall apply and have effect accordingly.

Temporary
tramways
may be made
when neces-
sary.

65. Where by reason of the execution of any work affecting the surface or soil of any street or road along which any of the Corporation tramways is laid it is in the opinion of the Corporation

necessary or expedient temporarily to remove or discontinue the use of such tramway or any part thereof the Corporation may from time to time construct in the same or any adjacent street or road and maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of a tramway or part of a tramway so removed or discontinued.

66. Any paving metalling or material excavated by the Corporation in the construction of any works under the authority of this part of this Act from any street or road shall absolutely vest in and belong to the Corporation and may be dealt with removed and disposed of by them in such a manner as they may think fit they repaving or making good such street or road.

Application
of road
materials
excavated in
construction
of works.

67. The Corporation may erect construct maintain and use dynamos and other electrical apparatus steam engines and works and buildings for the purpose of working the Corporation tramways and may upon the lands described in the Fourth Schedule to this Act construct stations for generating electrical power and may thereon provide and use dynamos engines and other apparatus and things necessary or proper for the generation of electricity or the working of the Corporation tramways thereby.

Corporation
may use
electrical ap-
paratus and
generate
electricity.

68. The Corporation may for the purposes of their tramways undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands described in the Fourth Schedule to this Act any lands and hereditaments not exceeding in the whole twenty-five acres which the Corporation may require for the purposes of their tramways undertaking but the Corporation shall not create or permit a nuisance on any such lands.

Power to
purchase
lands by
agreement.

69. The carriages used on the Corporation tramways may be moved by animal power or subject to the following provisions by mechanical power (that is to say):—

Provisions as
to motive
power.

(1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade:

(2) The Board of Trade shall make regulations (in this Act referred to as "the Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under this Act of mechanical power on the tramways and for regulating the use of electrical power:

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(3) The Corporation or any company or person using any mechanical power on the Corporation tramways contrary to the provisions of this Act or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof :

(4) The Board of Trade if they are of opinion—

(A) That the Corporation or any company or person have or has made default in complying with the provisions of this Act or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered ; or

(B) That the use of mechanical power as authorised under this Act is a danger to the passengers or the public ;

may by order either direct the Corporation or such company or person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Corporation or such company or person shall comply with every such order In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

Special provisions as to use of electrical power.

70. The following provisions shall apply to the use of electrical power under this Part of this Act unless such power is entirely contained in and carried along with the carriages :—

(1) The Corporation shall employ either insulated returns or uninsulated metallic returns of low resistance :

(2) The Corporation shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :

- (3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :
- (4) The Corporation shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Corporation either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :
- (5) At the expiration of two years from the commencement of this Act the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents Provided that with respect to the Corporation tramways described in Part I. of the Third Schedule to this Act this subsection shall have effect as if the words "at the expiration of two years from the commencement of this Act" had been omitted therefrom :
- (6) If any difference arises between the Corporation and any other party with respect to anything hereinbefore in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator

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to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be :

- (7) The expression "Corporation" in this section shall include lessees licencees and any person owning working or running carriages over any of the Corporation tramways.

For protec-
tion of Post-
master-
General.

71. Notwithstanding anything in this Act contained if any of the works authorised to be executed by any Act or Order relating to the Corporation tramways involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

For protec-
tion of post
office tele-
graph lines.

72. In the event of any of the Corporation tramways being worked by electricity the following provisions shall have effect :—

- (1) The Corporation shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by the Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Corporation as to compliance with this subsection shall be determined by arbitration :
- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Corporation of their electric lines and works or by the working of the undertaking of the Corporation the Corporation shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :
- (3) Before any electric line is laid down or any act or work for working the Corporation tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Corporation or their agents not more than twenty-eight

nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Corporation and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work Any difference which arises between the Postmaster-General and the Corporation as to any requirements so made shall be determined by arbitration :

- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Corporation is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the works of the Corporation or to the working of the undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Corporation enter any of the works of the Corporation for the purpose of inspecting the plant of the Corporation and the working of the same and the Corporation shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Corporation pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Corporation or their agents the Corporation shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Corporation or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of any act or the execution

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of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :

- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Corporation or their agents were a company within the meaning of that Act :
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Corporation by indictment action or otherwise in relation to any of the matters aforesaid :
- (12) In this section the expression "the Corporation" includes their lessees and any person owning working or running carriages on any of the Corporation tramways.

Apparatus
used for
mechanical
power to be
deemed part
of tramway.

73. The provisions of sections 26 to 33 of the Tramways Act 1870 (except so much of section 28 as relates to the repair of the street or road between and on each side of the rails of a tramway) shall apply as if all posts tubes pipes wires and other apparatus used or to be used by the Corporation for the purposes of mechanical power were parts of the tramway.

74. For the purpose of working any of the Corporation tramways by mechanical power the Corporation subject to the provisions of this Act may place construct erect lay down make and maintain on above or below the surface of any street or road posts brackets electric conductors wires apparatus subways tunnels cables tubes and openings Provided however that in the case of any tramways beyond the city other than those constructed or authorised at the commencement of this Act the said works shall be carried out to the reasonable approval of the local authority of the district in which such tramways shall be laid.

75. The Corporation may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for the working of any of the Corporation tramways by mechanical power :

Attachment
of brackets to
buildings.

Provided that—

(1) Where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to a petty sessional court who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid :

(2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1) :

(3) The owner may require the Corporation to temporarily remove the attachments where necessary during any reconstruction or repair of the building.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rack rent shall be deemed to be the owner.

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Byelaws.

76. Subject to the provisions of this Act the Board of Trade may make byelaws with regard to any of the Corporation tramways upon which mechanical power may be used for all or any of the following purposes (that is to say):—

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages :

For regulating the emission of smoke or steam from engines used on the said tramways :

For providing that engines and carriages shall be brought to a stand at the intersection of cross streets or roads and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety :

For regulating the entrance to exit from and accommodation in the carriages used on the said tramways and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages :

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the said tramways by exhibition of the same in conspicuous places on the carriages and elsewhere.

Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this section shall be liable to a penalty not exceeding forty shillings.

Power to
Corporation
to work
tramways.

77. Notwithstanding anything in the Tramways Act 1870 to the contrary the Corporation may place and run carriages on and may work and may demand and take tolls and charges in respect of the Corporation tramways and in respect of the use of such carriages and may provide such stables buildings carriages trucks harness engines machinery apparatus horses steam cable electric and other plant appliances and conveniences as may be requisite or expedient for the convenient working or user of the Corporation tramways by animal or mechanical power but nothing in this section shall empower the Corporation to construct any station for generating electrical power nor to create or permit a nuisance.

Amendment
of Tramways
Act 1870 as
to byelaws by
local autho-
rity.

78. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the Corporation tramways shall not authorise the making of any byelaws sanctioning a

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higher rate of speed than that authorised by the Board of Trade regulations at which engines are to be driven or propelled on the Corporation tramways but byelaws may be made under the provisions of the Tramways Act 1870 for restricting the rate of speed to a lower rate than that so authorised.

79. The regulations authorised by the Tramways Act 1870 to be made by the promoters of any tramway and their lessees may with respect to any of the Corporation tramways or portions of such tramways be made by the Corporation alone. Regulations.

80. The Corporation tramways may be used for the carriage of passengers animals goods minerals articles and things but the Corporation shall not be bound to carry animals goods minerals articles or things other than personal luggage carried by passengers and not exceeding twenty-eight pounds in weight. Corporation may carry animals goods and other things.

81. The Corporation may demand and take for every passenger travelling upon the Corporation tramways or any part or parts thereof including every expense incidental to such conveyance a fare not exceeding one penny per mile or per stage of not less than one mile or not exceeding one halfpenny per stage of not less than one half mile and in computing the said fares the fraction of a mile or of a stage shall respectively be deemed to be a mile or a stage and for the purpose of this provision the Corporation may by resolution divide any of the Corporation tramways into stages of not less distance than one mile each or one half mile each as the case may be. Rates for passengers.

82. It shall not be lawful for the Corporation or their lessees or any company or person working or using the Corporation tramways to take or demand on Sunday or on any bank or public holiday any higher fares or charges than those levied by them on ordinary week-days. Prohibiting raising of fares on Sundays and holidays.

83. Every passenger travelling upon the Corporation tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof all such luggage to be carried by hand and at the responsibility of the passenger and not to occupy any part of a seat nor to be of a form or description to annoy or inconvenience other passengers. Passengers' luggage.

84. The Corporation may run through cars along any of the routes of the Corporation tramways or any specified portion thereof and such cars shall be distinguished from other cars in such As to running through cars and charges for same.

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manner as may be directed by the Corporation and they may demand and take for every passenger by such cars a fare or charge not exceeding the maximum fare allowed by this Act for and in respect of the whole of such route or the whole of the portion thereof traversed by any such car.

Cheap fares
for labouring
classes.

85.—(1) The Corporation at all times after the opening for public traffic of the tramways shall and they are hereby required to run upon the Corporation tramways a proper and sufficient service of carriages for the use of artisans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than eight in the morning or earlier than five in the evening respectively as may be most convenient for such artisans mechanics and daily labourers going to and returning from their work at fares not exceeding one halfpenny for every mile or one penny per stage of not less than two miles and in computing such fare the fraction of a mile or of a stage shall respectively be deemed to be a mile or a stage as the case may be and for the purposes of this provision the Corporation may by resolution divide any of the Corporation tramways into stages of not less distance than two miles each in length and commencing along the tramway so divided into stages at points between any two of which there shall not be a greater distance than one mile On Saturdays the Corporation in lieu of running such carriages after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Corporation to provide such service as may appear to the Board to be reasonable.

(3) The Corporation shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

Rates for
animals
goods &c.

86. The Corporation may demand and take in respect of animals goods minerals articles and things conveyed by them on the Corporation tramways including every expense incidental to the conveyance any rates or charges not exceeding those specified in the Fifth Schedule to this Act subject to the regulations in that behalf therein contained.

Payment of
rates and
charges.

87. The rates and charges by this Act authorised shall be paid to such persons and at such places upon or near to the Corporation

tramways and in such manner and under such regulations as the Corporation or the persons entitled to demand and take such rates and charges may appoint.

88. If at any time after three years from the opening for public traffic of the Corporation tramways or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the Corporation tramways or any portion thereof it is represented in writing to the Board of Trade by twenty inhabitant ratepayers of the city or by the Corporation or in the case of any of the Corporation tramways beyond the city by the local authority of the district in which such tramways are wholly or partly situate or by twenty inhabitant ratepayers of that district that under the circumstances then existing all or any of the fares or other charges demanded and taken in respect of the traffic on the Corporation tramways or on such portion of the Corporation tramways should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if the referee reports that it has been proved to his satisfaction that all or any of the fares or charges should be revised the said Board may subject to the maximum fares and charges authorised by this Act and by order in writing alter modify reduce or increase all or any of the fares or charges to be taken in respect of the Corporation tramways or on any portion thereof and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section.

Periodical
revision of
rates and
charges.

89. The Corporation may by resolution appoint the stations and places from which the carriages used on any of the Corporation tramways shall start or at which they may stop for the purpose of taking up or setting down passengers and may make regulations for fixing the time during which such carriages shall be allowed to remain at any such place and for enforcing order at any such place and no carriage used on any of such tramways shall except for safety and prevention of accidents stop except at such stations starting stopping and other places as aforesaid The term "carriage" in this section shall include any engine used on the Corporation tramways and the terms "driver" and "conductor" shall include the driver and conductor or any person having charge of an engine.

Corporation
may appoint
stopping and
starting
places.

90. The Corporation may if they think fit provide such number of shelters or waiting-rooms in such positions near to the route of the Corporation tramways upon land to be acquired for the

Tramway
waiting-
rooms.

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purpose and of such size description and design as the Corporation shall deem necessary and convenient for the use of persons intending to use the Corporation tramways. Provided that in the case of any such shelter or waiting-room erected beyond the city the size description and design thereof shall be subject to the reasonable approval of the local authority of the district in which it shall be erected.

Application
of Convey-
ance of Mails
Act 1893.

91. The Conveyance of Mails Act 1893 shall extend and apply to the Corporation tramways as if the same had been authorised by an Act of Parliament passed after the first day of January one thousand eight hundred and ninety-three.

Omnibuses
in connection
with tram-
ways.

92. The Corporation may provide maintain work and run omnibuses (whether moved by animal or by mechanical power)—

(A) Within the city in connection with the Corporation tramways when the running of carriages thereon is impracticable or during the construction reconstruction alteration or repair thereof or in extension of any of such tramways and also for testing the amount of traffic along any route or between any particular points:

(B) Beyond the city along the route of any tramways which the Corporation have been or shall be authorised to construct and (1) between the township of Headingley within the city and the township of Adel-cum-Eccup in the Wharfedale Rural District and (2) between Moortown or Roundhay within the city and the township of Shadwell in the Wetherby Rural District:

And the Corporation may demand take and recover fares and charges for the use of such omnibuses. Provided that any omnibuses moved by mechanical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphs of the Postmaster-General.

Lost pro-
perty.

93. Any property found in any tramcar of the Corporation shall forthwith be taken to a place to be appointed for the purpose by the Corporation and if the same be not claimed within six months after the finding thereof it may be sold as unclaimed property and the proceeds thereof paid into the revenue of the tramways undertaking.

Penalty for
malicious
damage.

94. If any person wilfully does or causes to be done with respect to any apparatus used for or in connection with the

working of any of the Corporation tramways anything which is calculated to obstruct or interfere with the working of such Corporation tramways or to cause injury to any person he shall (without prejudice to any proceedings by way of indictment or otherwise to which he may be subject) be guilty of an offence punishable on summary conviction and every person convicted of such offence or of any offence under section 50 of the Tramways Act 1870 with respect to any Corporation tramway shall be liable to a penalty not exceeding twenty pounds.

95. In constructing and maintaining so much of the Corporation tramways as will affect the property or will pass over the bridges hereinafter described and belonging to the several railway companies as hereinafter set out or which such companies (each of whom is hereinafter referred to as "the owning company") are bound to maintain or repair (that is to say):—

For protec-
tion of rail-
way com-
panies.

Situation of Bridge.	Name of Owning Company.
Armley Road - - -	The Midland Railway Company.
Balm Road - - -	The like.
Dewsbury Road - - -	The like.
Meadow Road - - -	The like.
Whingate - - -	The Great Northern Railway Company.
Accommodation Road -	The North Eastern Railway Company.
Whitehall Road - - -	The London and North Western Railway Company.

the Corporation shall be subject to the following conditions:—

- (1) The Corporation shall not in any way except as provided by subsection 2 of this section alter or interfere with the structure of any of the said bridges and except as aforesaid they shall so construct and maintain their tramway passing thereover as not injuriously to affect the structure of any such bridge:
- (2) Before the Corporation execute any work which will interfere with the structure of any of the said bridges or the railway traffic thereunder they shall give fourteen days' notice in writing to the engineer of the owning company of their intention to commence such work and shall at the same time send sufficient specifications or other information showing the nature of the proposed work and such work shall be constructed to the reasonable satisfaction and under the superintendence of the said engineer and so as not in any way to impede or interfere with the traffic of the railway and any

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question in dispute or matter in difference between the Corporation and the owning company shall be settled in manner provided by section 33 of the Tramways Act 1870 :

(3) In the event of any injury being caused to the structure of any of the said bridges by the construction maintenance repairing user or removal of the Corporation tramway the owning company may at the expense of the Corporation restore the structure of such bridge to as good a state and condition as it was in before such injury was occasioned :

(4) Nothing in this Act contained shall interfere with or limit or affect the rights of the Corporation as to the use alteration maintenance or repairs of the street or road over any such bridge or of the approaches thereto for the purposes of the Corporation tramways or otherwise Provided such use alteration maintenance or repairs do not in any way alter or interfere with the structure of any of the said bridges.

For protec-
tion of N.E.
and L. and
N.W. Rail-
way Com-
panies.

96. In connection with or for the purposes of the Corporation tramway passing under the bridge carrying the railways of the North Eastern Railway Company and the London and North Western Railway Company over Neville Street no stays wires or other apparatus shall without the previous consent of the joint companies be attached to such bridge.

Expenses and
receipts
under Part
IV. of Act.

97. All the interest on any principal moneys borrowed by the Corporation and applied by them for the purposes of the tramways undertaking and all other the costs charges and expenses of and incident thereto on revenue account shall be paid and satisfied out of the city fund and all the rates charges damages penalties and other moneys received by or for the benefit of the Corporation on account of revenue in respect of the tramways undertaking shall be paid and carried to the credit of that fund And the Corporation shall keep as part of their accounts a separate account as in this Act hereinafter provided.

Orders and
byelaws to
be signed &c.

98. All orders regulations and byelaws made and certificates given by the Board of Trade under the authority of this Act or the Tramways Act 1870 shall be signed by a secretary or an assistant secretary of the Board of Trade and when so signed the same shall be deemed to have been duly made in accordance with the provisions of the said Acts and the production of a written or printed

copy of any such order byelaw or certificate purporting to be signed as aforesaid shall without proof of the signature of such secretary or assistant secretary be evidence of such order byelaw or certificate in all courts of justice and in all legal proceedings and that all preliminaries requisite to the making and operating of any such order or byelaw have been duly observed and fulfilled.

99.—(1) The Corporation may enter into and carry into effect agreements with any local authority company body or person owning leasing running over or using any tramway or light railway with which any tramway of or leased to or worked or run over by the Corporation connects (each of such local authorities companies bodies or persons being in this section referred to as “the owning authority”) with respect to the following purposes or any of them and all matters incidental or necessary thereto (that is to say):—

- (A) The leasing reconstruction alteration equipment working running over use occupation management or maintenance of the tramways and works connected therewith of the owning authority or any part or parts thereof respectively :
- (B) The grant to and user by the owning authority of running powers over the Corporation tramways or any of them :
- (C) The supply by the Corporation under and during the continuance of any agreement for the tramways of any of the owning authorities being used and worked by the Corporation of rolling stock plant and machinery necessary for the purposes of such agreement and the supply by the Corporation of electrical energy or any motive power necessary for the purpose of working any tramways tramroads or light railways leased to or substantially worked by the Corporation :
- (D) The making good of all necessary junctions :
- (E) The appointment and removal of officers and servants :
- (F) The payments to be made and the conditions to be performed in respect of and the division and apportionment of the revenue to arise from or under any agreement for or with respect to any of the aforesaid purposes.

(2) For the purposes of and during the continuance of any such agreement and to the extent thereby provided the Corporation and the owning authority respectively shall have and may exercise

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in respect of the tramways of the other of them the subject of such agreement all such and the like powers rights and remedies for the taking collection and recovery of fares rates and charges and otherwise howsoever as are by or under the Acts or Orders respectively relating to such last-named tramways conferred upon the owning authority or the Corporation as the case may be.

(3) The tramways undertaking of the Horsforth Urban District Council shall be and the same is hereby transferred to the Corporation upon the terms of the agreement which is set forth in the Sixth Schedule to this Act and is hereby confirmed and all the provisions of this Act shall apply to the tramways so transferred (subject to the provisions of the Order authorising the same) as though such tramways had been part of the Corporation tramways within the meaning of this Act and had been described in the Third Schedule to this Act.

(4) All receipts and expenses of the Corporation by reason of under or for the purposes of the provisions of this section shall be and shall be deemed to be receipts and expenses of the tramways undertaking and shall be dealt with paid and raised accordingly.

(5) For the purposes of this section a tramway shall include a tramroad and light railway.

Provisions as
to arbitra-
tion.

100. Where under the provisions of the Tramways Act 1870 or this Act any matter in difference is referred to the arbitration of any person nominated by the Board of Trade the provisions of the Arbitration Act 1889 shall apply to every such arbitration as if the arbitration were pursuant to a submission.

Provision as
to general
Tramway
Acts.

101. Nothing in this Act contained shall exempt the Corporation or the Corporation tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum fares rates or charges authorised by this Act.

PART V.
Electricity.

PART V.

ELECTRICITY.

Electricity
undertaking
to continue
vested in
Corporation.

102. The electricity undertaking as it exists at the commencement of this Act shall (subject to the provisions of the Corporation Acts and Orders) be and continue vested in the Corporation and be held used and enjoyed by them.

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PART V.
Electricity.

Application
of provisions
of Electric
Lighting
(Clauses)
Act 1899.

103. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 as incorporated with this Act so far as the same are applicable for the purposes of this Act and with the substitution of the words "special Act" for "special Order" and of the word "ten" for the word "five" in the proviso to subsection (1) of section 8 and subject as hereinafter provided with respect to section 81 of the said schedule shall apply to the electricity undertaking in all respects as though such undertaking had been originally authorised by this Act.

104. The area of supply for the purposes of this Part of this Act and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 (in this Act referred to as "the electricity limits") shall be the city.

Area of
supply.

105. The maximum prices which may be charged by the Corporation as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Seventh Schedule to this Act. Provided that the charge to all consumers under precisely similar circumstances and conditions be uniform. The prices charged may vary according to the object nature quantity or conditions of the supply. Provided also that if in any year it shall appear from the separate account of the electricity undertaking to be kept as hereinafter provided that the excess of receipts in respect of that undertaking over and above the expenses in respect thereof shall amount after making provision for the reserve fund in accordance with the power in that behalf hereinafter contained to a sum which shall exceed five pounds per centum per annum upon the aggregate capital expenditure on the undertaking the Corporation shall make such a rateable reduction in the charge for the supply of energy as in their judgment will reduce the surplus to that maximum rate of profit.

Prices to be
charged.

106. The Corporation may if they think fit make an allowance by way of discount not exceeding the rate of five pounds per centum per annum on all sums of money due to the Corporation for the supply of electrical energy from any person who pays the same within such time of the demand thereof as the Corporation think fit to prescribe in that behalf and notice to this effect shall be endorsed on every demand note in respect of such charges. Provided that the Corporation shall make the same allowance to all customers under similar circumstances.

Discount on
electrical
energy
accounts.

107. The Corporation may maintain repair extend and use the works for generating electricity and for repairing fittings and

Generating
station.

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Electricity.

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appliances upon the lands or part of the lands described in the Eighth Schedule to this Act and may erect construct maintain and use additional works for that purpose with all proper and necessary engines dynamos batteries accumulators machinery and other electrical plant apparatus buildings and works upon such lands and the provisions of section 81 of the schedule to the Electric Lighting (Clauses) Act 1899 shall not apply in regard to such lands or to any works thereon.

Power to
supply elec-
tric fittings.

108. The Corporation may provide sell let for hire and fix set up alter repair and remove (but shall not manufacture) lamps meters electric lines fittings motors apparatus and things for lighting heating and motive power and for all other purposes for which electrical energy can or may be used or otherwise necessary or proper for the supply distribution consumption or use of electrical energy (in this section referred to as "fittings") and may provide all materials and do all works necessary or proper in that behalf and may require and take such remuneration in money or such rents and charges for and make such terms and conditions with respect to the sale letting fixing setting up altering repairing or removing of such fittings and for securing their safety and return to the Corporation as the Corporation may think fit or as may be agreed upon between them and the person to or for whom the same are sold supplied let fixed set up altered repaired or removed Provided that nothing in this section shall authorise the Corporation to provide and fix electric wiring or electric light fittings upon any consumer's premises.

Corporation
may refuse to
supply elec-
trical energy
in certain
cases.

109. The Corporation may refuse to supply electrical energy to any person whose payments for the supply of electrical energy are for the time being in arrear whether any such payments are due to the Corporation in respect of a supply to the premises in respect of which such supply is demanded or in respect of other premises.

As to supply
of electrical
energy where
consumer has
separate
supply.

110.—(1) Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 a person shall not be entitled to require from the Corporation a supply or the continuance of a supply of electrical energy to premises having a separate supply unless such person shall have previously agreed to pay to the Corporation such minimum annual sum as will give to the Corporation a reasonable return on the capital expenditure and other standing charges incurred by the Corporation to meet the possible maximum demand of such person.

(2) In case the Corporation and the person requiring such supply of electrical energy shall fail to agree as to the amount

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of such minimum annual sum to be paid by such person the amount of such minimum annual sum shall be fixed by an electrical engineer to be appointed as arbitrator by the Board of Trade.

PART V.
Electricity.

111. All the interest on any principal moneys borrowed by the Corporation and applied by them for the purposes of the electricity undertaking and all other the costs charges and expenses of and incident thereto on revenue account shall be paid and satisfied out of the consolidated fund and all the rates charges damages penalties and other moneys received by or for the benefit of the Corporation on account of revenue in respect of the electricity undertaking shall be paid and carried to the credit of that fund and the Corporation shall keep as part of their accounts a separate account as in this Act hereinafter provided.

Expenses
and receipts
under Part
V. of Act.

112. Notwithstanding anything contained in section 9 of the Electric Lighting Act 1882 the annual statement of accounts of the electricity undertaking shall after the commencement of this Act be filled up on or before the twenty-fourth day of June in every year and shall be made up to the thirty-first day of March next preceding and section 9 of the Electric Lighting Act 1882 shall as from the passing of this Act be read and have effect as regards the electricity undertaking as if the twenty-fourth day of June and the thirty-first day of March were therein mentioned instead of the twenty-fifth day of March and the thirty-first day of December.

Altering date
for filling up
annual ac-
counts for
electric light-
ing under-
taking.

113. The Corporation may on the application of the owner or occupier of any premises abutting on or being erected in any street laid out but not dedicated to public use within the electricity limits supply such premises with electricity and may lay down take up alter relay or renew in across or along such street or road such pipes and apparatus as may be requisite or proper for furnishing such supply in the same way and to the same extent as if such street or road had been dedicated to the public use but doing as little damage as can be in the execution of the powers hereby granted and making compensation for any damage which may be done in the execution of such powers.

Power to lay
pipes for
electricity in
streets not
dedicated to
public use.

PART VI.

MARKETS AND FAIRS. SLAUGHTER-HOUSES.

PART VI.
*Markets and
Fairs.
Slaughter-
houses.*

114. The markets undertaking as it exists at the commencement of this Act shall be and continue vested in and be held, and enjoyed by the Corporation subject to the provisions of this:

Continuance of
Corporation,
markets and
fairs and
slaughter-
houses.

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PART VI.
*Markets and
Fairs,
Slaughter-
houses.*

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Act and the Corporation without prejudice to the generality of the foregoing provision shall have the following powers (namely):—

- (i) They may continue the markets and fairs held at the commencement of this Act and may from time to time alter the days on which and the places at which the markets respectively are or may be held and may establish and hold new markets:
- (ii) They may continue and from time to time provide market-places and market-houses for the sale of cattle of corn and of any marketable articles and places for fairs and slaughter-houses and dead meat markets together with all buildings offices approaches appliances conveniences and things as may be necessary or proper or incidental to the carrying on of any such matters:
- (iii) They may acquire any manorial or other franchises royalties rights or privileges connected with markets or fairs:
- (iv) They may provide and maintain weighing-houses and machines and all proper appliances for weighing carts and for weighing or measuring articles and may appoint and pay persons to attend to such weighing or measuring:
- (v) They may alter or discontinue any cattle corn or other market or any slaughter-house or dead meat market of the Corporation and improve alter or remove any market-place market-house or any weighing-house or offices approach or convenience or any slaughter-house or dead meat market belonging to the Corporation:
- (vi) They may appropriate any market-house or other part of the market premises or any other premises belonging to the Corporation as and for a grocer's or other exchange or for the transaction of any other specific business and may take and recover reasonable charges for admission thereto:
- (vii) They may make byelaws with respect to the management and charges for the use of slaughter-houses provided by the Corporation.

Limits of
markets.

115. The limits of the markets and fairs of the Corporation shall be the city.

Markets not
to be held ex-
cept by Cor-
poration or
their licencees.

116. If any person shall without the licence of the Corporation on any land belonging or reputed to belong to or occupied by him in any part of the city hold or permit to be held any market he

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shall be liable to a penalty not exceeding fifty pounds and to a daily penalty not exceeding five pounds.

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PART VI.
*Markets and
Fairs.
Slaughter-
houses.*

Closing of
markets.

117. All the markets now or hereafter belonging to or under the control of the Corporation and the places in which the same are held with all the roads and ways therein shall be closed on such days and at and during such times as the Corporation shall by byelaw from time to time prescribe and the power of the Corporation to make and enforce byelaws under the Markets and Fairs Clauses Act 1847 shall extend to the making and enforcement of byelaws for this purpose.

118. The Corporation may from time to time demand and receive tolls rents stallages entrance fees and charges (not exceeding the tolls rents stallages entrance fees and charges specified in the Ninth Schedule to this Act) from persons selling or offering or exposing for sale cattle corn meat or articles in any market or fair of the Corporation or using or occupying shops stalls standings or other conveniences in any such market or fair or frequenting any such market or fair or using any weighing-house or place weights measures scales or machines in any such market or fair or using any slaughter-house or dead meat market of the Corporation Provided that nothing in this Act shall extend to prevent the Corporation receiving any rents or other charges exceeding those specified in the said schedule in respect of any shops stalls standings or other conveniences let by auction or public tender or offer Provided also that the Corporation may in addition to or substitution for the tolls rents and charges which they are otherwise entitled to demand and take demand and take from persons using any buildings appliances conveniences and things erected and provided by the Corporation for and in connection with the markets undertaking such reasonable tolls rents or charges as they may from time to time fix Provided also that the Corporation may permit any such cattle corn or article to be sold elsewhere than within any market or market-place or place appointed for holding any fair on payment of the tolls authorised to be taken as aforesaid.

Power to take
tolls &c. in
respect of
markets and
slaughter-
houses.

119. The tolls or charges payable with respect to any animal or article shall be paid not only by the original seller but also by any subsequent seller or person who offers such animal or article for sale in the market and such tolls or charges shall become payable before such animal or article is sold or offered for sale.

Tolls or
charges to be
made payable
by successive
sellers. ;

120.--(1) The Corporation may let any shops stalls standing-places benches or other conveniences in any market to any person

Power to
lease stalls in
markets.

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Markets and
Fairs.
Slaughter-
houses.

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for any term not exceeding three years or in the case of shops not exceeding seven years.

(2) The lessee or taker of any such shop stall standing-place or other convenience may with the consent of the Corporation assign the same for the residue of his term and interest therein.

Tolls &c.
when pay-
able.

121. The tolls rents stallages and charges authorised by this Part of this Act to be taken shall become due and payable as soon as the animal article or thing in respect of which the same are respectively payable is brought within the market or fair or as soon as the pen lair stall stand bench or convenience in respect of which the same are respectively payable is first occupied or used.

Power to take
possession of
stalls for non-
payment of
rent.

122. If any tenant shall for three days after demand thereof made after the same has become due and payable make default in the payment of any toll rent stallage or charge payable to the Corporation in respect of any stall booth stand shed hiring fixture or property in any market the Corporation may enter on and take possession thereof and re-let the same without prejudice to any other remedy for the recovery of such toll rent stallage or charge.

Cattle &c. to
be removed
from mar-
kets.

123.—(1) All cattle articles and things brought into any market or fair shall be removed therefrom so soon as possible after the market or fair shall be closed.

(2) If any such cattle articles or things shall be found in the place or area of the market or fair two hours after the close of the market or fair the owner or person having the charge thereof shall pay a second toll rent stallage or charge in respect thereof.

Penalty on
bringing dis-
eased cattle
into market
or fair.

124.—(1) In case any cattle infected with or labouring under or reasonably suspected to be infected with or to be labouring under any infectious or contagious disease be exposed or offered for sale or be brought or attempted to be brought through any street into any market or fair any inspector collector or constable may seize any such cattle and cause the same to be inspected by two veterinary surgeons and may report such seizure to any justice.

(2) The justice may after hearing the evidence either order such cattle to be restored or may direct the same and also any pens hurdles troughs litters hay straw and other articles which he may judge likely to have been infected thereby to be forthwith destroyed or otherwise disposed of.

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*Markets and
Fairs,
Slaughter-
houses.*

(3) Any person bringing or attempting to bring any cattle into any market or fair knowing the same to be infected with or labouring under any such disease shall be liable to a penalty not exceeding twenty pounds.

125. The Corporation may appoint officers for securing the observance of this Part of this Act and of the regulations and byelaws made thereunder and may procure such officers to be sworn in as constables for that purpose but any such officer shall not act as a constable unless in uniform or provided with a warrant and any such officer so sworn in shall for the purposes aforesaid have all the powers authorities and privileges (except as to pensions) of a constable.

Corporation
may appoint
constables.

126. Every animal or article brought into any market or fair and left therein after the hour of closing (except such as may be left in charge of the superintendent of the market or fair) may be taken possession of by the superintendent and if the same being of a perishable nature be not claimed within two hours after the closing or not being of a perishable nature be not claimed within one month thereafter then and in every such case the same may be sold by the Corporation who shall return the surplus proceeds of such sale after deducting any unpaid toll rent stallage or charge due in respect thereof and the expenses of detention and sale to the owner on demand if such demand is made within one month after the sale but if demand is not so made the proceeds of the sale shall be forfeited to the Corporation.

Forfeiture of
articles left in
market.

127. The Towns Improvement Clauses Act 1847 (in this section referred to as "the Act of 1847") shall apply to all the slaughter-houses within the city other than those of the Corporation subject to the following provisions (namely):—

Regulation of
slaughter-
houses.

- (1) All such slaughter-houses registered under any local Act before the commencement of this Act shall be deemed to have been registered under the Act of 1847 and after the commencement of this Act no other slaughter-house shall be registered under the Act of 1847:
- (2) The power of the Corporation to make and enforce byelaws shall extend to the making and enforcement of byelaws—

For preventing the slaughter of animals in any pound pen lair or pining-house forming part of any registered or licensed premises;

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*Markets and
Fairs.
Slaughter-
houses.*

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For preventing the slaughter of any animal within public view, or within the view of any other animal; and

For preventing the carcase of any slaughtered animal intended for the food of man from being contaminated during such time as the same shall be hung or remain in any slaughter-house.

Corporation
may license
porters and
carriers.

128.—(1) The Corporation may from time to time grant to any person carrying on within the city the business or calling of a porter or carrier a licence on such terms and revocable in such cases and events as the Corporation may prescribe.

(2) The Corporation may demand and take for every such licence any sum not exceeding four shillings for twelve months and in the like proportion for any shorter period not being less than three months and may attach to such licence the terms and conditions of revocation or suspension of any such licence.

(3) If any person while unlicensed represents himself to be licensed or wears any badge for the purpose of holding himself out as licensed to carry on any of the callings specified in this section he shall be liable to a penalty not exceeding twenty shillings.

Expenses
and receipts
under
Part VI. of
Act.

129. All the interest on any principal moneys borrowed by the Corporation and applied by them for the purposes of the markets undertaking and all other the costs charges and expenses of and incident thereto on revenue account shall be paid and satisfied out of the consolidated fund and all the rates charges damages penalties and other moneys received by or for the benefit of the Corporation on account of revenue in respect of the markets undertaking shall be paid and carried to the credit of that fund and the Corporation shall keep as part of their accounts a separate account as in this Act hereinafter provided.

Saving as to
Diseases of
Animals Act
1894.

130. Nothing in this Part of this Act shall interfere with the operation or effect of the Diseases of Animals Act 1894 or of any licence or act of the Board of Agriculture and Fisheries made granted or done thereunder.

Saving as to
Aire and
Calder Navi-
gation.

131. Nothing in this Part of this Act or in the provisions of the Markets and Fairs Clauses Act 1847 incorporated with this Act shall in any way prejudice or affect any lawful rights or liberties belonging to the undertakers of the Aire and Calder Navigation in reference to any of the matters to which the provisions therein contained or any of them may relate or be construed to prohibit

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any act which might have been lawfully done on the navigable River Aire or any of the canal basins or wharves connected therewith if this Act had not been passed.

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PART VI.
*Markets and
Fairs.
Slaughter-
houses.*

PART VII.

PART VII.
*Public
Buildings.*

PUBLIC BUILDINGS.

132. The Corporation may continue and maintain the existing town hall law courts municipal buildings and public offices and the existing police offices and stations and from time to time may alter improve and enlarge the same and may acquire and hold such additional land and may provide such additional buildings for any of the said purposes and may furnish and fit up the same as they think fit.

Town hall
and public
offices.

133.—(1) The Corporation may maintain and keep the premises now used as judges' lodgings for that purpose or they may sell and dispose of those premises and may acquire maintain and keep other premises for the purpose of judges' lodgings and they may use and let such part of any such premises as may not be devoted to the purpose aforesaid for any other purpose they may think desirable.

Provisions as
to judges'
lodgings and
premises for
use of lord
mayor.

(2) The Corporation may provide hold maintain and keep premises for the use of the lord mayor.

(3) The Corporation may alter improve reinstate and furnish any such premises as aforesaid for any of the said purposes as they may see fit.

134. The Corporation may provide and maintain in the town hall an organ and may appoint an organist at such salary or remuneration as they think proper and may admit the public to performances on the organ either without charge or for such charge as they think proper and subject to such regulations as the Corporation from time to time deem expedient.

Organ in
town hall
and organist.

135. The Corporation may grant or let with or without charge the use of the town hall either with or without the use of the organ for the purpose of any public meeting festival or entertainment or other purpose approved by the Corporation.

Power to
grant or let
use of town
hall.

136. It shall be lawful for the Corporation or any committee having the management of any museum or art gallery of the

Powers of
Corporation
as to museum

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Public
Buildings.

art gallery
&c.

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Corporation from time to time as regards the said institutions or any of them—

- (a) To make rules and regulations for the use of the said institutions by students and others and for the admission of the public thereto ;
- (b) To provide in the art gallery suitable rooms for art exhibitions and to permit art exhibitions in such rooms and to let such rooms or make such reasonable charges for admission to such exhibitions as to the Corporation may seem fit and also to let or make reasonable charges for admission to lecture rooms ;
- (c) To fix and to demand and receive fees and charges for instruction admission to lectures and special exhibitions on such days and occasions and for such period as the Corporation may determine ;
- (d) To close any museum or art gallery against the general public on such occasions and for such period as they may think fit and to use the same during such time for any special purpose which the Corporation may deem proper with power to make a charge for the admission of persons visiting the same during such time but the days on which the public shall be admitted free of charge to any such museum or art gallery shall include every bank holiday and not be less than one hundred and fifty days in every year Any profits arising therefrom shall be applied to such public purpose as the Corporation or committee may direct ;
- (e) To do all other acts and things necessary or proper for maintaining the said institutions or any of them.

Smithfield
Hall or other
premises for
shows &c.

137.—(1) The Corporation may erect on their North Street recreation ground a hall and other buildings (to be called the Smithfield Hall).

(2) The Corporation may use the said hall and (subject to the consent of the Local Government Board in any case for which such consent would be required but for the provisions of this subsection) any other premises belonging to them and suitable for the purpose for agricultural horticultural or cattle show purposes and for trade industrial and other exhibitions for conservatories and winter gardens for the holding of meetings called by or under the direction or authority of the Corporation or the lord mayor or for concerts

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and entertainments and they may furnish fit up and equip the same and may appoint such persons as they may think proper for the care custody and management thereof.

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*Public
Buildings.*

(3) The Corporation may make regulations for securing good and orderly conduct in the said hall or other premises as aforesaid and they may demand and take or permit to be demanded and taken such reasonable sums for the admission of persons thereto or to any part thereof as they may think proper and they may let the same for any of the purposes aforesaid upon such terms and conditions as may be agreed upon.

138. All moneys received and all costs and expenses incurred by the Corporation on revenue account under this Part of this Act shall respectively be carried to the credit of and defrayed out of the city fund.

Expenses
and receipts
under
Part VII. of
Act.

PART VIII.

PART VIII.
Parks.

PARKS.

139. All parks vested in belonging to or used or enjoyed by the Corporation immediately before the commencement of this Act shall be and continue to be so vested and may be and continue to be held and maintained by the Corporation.

Existing
parks con-
tinued as
such.

140. The Corporation may accept a gift of or purchase by agreement or contribute to the acquisition of any lands within or without the city for the purpose of providing additional parks and may level drain sewer pave flag gravel lay out plant light or otherwise improve every such park and do such other acts as appear necessary to the Corporation with a view to the proper formation improvement use and enjoyment of every such park.

Power to
provide ad-
ditional
parks.

141. As regards any park the Corporation shall have power to maintain and improve the same and shall also have power—

Powers of
Corporation
as to parks.

- (a) To abate and take proceedings for the abatement of nuisances ;
- (b) To make inclosures from time to time of parts of the said parks for the better attainment of the purposes of this Act and for such periods only as shall be sufficient for the attainment thereof ;
- (c) To acquire or erect and maintain such conservatories refreshment rooms lodges and other suitable buildings and conveniences as in the judgment of the Corporation shall be necessary or convenient for the use of

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Parks.

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the public and for the use of the servants of the Corporation engaged in the management of the said parks ;

- (d) To set apart places for playing cricket and other sports or games ;
- (e) To grant licences to or permit any portion of His Majesty's regular auxiliary or reserve forces to drill or practise at such places and at such times and upon and subject to such conditions and regulations as the Corporation may think fit and safe having due regard to the enjoyment of the said lands by the public ;
- (f) To let for the purposes of this Part of this Act any buildings refreshment rooms sheds or other erections for such terms and at such rents and on such conditions and subject to such covenants and restrictions as they may from time to time determine ;
- (g) During times of frost for the purpose of protecting ice for skating on all or any part of any lake or piece of water to enclose such parts of such parks and places as may be necessary to effect such purpose and charge for admission to any part so enclosed :

Provided that in Roundhay Park no charge for admission shall be made in respect of the upper lake and that in any other park of the Corporation the portion of any lake or piece of water which shall be so enclosed and for admission to which a charge shall be made shall not exceed one-half of the whole area of such lake or piece of water.

Byelaws as
to parks.

142. The power of the Corporation under section 164 of the Public Health Act 1875 to make and enforce byelaws for the regulation of public walks and pleasure grounds shall extend to and include the making and enforcement of byelaws for all or any of the following purposes in relation to any park (namely) :--

For regulating the days on and hours during which and parts in which games and gymnastics or skating are to be permitted therein or for otherwise regulating or prohibiting games and gymnastics or skating :

For regulating the use of any places set apart for cricket grounds or other sports and the times for carrying on particular sports or games and the drill or practice of any regular reserve or auxiliary regiment or corps.

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PART VIII.
Parks.
Park with-
out city
deemed
within it for
police pur-
poses.

143. The justices and police of the city shall have jurisdiction over all persons in respect of any offence committed in any park or the approaches thereto or the boundary roads thereof which may be without the limits of the city as if such park had actually been situate within the city. The Corporation and the standing joint committee of the west riding of the county of York may enter into any agreements they think fit touching the exemption of any such park approaches and boundary roads from the jurisdiction of the police of the said riding in and in relation to such park approaches and boundary roads or touching any of such last-mentioned matters :

Provided that nothing herein contained shall except as may be provided by any such agreement as last aforesaid in any way exempt any such park approaches and boundary roads from the jurisdiction of the justices acting in and for the said riding or the police force of the said riding.

144. In addition to the powers of the Corporation under section 41 of the Public Health Acts Amendment Act 1890 the Corporation may on such days as they think fit (not exceeding ten days in any one year) close to the public the Roundhay Park of the Corporation or any part thereof and may grant the use of the same either gratuitously or for payment to the members of any society or charity or of any public or private institution or persons being attendants at or supported by any public or private institution or such other persons as the Corporation think fit or for any agricultural horticultural or other show or for any other public purpose or may use the same for any such show or purpose and the admission to such park or such part thereof on the days when the same shall be so closed to the public may be either with or without payment as directed by the Corporation or with the consent of the Corporation by the society or persons to whom the use of the park or such part thereof may be granted.

Occasional
use of
Roundhay
Park for
shows &c.

145. The Corporation may provide swings gymnasium apparatus and apparatus for games and recreation and other things of the like nature for the use of the public frequenting the parks and may charge for the use thereof or they may lease or grant the right of so doing upon such terms and conditions as they think proper.

Swings &c.
for use of
public in
parks &c.

146. The Corporation may from time to time place or authorise any person or persons to place seats or chairs in any street or park and may if they think fit charge or allow such

Chairs and
seats for
public use.

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PART VIII.
Parks.

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person or persons to charge a reasonable sum for the use of chairs and may make regulations for the use of seats and chairs and for preventing injury or damage thereto.

Public Ad-
dresses in
Roundhay
Park.

147. Public addresses may be delivered only in such part or parts of Roundhay Park as shall be prescribed by the Corporation.

Corporation
may appoint
constables.

148. The Corporation may appoint officers for securing the observance of this Part of this Act and of the regulations and byelaws made thereunder and may procure such officers to be sworn in as constables for that purpose but any such officer shall not act as a constable unless in uniform or provided with a warrant and any such officer so sworn in shall for the purposes aforesaid have all the powers authorities and privileges (except as to pensions) of a constable.

Saving rights
of Middleton
Estate and
Colliery
Company.

149. Save as in this Act expressly provided nothing in this Act contained shall take away lessen prejudice alter or affect any of the estates rights privileges property power liabilities obligations or authorities of the Middleton Estate and Colliery Company (Limited) as lords of the manor of Hunslet or otherwise.

As to ex-
penses under
Part VIII. of
Act.

150. All expenses incurred by the Corporation in the execution of this Part of this Act (except expenses in respect of the Roundhay Park and Estate Woodhouse Ridge and Hunslet Moor) shall be defrayed out of the city fund and all sums received by the Corporation under this Part of this Act (except principal or capital moneys and except rents and profits arising from the Roundhay Park and Estate Woodhouse Ridge and Hunslet Moor) shall be carried to the credit of the city fund.

All expenses in respect of and all rents and profits arising from the Roundhay Park and Estate Woodhouse Ridge and Hunslet Moor shall be defrayed out of or carried to the credit of the consolidated fund.

PART IX.
*Burial
Grounds.*

PART IX.

BURIAL GROUNDS.

Corporation
to be burial
authority
and exist-
ing burial
grounds to
be deemed to
be provided
under Burial
Acts.

151. The powers for providing places of burial for the inhabitants of the city shall be vested in the Corporation as though an Order in Council therefor had been made under the provisions of the Burial Act 1854 and the burial grounds which have been provided by the Corporation under the Leeds Burial Grounds Act 1842 or any other powers in that behalf and which

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are now vested in them shall be deemed to have been acquired and constructed under the provisions of the Burial Acts 1852 to 1900 and the provisions of those Acts shall apply accordingly:

PART IX.
*Burial
Grounds.*

Provided always that all expenses incurred by the Corporation in the execution of this Part of this Act shall be defrayed out of the consolidated fund and all sums received by the Corporation under this Part of this Act shall be carried to the credit of that fund.

152. Notwithstanding the repeal of any Act by this Act repealed nothing in this Act shall affect the position duties or emoluments of any chaplain registrar clerk or gravedigger duly appointed before and in office at the commencement of this Act.

Repeal of
Acts not to
affect certain
officers.

PART X.

PART X.
Lands.

LANDS.

153.—(1) Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts or otherwise to the contrary the Corporation may retain hold and use for such time as they may think fit and may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest in lands which at the commencement of this Act are vested in used held, or enjoyed by them or which after the commencement of this Act may be acquired or become vested in them and may sell exchange or dispose of any rents reserved on the sale exchange lease or disposition of such lands and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition of such lands and on any exchange may give or take any money for equality of exchange Provided that upon every sale lease exchange or other disposition of lands or rents as aforesaid the value of such lands or interest in lands or rents shall be credited to the revenue or fund out of which such lands or interest in lands or the lands in respect of which such rents were reserved were purchased or paid for Provided further that nothing in this section shall be taken to dispense with the necessity for obtaining the approval of the Local Government Board to any alienation sale lease or other disposition of

Power to re-
tain sell &c.
lands and to
purchase
lands by
agreement.

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PART X.
Lands.

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any lands for which such approval would be required but for the provisions of this Act.

(2) The consideration for the acquisition by the Corporation of any lands may be either money or land or any yearly sum or rent-charge or other rent or a mixed consideration of money and land and on any exchange the Corporation may give or take any money for equality of exchange.

PART XI.
*Building
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PART XI.

BUILDING REGULATIONS.

What to be
deemed new
buildings.

154. From and after the commencement of this Act—

The re-erection wholly or partially on the same site of any building of which an outer wall is pulled down or burnt down to or within ten feet of the surface of the adjoining ground and of any frame building so far pulled down as to leave only the framework of the ground floor storey thereof;

The conversion into a dwelling-house of any building or part of a building not originally constructed for human habitation or the conversion into more than one dwelling-house of a building originally constructed as one dwelling-house only;

The conversion of two or more buildings originally constructed as separate dwelling-houses into a greater or less number of dwelling-houses than the original number for which they were constructed;

The re-conversion into a dwelling-house of any building which has been discontinued as and appropriated for any purpose other than that of a dwelling-house;

The conversion of a dwelling-house into any other building not intended for human habitation;

The conversion of a building which when originally erected was legally exempt from the operation of any building byelaws in force within the city into a building which had it been originally erected at the time of such conversion would have been within the operation of the building byelaws then in force;

The making of any addition to an existing building by raising any part thereof or making any projection therefrom but so far as regards such addition only; and

The roofing or covering over of an open space between walls or buildings;

shall for all the purposes of the Public Health Acts or any other general Act or of the Corporation Acts and Orders and of any byelaw made thereunder respectively be deemed to be the erection of a new building.

155.—(1) The Corporation may make byelaws with respect to the following matters (that is to say):—

Byelaws as
to streets and
buildings.

- (a) With respect to the level width and construction of new streets and for securing a straight and continuous building line in such new streets for the entire length thereof and the provisions for the sewerage thereof:
- (b) With respect to the structure and materials of walls foundations floors stairs roofs and chimneys of new buildings and the strength of timber and other materials for securing stability and the prevention of fires and for purposes of health:
- (c) With respect to the quality and condition of the materials to be used for the construction of new buildings and to the manner in which and the materials with which grates stoves and fireplaces shall be set in new buildings:
- (d) With respect to the sufficiency of the space about buildings to secure a free circulation of air and with respect to the ventilation of buildings:
- (e) With respect to the drainage of buildings to waterclosets privies ashpits urinals and cesspools in connection with buildings and to the closing of buildings or parts of buildings unfit for human habitation and to the prohibition of their use for such habitation:
- (f) The prohibition of the laying out of any new street or the commencement of any building without the approval by the Corporation of the deposited plans of such new street or building within a reasonable period to be specified in such byelaws and in no case exceeding one month:

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(g) The approval by the Corporation of the site on which it is proposed to erect any building and as to the drainage of such site so as to ensure that the site may be in a proper sanitary condition :

And they may further provide for the observance of the same by making therein such provisions as they think necessary—

As to the giving of notices ;

As to the deposit of plans and sections by persons intending to lay out streets or to construct buildings ;

As to inspection by the Corporation or their surveyor or other officer ; and

As to the power of the Corporation to remove alter or pull down any work begun or done in contravention of such byelaws.

(2) No such byelaws except such as relate to the drainage of buildings to waterclosets privies ashpits urinals and cesspools in connection with buildings and to the closing of buildings or parts of buildings unfit for human habitation and to the prohibition of their use for such habitation shall affect any building erected before the twenty-eighth day of June one thousand eight hundred and sixty-six unless and except so far as the same shall have become a new building within the definition contained in this Act.

Height of
rooms for
occupation
as dwelling
or sleeping
rooms.

156. No room shall be used as a dwelling or sleeping room save as hereinafter provided which shall be less than eight feet in height at least from the floor to the ceiling in every part Provided always that this provision shall not apply to a room used as aforesaid in the attic or roof which shall average not less than six feet in height from the floor to the ceiling and shall in no part thereof be less than four feet in height from the floor to the ceiling and if built or erected after the date of the passing of this Act shall have underneath it two storeys in height above the surface of the ground.

Any person who uses and any occupier of a house who permits any person to use and any owner of a house continuing after ten days' notice from the Corporation to allow any person to use a room as a dwelling or sleeping room which is not in accordance with this provision shall be liable to a penalty of twenty shillings and a daily penalty of two shillings and sixpence.

As to erection of more than two houses.

157. A person shall not erect two or more houses in a row unless the fronts or forecourts of such houses for the whole length thereof abut upon a street already made or formed.

158. In every case in which it is proposed to erect a new dwelling-house with two separate entrances thereto the one from the front and the other from the back there shall be provided at the back and for the exclusive use thereof a clear open space which shall extend throughout the whole width of the land on which it is proposed to erect such house and which measured from and at right angles to the external face of the wall of such house abutting on the open space shall be of a depth between such wall and the boundary of the said land of not less than nineteen feet six inches at any point and such space shall be for ever left open and unbuilt upon save that upon not more than one half in the width thereof and to a line not less than seven feet six inches from the said boundary a building may be erected which shall not exceed in any part thereof twelve feet six inches in height from the ridge of the roof to the level of the ground and which shall be used exclusively in connection with the said dwelling-house :

Provided however that in any case where there is at the back of the said premises so proposed to be built upon as aforesaid a street of a not less width than fifteen feet the said depth of nineteen feet six inches may be reduced to a depth of not less than twelve feet and in such case the said line of not less than seven feet six inches shall be taken to be and shall be the boundary of the land abutting on the said street :

Provided also that in any case where it is proposed to erect such houses with the backs thereof opposite to any buildings already erected or in course of erection the Corporation may require the open space to be provided in connection with such houses to be so increased that the open space between the backs of such houses and the main wall of the said buildings shall be not less than thirty-nine feet at any one point :

Provided also that every new dwelling-house not otherwise provided for shall have at the back or side or front thereof an open space exclusively belonging to the owner of and occupied with such house to the extent of not less than one hundred and fifty square feet free from any erection thereon above the level of the ground except privies and waterclosets.

159. Whenever the person erecting any building shall be desirous of leaving an opening or of placing any steps or other projection in any forecourt area or space left in front of such building such forecourt area or space shall if required by the Corporation be well and sufficiently fenced off from the footpath

Forecourts
to be fenced
off from
streets.

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or street and any person who shall offend against this enactment shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Restrictions
on buildings
in new
streets.

160. No house or other building the approach to which is from or off any new or intended street shall be commenced to be erected or the foundations thereof excavated unless and until the ground in such street shall have been formed to the levels shown on the plan and section approved by the Corporation and the said street shall have been sewered and kerbed and no kerb-stone after it has been laid down shall be taken up or removed without the previous consent of the Corporation.

Regulations
as to raising
buildings.

161. No building shall hereafter be raised unless the outer walls and the party walls or separate side or end walls thereof are of sufficient strength and so far sound and in good repair as to be fit to bear additional walls.

Level of
ground-
floors.

162. The level of the ground floor of every house shall be at least six inches above the level of the footway or road adjoining such house.

Ovens and
furnaces.

163.—(1) Every oven used by any baker and every furnace used by any tradesman or artificer shall be so constructed that between any wall of the building in which such oven or furnace is or which divides such building from the adjoining building and the fire of the oven or furnace there shall be a clear space of not less than six inches and a separate wall for the oven or furnace of not less than nine inches in thickness and between the top of such oven or furnace and the ceiling or lower side of the floor above the same there shall be a clear space of not less than twelve inches.

(2) If such person fails to comply with the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding one pound.

Security of
chimney
shafts.

164. Any chimney shaft of a building which exceeds the height of six feet above the outside of the roof of the building measuring upwards from the centre of the chimney immediately above the roof shall either—

(a) Be secured by sufficient iron stays of such strength and dimensions and be fixed in such manner as shall be approved of by the Corporation and shall also be of not less dimensions than twenty-two inches on any one side thereof; or

(b) Be built with another chimney shaft back to back of such height and of such strength and dimensions as shall be approved by the Corporation :

Provided that these provisions shall not extend to the chimney shaft of any chimney built for any detached building standing at a distance of not less than eighteen feet from any public street or way which may be erected of such strength and dimensions and in such manner as shall be satisfactory to the Corporation.

The Corporation may cause any building to be inspected for the purpose of seeing that the provisions of this section are carried out.

165.—(1) In case any building shall be raised to a greater height than the adjoining building and the flues or chimneys of such adjoining building over the party walls or separate side or end walls adjoining such building so raised the person raising such building shall at his own expense build up such flues and chimneys belonging to the adjoining building so that the top thereof may be carried up to the same height as regards the building so raised as before the same had been raised.

Adjoining
chimneys
and flues to
be raised.

(2) If the wall between the said building so raised and any adjoining building shall be a party wall common to both buildings then in the event of the occupier or owner of such adjoining building making use of any portion of such party wall as shall have been raised the person raising such party wall shall be entitled to recover from the occupier or owner of such adjoining buildings a fair proportion of the expense of so much of the said party wall as shall be made use of at any time after the building thereof.

(3) The proportion so payable may if not paid within one month after demand thereof in writing delivered to such occupier or owner or left for him at his usual or last known place of abode within Great Britain be recovered as a civil debt in manner directed by the Summary Jurisdiction Acts.

166.—(1) The Corporation may by order in writing regulate the height of the chimneys of all buildings used for the purposes of trade or manufacture or for baths and washhouses and may direct that any chimney shall be altered or built so that the same shall be of the height specified in such order.

Power to re-
gulate height
of chimneys.

(2) Any person who shall not comply with such order within the space of one calendar month after service of the same upon him or who in the case of any new chimney shall neglect to give

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As to re-
moval altera-
tion or pull-
ing down of
work in con-
travention of
Corporation
Acts or
Orders.

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twenty-eight days' notice in writing to the Corporation or their surveyor of his intention to build the same shall be liable to a penalty not exceeding twenty pounds.

167. In case any work in connection with any building or erection or addition thereto be made begun or done contrary to any enactment byelaw or provision in force in the city for the time being the Corporation may make complaint thereof before a court of summary jurisdiction who may thereupon issue a summons requiring the owner or the occupier of the premises or the builder or person engaged on the work to appear at a place and time stated in the summons to answer the complaint and if at the time and place appointed in the summons and whether the person or persons summoned appear or not the complaint be proved to the satisfaction of the court before whom it is heard the court may make an order in writing on the person summoned directing the removal alteration or pulling down within such time as the court deem reasonable of the building or erection or addition or so much thereof as is made otherwise than in accordance with the said requirements in any respect.

If any building erection or addition so ordered to be removed altered or pulled down be not so removed altered or pulled down within the time limited by the order the Corporation may forthwith enter the premises to which the order relates to remove alter or pull down the buildings and do whatever is necessary for that purpose and may remove the materials to a convenient place and otherwise sell the same as they think fit and all expenses incurred by the Corporation therein and in removing depositing and selling the materials may be recovered summarily from the person against whom the order is made Provided that the Corporation shall apply the proceeds of the sale in or towards the payment of their expenses and if there be any surplus shall on demand pay it to the person against whom the order is made.

Plans sec-
tions and
elevations of
new streets
buildings and
erections.

168.—(1) Whenever in pursuance or for any of the purposes of any enactments byelaws or provisions for the time being in force within the city the owner or occupier of any land or building is required to deposit plans sections or elevations previous to the laying out of any land or street or the construction or erection or re-erection of any sewer drain or building such plans sections and elevations when deposited shall be and remain the property of the Corporation.

(2) If the Corporation have power to approve or disapprove of such plans sections or elevations respectively they shall approve

or disapprove of the same within the time prescribed therefor by the byelaws in force for the time being in that behalf and in all such cases such owner or occupier shall not lay out any such land or street or construct erect or re-erect any such sewer drain or building as the case may be except in conformity with such plans sections and elevations as shall have been approved by the Corporation.

(3) Any such approval shall cease to operate—

If any such land be not laid out or if any such street be not opened for public use within three years after such approval in cases where such approval was given before the passing of this Act and in other cases within two years after such approval; or

If any such sewer drain or building be not constructed or erected and finished for use or occupation as the case may be within two years after such approval in all cases:

And in any such event fresh notice and approval shall be requisite as if approval had never been given unless the Corporation shall by endorsement on such plans sections and elevations extend such approval for a further period and so from time to time.

169.—(1) Before any person erects or sets up any temporary or movable building he shall apply to the Corporation for permission so to do and such application shall be accompanied by a plan and section of the proposed building drawn to a scale of not less than one inch to every eight feet and a block plan drawn to a convenient scale showing the intended situation and surroundings of the proposed building together with a specification describing the materials proposed to be used in the construction thereof and the purpose for which the building is intended.

As to temporary and movable buildings.

(2) The Corporation shall within one month after the delivery of the plan section and specification signify in writing their approval or disapproval of the proposed building to the person proposing to erect or set up the same.

(3) The Corporation may attach to their approval any condition which they may deem proper with regard to the sanitary arrangements of such building the ingress thereto and the egress therefrom protection against fire and the period during which such building shall be allowed to stand.

(4) If any such proposed building is commenced erected or set up without such application accompanied by such plan section and

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specification or after the disapproval of the Corporation or before the expiration of the said one month without such approval or is in any respect not in conformity with the approved plan section and specification and with any condition attached by the Corporation to their approval the person who commenced erected or set up such building or if any such building is not removed within the period allowed by the Corporation or any prolongation thereof allowed by them the owner of such building shall be liable to a penalty for every such offence not exceeding forty shillings and to a daily penalty not exceeding the like amount and the Corporation may cause such building to be taken down or removed and any expense incurred by them in or about the taking down or removal of the building may be recovered in a summary manner from the owner of the building or from the person commencing erecting or setting up the same at their discretion.

(5) The following buildings and works shall be exempt from the operation of this section :—

(a) Buildings expressly exempt from the operation of the Acts or byelaws for the time being in force within the city with respect to new buildings ;

(b) Any tent not remaining for more than seven days ;

(c) Any wooden or other structure or erection of a movable or temporary character erected or set up for use during the construction alteration or repair of any building but such structure or erection shall be taken down or removed immediately after the completion of such construction alteration or repair and if not so taken down or removed the Corporation may cause the same to be taken down or removed and any expense incurred by them in or about the taking down or removal of the structure or erection may be recovered from the owner thereof or from the person erecting or setting up the same at the discretion of the Corporation ;

(d) Any wooden or other structure or erection erected or set up for the purpose of protecting or preventing the acquisition of any right of light ; and

(e) Buildings (other than a dwelling-house) erected or set up on the premises of any railway or canal company and used for the purposes of their railway or canal.

(6) When a temporary or other building referred to in this section is taken down or removed by the Corporation under the

powers of this section the Corporation may sell the materials thereof or any part of them and shall apply the proceeds of the sale to and towards payment of the costs and expenses incurred by them in relation to such building and shall pay the balance to the owner of such building.

170. Any undertaking or agreement given by or to the Corporation after the commencement of this Act to or by or on behalf of any owner of property under the provisions of section 110 (set out in the Fifteenth Schedule to this Act) of the Leeds Improvement Act 1893 shall not be binding on the successors in title to any such owner unless and until such undertaking or agreement shall have been registered under the provisions of the Yorkshire Registries Act 1884 and such undertaking or agreement shall be deemed to be an instrument entitled to be registered under the said Act.

Under-
takings and
agreements
under sec-
tion 110 of
Leeds Im-
provement
Act 1893 to
be regis-
tered.

171. Nothing in this Part of this Act or in any byelaws made under the powers of this Part of this Act shall apply to any building (not being a dwelling-house) belonging to any railway or canal company and used by such company as a part of or in connection with their railway or canal as the case may be.

Saving as to
railway and
canal com-
panies.

172. Nothing contained in this Act shall affect or apply to any building structure work or property of any kind vested in or in the occupation of His Majesty His heirs and successors either beneficially or as part of the hereditary revenues of the Crown or in trust for the public service or for public purposes or to any building structure work or property of any kind vested in or in the occupation of any Department of His Majesty's Government for public purposes or for the public service neither shall anything in this Act contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by His Majesty His heirs or successors or any such Department.

Exemption
in respect
of His
Majesty's
buildings.

PART XII.

STREETS SEWERS AND DRAINS.

PART XII. *Streets Sewers and Drains.*

173. No new street unless the Corporation otherwise allow shall be laid out of more than one hundred and twenty yards in length without an intersecting street Provided that in no case shall there be a greater length allowed than one hundred and fifty yards without an intersecting street.

Intersecting
streets.

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Sewers and
Drains.

Corporation
may define
future line
of streets
and build-
ings.

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174.—(1) The Corporation before the commencement of any new building may by notice in writing signed by the town clerk prescribe the line in which any such building fronting on or towards any street or road or intended street or road shall be erected and the same shall be erected only in accordance with the line so prescribed.

(2) Where any street or road repairable by the inhabitants at large is in the opinion of the Corporation narrow or inconvenient or without any sufficiently regular line of frontage or in which in their opinion it is necessary or desirable that the line of frontage should be altered the Corporation may from time to time prescribe and define what shall thereafter be the line of frontage to be observed on either side of such street or road. The line which in any case the Corporation propose so to prescribe and define shall be distinctly marked and shown on a plan to be signed by the town clerk and deposited with the city engineer or surveyor and such plan shall be at all reasonable times thereafter open for the inspection of the public without charge and one month at least before the Corporation formally prescribe and define the line they shall give notice in writing of the deposit of the said plan to every owner interested whose name and address they can ascertain. After such line has been prescribed no new building erection excavation or obstruction (being of a permanent character) shall be made nearer to the centre of the street or road than such line.

(3) The Corporation may and if required by the owner shall purchase the land lying between any such line as aforesaid and the existing building line of the street or road and the same when purchased shall vest in the Corporation as part of the street or road.

(4) Whenever in any of the above cases the Corporation shall require the said line to be observed and kept they shall make full compensation to the owner and other persons interested in any land for any loss or damage they may sustain in consequence of the line of frontage being set back and the Corporation shall also make to the owner of any adjoining land or building and to all other persons interested in any such adjoining land or building full compensation in respect thereof for all damage loss or injury (if any) sustained by them to such land or building by reason of the Corporation requiring the said line to be observed and kept.

(5) If after any such line has been defined and prescribed as aforesaid any person offends against the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

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(6) The provisions of this section shall not apply to any land buildings or other erections belonging or reputed to belong to the undertakers of the Aire and Calder Navigation situate in the city on the north side of Dock Street.

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175.—(1) The Corporation may alter or vary the intended position direction gradient and level of any new street for the purpose of causing it to communicate in a direct line or more direct line or at a more convenient angle or level with any street adjoining or leading or intended to adjoin or lead thereto and any person laying out such new street shall adhere to and observe the alteration or variation so fixed.

Corporation
may alter
level direc-
tion &c. of
streets &c.

(2) The Corporation may at their own expense alter the level of any street or road or sewer or drain now or hereafter to be formed laid out or made in the city or the course form or construction of any such sewer or drain in such manner and form as they think expedient.

(3) The Corporation shall make compensation for any injury arising from the exercise of the powers conferred by this section.

176. The Corporation may by resolution declare the limits at or within which any street is to be taken as beginning or ending.

Corporation
may declare
where streets
begin and end.

177.—(1) The Corporation may alter the name of any street or any part of such street The Corporation may cause the name of any street or of any part of a street to be affixed painted or otherwise marked on a conspicuous part of any building or other erection therein.

Power to
alter names
of streets.

(2) Any person who shall wilfully and without the consent of the Corporation obliterate deface obscure remove or alter any such name shall be liable to a penalty not exceeding forty shillings.

178.—(1) It shall not be lawful for the owner of any land or premises fronting adjoining or abutting upon any new or unfinished street to kerb the footway of or to lay out or construct any main sewer in such street or any part thereof but the Corporation may and if required by the owner or owners of not less than one half of the land and premises fronting adjoining or abutting on any new or unfinished street shall kerb and sewer the same.

Corporation
to kerb and
sewer new
streets.

(2) One half of the expense incurred by the Corporation in and about the laying out and construction of such sewer shall be

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paid by the Corporation and the remaining half of such expense incurred in respect of such sewer and the whole of the expense incurred by the Corporation in and about such kerbing shall be paid on demand by the owners of the land and premises fronting adjoining or abutting on such street in proportion to the extent of their respective frontages as settled by the city engineer or surveyor and notwithstanding such owners may not have required the work to be done.

(3) The Corporation shall have all such and the like powers and remedies with respect to any expenses incurred by them and payable by the owners under this section or for the recovery thereof as they have under any statutory or other enactment with respect to or for the recovery of expenses incurred by them in the execution of any works in a street not being a highway repairable by the inhabitants at large.

Power as to
materials in
streets.

179.—(1) The Corporation may remove appropriate use and dispose of any old materials existing in any street or court at the time of the execution by the Corporation of any works in such street or court unless the owners of buildings and lands in such street or court within forty-eight hours after notice so to do served on them by the city engineer or surveyor or other proper officer of the Corporation remove such old materials or their respective proportions thereof and the Corporation may if they think fit allow such sum as the city engineer or surveyor or other proper officer may fix to be the reasonable value thereof to such owners for any old materials which have been re-used or removed.

(2) Where the Corporation execute any works which they may be authorised to construct or carry out they may remove appropriate use and dispose of any stone earth soil clay or other material excavated or produced in the course or in consequence of the execution by the Corporation of such works.

Additional
powers as to
private street
expenses.

180. The Corporation shall have in addition to any other powers and remedies with respect to or for the recovery of the charges and expenses of any works carried out by them under any statutory or other enactment in a street not being a highway repairable by the inhabitants at large the following powers and remedies (that is to say):—

(1) If at any time within three months from the time of notice being given by the Corporation of the appropriation by the city engineer or surveyor of any expenses incurred by them under section 150 of the

Public Health Act 1875 or otherwise it be made to appear that such apportionment is inaccurate by reason of a miscalculation of or an error with reference to the frontage of the respective premises in the street or as to the ownership of such premises or otherwise the city engineer or surveyor may revoke or alter or amend the apportionment and if revoked may make a new apportionment in lieu thereof or (if the inaccuracy affects certain only of the owners chargeable with such charges and expenses) the surveyor may by a supplemental apportionment rectify the inaccuracy in the original apportionment so far as regards the last-mentioned owners. If a new apportionment be so made the original apportionment shall be null and void to all intents and purposes and the new apportionment shall be deemed to be the apportionment referred to in the said section. In the event of a supplemental apportionment being made as aforesaid the provisions of the said section as amended by this Act shall *mutatis mutandis* apply to and in the case of the same as if it were an original apportionment. If in any case in which an apportionment is altered or amended or a new or supplemental apportionment is made the Corporation have received from any owner his proportion or any part of his proportion of such charges and expenses they shall give credit to such owner for the amount so received as against the amount due from him under the altered or new or supplemental apportionment or shall return any surplus to him (with interest at the rate of four pounds per centum per annum) as soon as the original apportionment has been altered or amended or the new or supplemental apportionment shall have become binding and conclusive:

- (2) The Corporation shall be at liberty notwithstanding anything in the Yorkshire Registries Act 1884 to charge any charges and expenses upon the lands and premises in respect whereof such moneys are payable by depositing at the registry office for the West Riding of Yorkshire a memorandum in the form set forth in the Tenth Schedule hereto or to the like effect. Such registration shall *ipso facto* constitute a charge upon the said lands and premises for the amount of money

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so due as aforesaid together with interest thereon at a rate not exceeding five pounds per centum per annum from the date prescribed by this Act in priority to any incumbrance or charge on or affecting the same and created subsequently to the day on which the works were commenced on account whereof the expenses are payable ;

The registration shall not be affected by any proceedings at law by the Corporation for recovery of the moneys when payment has not been obtained ;

Upon satisfaction of the debt the Corporation shall without fee execute any instrument that may be necessary for releasing such land and premises from such charge ;

Any money so due as aforesaid may be recovered from any owner who may be found by the Corporation in possession of the lands or premises in respect whereof the debt has accrued or in receipt of the rents and profits thereof but without prejudice to the right of such owner to recover over against any other person who ought to have paid the same moneys :

- (3) Summary proceedings for the recovery of any such charges and expenses may be commenced at any time within one year from the date of the service of the notice of demand.

Exemption
of places of
religious
worship
from pay-
ment of
street ex-
penses.

181. The exemption made by section 151 (Relating to expenses for paving &c. private streets) of the Public Health Act 1875 in favour of the incumbent or minister of any church chapel or place exclusively used for public religious worship which is now by law exempt from rates for the relief of the poor shall extend and apply to the trustees of any such church chapel or place but the proportion of expenses in respect of which an exemption is allowed under this section shall be borne and paid by the Corporation.

Parts of
streets dis-
used.

182. Any street or part of a street which in consequence of any improvement made by the Corporation shall be no longer required for public use or for approach to any property adjoining the same shall if not belonging to the Corporation be and the same is hereby vested in the Corporation and shall in any case be freed and discharged from the public use thereof and may be sold demised or otherwise disposed of by the Corporation and the

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proceeds thereof shall be applied to the payment of moneys expended by the Corporation in the making of the improvement in question or if no such moneys be outstanding carried to the credit of the fund or rate out of which such moneys were provided.

183. The Corporation may from time to time cause such part of any street repairable by the inhabitants at large to be laid out for a carriageway and footway respectively as they think proper and may from time to time alter and re-arrange the parts so laid out respectively.

Power to set
out carriage-
way and
footway.

184. Every person desirous of forming a communication for horses cattle or vehicles across any kerbed footpath so as to afford access to any premises from a street shall give five days' notice in writing of such desire to the Corporation and shall if so required by them submit to them for their reasonable approval a plan of the proposed communication showing where it will cut the footpath and what provision (if any) is made for kerbing for gullies and for a paved crossing and the dimensions and gradients of necessary works and shall execute the works at his own expense under the supervision and to the reasonable satisfaction of the city engineer or the surveyor and in case such plan shall have been required then in accordance with the plan so approved and not otherwise.

Crossings for
horses or
vehicles &c.
over foot-
ways.

If any person drives or permits or causes to be driven any horse or vehicle across or along any footway before a communication has been made or on or along any part of any footway other than the part over which a sufficient communication has been made he shall be liable to a penalty not exceeding five pounds in addition to the amount of damage (if any) thereby occasioned and such penalty and damages shall be recovered in like manner as penalties under this Act may be recovered Provided that this section shall not apply when the land immediately adjoining such crossing or footway is used solely for agricultural purposes.

185.—(1) The pavement carriageway or footway of any street shall not be taken up or altered without the previous consent of the Corporation or the city engineer or surveyor except with and to the extent it may be necessary for making repairing or cleansing any vault or drain under such street and in such last-mentioned case such person shall give three days' notice thereof in writing to the Corporation or the city engineer or surveyor.

Breaking up
of streets.

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Drains.*

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(2) Any person who takes up any carriageway or footway in any street shall in addition to any penalty for which he may be liable in respect thereof forthwith cause the same to be properly relaid and reinstated with the same or similar materials and in the same manner as nearly as may be before the taking up or altering of the same to the reasonable satisfaction of the Corporation or the city engineer or surveyor.

(3) Any person who acts in contravention of the provisions of this section shall be liable to a penalty not exceeding five pounds and to repay to the Corporation any costs to which they may be put by reason of the taking up or altering of the carriageway or footway as aforesaid.

Recovery of
damages
caused to
footway or
carriageway
by excava-
tions.

186. If the footway or carriageway of any street belonging to or under the management of the Corporation be injured by or in consequence of any excavations or other works on lands adjoining thereto the Corporation may repair or replace the footway or carriageway injured and all damages and expenses of or arising from such injury and repair or replacement shall be paid to the Corporation by the owner of the lands on which such excavations or other works have been made or by the person causing or responsible for the injury.

Extension of
section 147
of Public
Health Act
1875 as to
bridges.

187. The provisions of section 147 of the Public Health Act 1875 shall extend to all bridges viaducts and arches and the approaches thereto and to the owners thereof or of the lands over which the same are constructed or proposed to be constructed in the same manner and to the same extent as they apply to bridges over canals railways and tramways and the approaches thereto and to the proprietors of canals railways and tramways.

Power to
Corporation
to grant
licences for
bridges over
streets.

188. The Corporation may grant to the owner or with the consent of the owner to the lessee or occupier of any premises abutting on any street repairable by the inhabitants at large a licence to use a way (exclusive or otherwise) for himself his servants and agents at all times with or without cattle horses carts and carriages by means of a bridge over such street for such term as shall be co-extensive with or less than the interest of such owner lessee or occupier in the premises in respect of which such licence shall be given but not exceeding twenty-one years on such terms or at such rent and with under and subject to such covenants conditions and agreements as to the Corporation may seem fit :

Provided that any licence given under this power shall not in any way interfere with the convenience of persons using such street or affect the rights of the owners of the property adjoining and up to the line of the street. If any person shall construct any such bridge without such licence or shall not construct or use the same in accordance with the terms and conditions of the licence he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

189. The owners or occupiers of all lands abutting upon any public street and the owners or occupiers of all lands abutting upon or adjoining any private street communicating with any public street shall so fence off channel or embank their lands as to prevent the soil and sand of such lands from falling upon or being washed or carried into any public street sewer or gully in such quantities as will obstruct the highway or choke up such sewer or gully and any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

For preventing soil and sand from being washed into streets.

For the purpose of this section "public street" means a street repairable by the inhabitants at large and "private street" means a street not so repairable.

190.—(1) No cellar arch vault oven or underground passage shall be made or constructed in or under any street so as to extend beyond the foot pavement thereof and no cellar area or cellar or other steps shall be constructed in any street either under the carriageway or the footway without the consent of the Corporation.

Penalty on construction of cellars &c. under streets.

(2) Any person who offends against this enactment shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding one pound.

191. Sections 69 and 70 of the Towns Improvement Clauses Act 1847 shall be read and have effect in the city as if the words "the first day of January 1825" were substituted for the words "the passing of the special Act."

Power for Corporation as to removal of projections.

192. Where any tree hedge or shrub overhangs any street so as to obstruct or interfere with any tramway electric wire or the light from any public lamp or to interfere with vehicular traffic or with the free passage or comfort of passengers the Corporation may serve a notice on the occupier of the premises on which such tree hedge or shrub is growing requiring him within

Trees or shrubs overhanging streets.

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seven days after such notice to lop the tree hedge or shrub so as to prevent such obstruction or interference and in default of compliance the Corporation may themselves carry out the requisition of their notice doing no unnecessary damage.

Penalty on
breaches of
Act.

193. If any person begins to make or lay out or makes or lays out any new street or builds on any land abutting on any street contrary to the provisions of this Act he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Corporation
may order
houses &c. to
be drained
by a com-
bined opera-
tion.

194. If it appear to the Corporation that two or more houses plans for which have been approved after the passing of this Act may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Corporation may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Corporation if they so decide or by the owners in such manner as the Corporation shall direct and the costs and expenses of such combined drain and of the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Corporation shall determine and if paid by the Corporation may be recovered by them from such owners Any combined drain constructed in pursuance of this section shall for the purpose of the Public Health Acts be deemed to be a drain and not a sewer.

Extension of
Public
Health Act
1875 s. 41 as
to drains.

195.—(1) Where two or more houses or other buildings belonging to the same owner or to different owners are drained by a drain common to and used for the purpose of draining such houses or buildings and whether such drain be connected with a public sewer or cesspool or not an application may be made under section 41 of the Public Health Act 1875 relating to complaints as to nuisances from drains and the Corporation may recover any expenses incurred by them in executing any works under the powers conferred on them by that section from the owner of the houses or buildings and such expenses may be recovered summarily or may be declared by the Corporation to be private improvement expenses under the Public Health Acts and may be recovered accordingly.

(2) For the purpose of this section the expression "drain" includes any drain or pipe or fall pipe or gutter common to and used for the drainage of more than one building whether such

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buildings belong to one or more owners and such drain shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

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*Streets
Sewers and
Drains.*

(3) Section 19 of the Public Health Acts Amendment Act 1890 shall cease to be in force within the city.

196.—(1) It shall not be lawful for any person to reconstruct or alter the course of any drain communicating with any sewer of the Corporation or to alter any privy into a watercloset except in accordance with the provisions of the byelaws with respect to the drainage of buildings and with respect to waterclosets earthclosets privies ashpits and cesspools in connection with buildings.

Reconstruc-
tion of
drains.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

197. Before any drain existing at the time of the passing of this Act and then not communicating with any sewer of the Corporation shall be made to communicate with any sewer of the Corporation the Corporation may require the same to be laid open for examination by the city engineer or surveyor and no such communication shall be made until the surveyor shall certify that such drain may be properly made to communicate with such sewer and the city engineer or surveyor shall cause the ground to be closed and any damage done to be made good as soon as can be and the expense of the examination shall be defrayed by the Corporation.

Corporation
may require
old drains to
be laid open
for examina-
tion by sur-
veyor before
communi-
cating with
sewers.

PART XIII.

PART XIII.
Courts.

COURTS.

198. The owner of every court shall to the reasonable satisfaction of the Corporation and within such reasonable time as they shall by any order in writing require flag or lay with suitable material specified in such order such court or such part thereof of which he shall be the owner and provide such drains or channels at such level through over or under the same or through over or under such part thereof and keep such court or such part thereof as aforesaid and also such drains or channels in good repair and cleanse the same to the reasonable satisfaction of the Corporation and if within one month after the service of the order any such owner do not comply therewith or if after notice from the Corporation any such owner do not repair and cleanse such court or such

Courts to be
flagged.

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Courts.

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part thereof as aforesaid to the reasonable satisfaction of the Corporation they may if they think fit do the necessary works and the expenses incurred by them in so doing shall be repaid to them by such owner and may be recovered from him as a civil debt summarily or in any court of competent jurisdiction.

Restriction
on erection
of any build-
ing in certain
courts.

199.—(1) No building shall except with the consent of the Corporation be erected in any court on any land on which a dwelling-house was not standing at the commencement of this Act.

(2) When in any court any building is burnt down or pulled down to or below half the front thereof such building shall if required by the Corporation be entirely pulled down and removed and shall not be rebuilt. Provided that the Corporation shall make compensation to the owner of such building land for any loss or damage sustained by him in consequence of the building being so pulled down removed and not rebuilt.

(3) Nothing in this section contained shall be deemed to affect any other powers of the Corporation with respect to buildings in courts.

Entrances to
courts not to
be closed &c.
without con-
sent of Cor-
poration.

200. The entrance to any court shall not at any time after the commencement of this Act be closed or narrowed or built over or the height or headway thereof lowered without in each case the consent of the Corporation in writing.

PART XIV.
*Dangerous
Places.*

PART XIV.

DANGEROUS PLACES.

Fencing
lands adjoin-
ing streets
in certain
cases.

201. If any land other than land now forming part of any common adjoining any street is allowed to remain unfenced or the fences thereof are allowed to be or remain out of repair and such land is in the opinion of the Corporation owing to the absence or inadequate repair of any such fence a source of danger to passengers or is used for any immoral or indecent purposes or for any purpose causing inconvenience or annoyance to the public then after the expiration of fourteen days' notice from the town clerk to the owner or occupier of the same or without any notice if the Corporation are unable after diligent inquiry to discover the name and place of abode of such owner or occupier the Corporation may cause the same to be fenced or may cause the fences to be repaired in such manner as they think fit and the expenses thereby incurred may be recovered from such owner or occupier summarily as a civil debt.

202. With respect to the repairing or enclosing of, dangerous places the following provisions shall have effect (namely):—

- (1) If any building wall steps structure or other thing or any well excavation reservoir pond stream dam or bank is for want of sufficient repair protection or enclosure dangerous to the passengers along any street or foot-path the Corporation may order the owner within the period specified in such order to repair remove protect or enclose the same so as to prevent any danger therefrom :

- (2) If after service of the order on the owner he shall neglect to comply with the requirements thereof within the prescribed period the Corporation may cause such works as they think proper to be done for effecting such repair removal protection or enclosure and the expenses thereof shall be payable by the owner and may be recovered summarily as a civil debt :

- (3) Nothing in section 75 of the Towns Improvement Clauses Act 1847 shall render it incumbent upon the surveyor to cause a hoard or fence to be put up in the case of a dangerous chimney :

- (4) The provisions of this section shall not extend to any railway canal or navigable river or to any cut dock basin lock towing-path street bridge yard wharf or other work belonging to any railway canal or navigation.

PART XV.

HOARDINGS ADVERTISEMENTS AND SKY SIGNS.

203.—(1) Every hoarding or similar structure in or abutting on or adjoining any street shall be securely erected and maintained.

(2) It shall not be lawful to erect any such hoarding or similar structure to be used for advertising purposes to a greater height than fifteen feet above the level of such street without the consent of the Corporation and such consent may be given subject to such conditions as to the submission of a plan and elevation and as to the dimensions and maintenance of such hoarding as the Corporation may determine.

(3) The owner or other person using any such hoarding or similar structure for advertising purposes whether erected before or after the commencement of this Act shall at all times hereafter

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keep and maintain the same in proper and safe repair and condition and in the event of any nuisance being created in any street by reason of the falling off of any papers affixed for advertising purposes to such hoarding shall forthwith remove and clear away such nuisance.

(4) Any person who acts in contravention of any of the provisions of this section or who violates any condition or the terms of any consent given in pursuance of the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(5) Any consent or condition under this section may be under the hand of the town clerk or the city engineer or surveyor.

(6) Any person aggrieved by the refusal of the Corporation to grant such consent or by the conditions attached to such consent may appeal to a court of summary jurisdiction after the expiration of two clear days after the decision of the Corporation is notified to him in writing provided he give twenty-four hours' written notice of such appeal and the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs such costs to be recoverable summarily as a civil debt.

(7) Provided that this section shall not apply to any hoarding or similar structure affixed to any railway station or premises of any railway company for the purposes of any such company.

Restriction
on advertis-
ing vehicles
&c.

204. It shall not be lawful in any street in the city to use any vehicle exclusively or principally for the purpose of displaying advertisements without the consent of the Corporation which consent shall be in writing under the hand of the town clerk and may contain such terms and conditions as the Corporation think fit Any person acting in contravention of the provisions of this section or of the terms and conditions (if any) of such consent shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Any person aggrieved by the refusal of the Corporation to grant such consent or by the terms and conditions imposed may appeal to a court of summary jurisdiction after the expiration of two clear days after the decision of the Corporation is notified to him in writing provided he gives twenty-four hours' written notice of such appeal and the grounds thereof to the town clerk and the court shall have power to make such order as they think

fit and to award costs such costs to be recoverable summarily as a civil debt.

205.—(1) It shall not be lawful to erect or fix to upon or in connection with any building or erection any sky sign and it shall not be lawful to retain any existing sky sign so erected or fixed for a longer period than three years after the commencement of this Act nor during that period except with the licence of the Corporation and in the event of such licence being granted then only for such period not exceeding three years from the commencement of this Act and under and subject to such terms and conditions as shall be therein prescribed :

Regulations
as to sky
signs.

Provided that in any of the following cases a licence of the Corporation under this subsection shall become void (namely) :—

- (a) If any addition to any sky sign be made except for the purpose of making it secure under the direction of the city engineer or surveyor ;
- (b) If any change be made in the sky sign or any part thereof ;
- (c) If the sky sign or any part thereof fall either through accident decay or any other cause ;
- (d) If any addition or alteration be made to or in the house building or structure on over or to which any sky sign is placed or attached if such addition or alteration involves the disturbance of the sky sign or any part thereof ;
- (e) If the house building or structure over on or to which the sky sign is placed or attached become unoccupied or be demolished or destroyed :

Provided also that if any sky sign be erected or retained contrary to the provisions of this Act or after the licence for the erection maintenance or retention thereof for any period shall have expired or become void it shall be lawful for the Corporation to take proceedings for the taking down and removal of the sky sign in the same manner and with the same consequence as to recovery of expenses and otherwise in all respects as if it were an obstruction within the meaning of section 69 of the Towns Improvement Clauses Act 1847.

(2) Any person acting in contravention of any of the provisions of this section or of the terms and conditions (if any) of any

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approval licence or consent under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

For the purposes of this section—

“Sky sign” means any word letter model sign device or representation in the nature of an advertisement announcement or direction supported on or attached to any post pole standard framework or other support wholly or in part upon over or above any house building or structure which or any part of which sky sign shall be visible against the sky from some point in any street or public way and includes all and every part of any such post pole standard framework or other support :

The expression “sky sign” shall also include any balloon parachute or other similar device employed wholly or in part for the purposes of any advertisement or announcement on over or above any house building structure or erection of any kind or on or over any street or public way but shall not include—

(1) Any flagstaff pole vane or weathercock unless adapted or used wholly or in part for the purpose of any advertisement or announcement ;

(2) Any sign or any board frame or other contrivance securely fixed to or on the top of the wall or parapet of any building or on the cornice or blocking-course of any wall or to the ridge of a roof Provided that such board frame or other contrivance be of one continuous face and not open work and do not extend in height more than three feet above any part of the wall or parapet or ridge to against or on which it is fixed or supported ;

(3) Any word letter model sign device or representation as aforesaid relating exclusively to the business of a railway company or canal company and as regards a railway company placed wholly upon or over any railway railway station yard platform or station approach belonging to a railway company and as regards any canal company placed wholly over any canal wharf or yard belonging to a canal company and so placed in each case that it cannot fall into any street or public place.

PART XVI.

STREET AND OTHER POLICE OFFENCES.

206. Notwithstanding anything contained in the Highway Act 1835 or in the Town Police Clauses Act 1847 no person shall act as the driver of or have the care of more than one cart or carriage each drawn by an animal in any street in the city within a radius of one mile of the junction of Commercial Street with Briggate and no person shall fasten or allow to be fastened to the rear of any such cart or carriage any other cart or carriage drawn by an animal or any animal drawing a cart or carriage and any person acting in contravention of this enactment shall be liable to a penalty not exceeding twenty shillings for each offence.

No person to have care of more than one cart.

207. Every person shall be liable to a penalty not exceeding forty shillings who in any street commits any of the following offences (that is to say) :—

Penalty on certain offences in streets.

- (1) On Sunday cries or calls out for sale any newspaper journal or serial or advertises by any cry or call any newspaper journal or serial or rings any bell or uses any horn whistle or noisy instrument or creates any noise whatsoever or howsoever for the purpose of selling any newspaper journal or serial or attracts or attempts to attract the attention of any person or persons by means of any noise whatsoever whether vocal or otherwise for the purposes aforesaid or any of them :
- (2) Is guilty of any disorderly or indecent conduct :
- (3) Carries or conveys anything along the footway in such manner as to be dangerous to the public :
- (4) Is assembled with one or more other persons at any time of the day or night for the purpose of assaulting insulting or annoying foot passengers and either fails to comply with the direction or request of a constable to move away so as to leave the footway clear and unobstructed or assaults insults or annoys any foot passenger :
- (5) Rides or drives so as to endanger the life or limb of any person or to the common danger of the passengers in the street :

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- (6) Draws any timber stone or other weighty article without the same being placed on or suspended from a wheeled carriage proper for that purpose :
- (7) Suffers any goods or merchandise or any coal or fuel intended for any house to remain in any street for a longer period than is necessary for the housing or removing thereof :
- (8) Conveys or carries or causes to be conveyed or carried the carcase or any part of the carcase of any newly slaughtered cattle without a sufficient cloth covering to the same :
- (9) Uses any threatening abusive or insulting words or behaviour with intent to provoke a breach of the peace or whereby a breach of the peace may be occasioned :
- (10) Blows any horn or uses any other noisy instrument for the purpose of calling persons together or of announcing any show or entertainment or for the purpose of hawking selling distributing or collecting any article whatsoever or of obtaining money or alms.

Penalty on
certain other
offences.

208. Every person shall be liable to a penalty not exceeding forty shillings who commits any of the following offences (that is to say) :—

- (1) Is guilty in any police office or police station-house or public library or any public building or place of any disorderly or indecent conduct :
- (2) Without the consent of the owner or occupier by himself or his agent affixes any poster bill or other paper upon any building wall fence or paling in view of any street :
- (3) Without the consent of the owner or occupier by himself or his agent writes upon soils defaces or marks any building wall fence or paling in view of any street with chalk or paint or in any other way whatsoever or wilfully breaks destroys or damages any part of any such building wall fence or paling or any fixture or appendage thereunto :
- (4) Burns within a distance of one hundred yards from any dwelling house any rags or any offensive substance so that the same shall be a nuisance :

- (5) Throws or causes to fall any dirt litter ashes or any carrion fish offal or rubbish into any sewer pipe or drain or into any well stream or watercourse pond or reservoir for water.

209. Every person shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings who commits any of the following offences (namely):—

Penalty on
certain
offences with
continuing
penalty.

- (1) Every person who discharges any smoke or steam into any street from any building (otherwise than from the top thereof) or from any building within twelve yards of the street at a less height than twenty feet above the level of such street or who constructs or uses any steam pipe flue or funnel (not being the steam pipe or funnel of a locomotive engine) so that the condensed water or moisture must usually fall into any street:
- (2) Every owner or occupier of any building containing any willowing or other machine for opening or cleaning wool woollen waste flax cotton cotton waste or other fibrous substance or any grinding or other machine for grinding or cleaning woollen or cotton rags cards or other instruments of manufacture who suffers the dirt dust or refuse produced in the process of opening cleaning or grinding as aforesaid to fall into any street or court or on any building in any street or court or on any yard garden or inclosure belonging thereto:
- (3) Every person who shall hoist lower take in or deliver any cask puncheon barrel sack bag or other thing into or from any warehouse building cellar or vault within the city without proper and sufficient ropes and other tackle in good order and condition and fit for such hoisting lowering and taking in or delivering and without slinging or otherwise effectually securing such cask puncheon barrel sack bag or other thing so as to prevent the same from slipping breaking away or falling:
- (4) Every owner or occupier of any warehouse building or room therein or of any cellar or vault within the city who shall wilfully or negligently permit or suffer any cask puncheon barrel sack bag or other thing to be hoisted lowered taken in or delivered out of any warehouse building cellar or vault without having proper and sufficient ropes and other tackle in good order and

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condition Provided that no such owner or occupier shall be liable to the said penalty unless it was his duty to provide and have or keep sufficient rope and tackle for any of the purposes aforesaid and he shall be proved to have failed to provide or have or keep the same :

- (5) Every person who with two or more other persons is assembled in any street or streets for purposes of betting.

Betting.

210. Any person who shall frequent and use any street or any open space in the city either on behalf of himself or of any other person for the purpose of bookmaking betting or wagering or agreeing to bet or wager or paying or receiving or settling any bet or wager or receiving or paying any money as or in respect of any bet or wager shall be liable to a penalty not exceeding for the first offence five pounds for the second offence ten pounds and for the third and every subsequent offence fifty pounds.

Provisions as
to regula-
tions of street
traffic.

211. The Corporation may from time to time make regulations with respect to those streets to be specified in the regulations in which tramways are laid or which are specially liable to be obstructed by reason of the amount and nature of the traffic—

- (a) Prescribing the line to be kept at any street crossing by all persons riding or driving ; and
- (b) Requiring the drivers of heavy or slow-moving vehicles to keep their vehicles to a particular portion of the street.

All regulations under this section shall be subject to the approval of the Secretary of State and shall be advertised in two successive weeks in at least two local newspapers published and circulating in the city.

Any person who shall contravene any such regulation after warning given by word or signal by a police constable stationed in the street to direct the traffic shall be liable to a penalty not exceeding forty shillings.

Regulations
for street
traffic.

212.—(1) The lord mayor may make regulations for the route to be observed by all persons vehicles and cattle and for preventing obstruction of the streets during the holding of the assizes or in times of public processions public meetings public rejoicings or illuminations and in cases when the streets are thronged or liable to be obstructed and may give directions to the constables for keeping order and for preventing any obstruction of the streets in

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the immediate neighbourhood of the town hall the police court the theatres and other places of public resort.

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(2) If any person is guilty of any breach of such regulations he shall for every such offence forfeit not exceeding forty shillings.

213. The Corporation may direct and prescribe the streets in which and the manner according to which the leading or driving of animals shall be permitted within the city Provided that the streets which it shall be lawful for the Corporation so to prescribe shall not be such as would prevent the passage of cattle between any market and any railway station in the city or any place beyond the boundary of the city when such animals are merely passing between such market and railway station or other place as aforesaid and the Corporation shall be bound to allow at all times a reasonably short and efficient route or routes for the passage of such animals Provided also that any such directions shall only operate between the hours of eight in the morning and nine in the evening and shall not prevent the owner of any animals driving the same to his own premises and nothing in this enactment contained shall authorise the Corporation to interfere with the driving of any animals to any slaughter-house so long as the slaughtering of such animals therein is lawful.

As to leading or driving cattle.

214. It shall not be lawful for any person without the consent of the Corporation first obtained which consent shall not be unreasonably withheld to lay any building materials rubbish or other thing or make any excavation on or in any street and when with such consent any person lays any building materials rubbish or other thing or makes any excavation on or in any street he shall at his own expense cause the same to be sufficiently fenced and a sufficient light to be fixed in a proper place on or near the same and to be continued every night from sunset to sunrise and shall remove such materials rubbish or thing or fill up such excavation (as the case may be) when required by the Corporation and if any person fails to comply in any respect with the requirements of this enactment he shall be liable to a penalty not exceeding forty shillings and the Corporation may remove any such materials rubbish or thing or fill up such excavation (as the case may be) and recover the expenses from the offender summarily.

Restrictions on deposit of building materials and excavations.

215.—(1) Any market of the Corporation and any park and any unfenced ground adjoining or abutting on any street shall for the purposes of the Vagrancy Act 1824 and of any Act for the time

Markets parks and unfenced ground to be

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streets for
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poses.

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being in force altering or amending the same be deemed to be an open and public place and also shall be deemed to be a street for the purposes of section 29 of the Town Police Clauses Act 1847 and also for the purposes of so much of section 28 of that Act as relates to the following offences :—

Every person who suffers to be at large any unmuzzled ferocious dog or urges any dog or other animal to attack worry or put in fear any person or animal :

Every person who rides or drives furiously any horse or carriage or drives furiously any cattle :

Every common prostitute or night-walker loitering and importuning passengers for the purpose of prostitution :

Every person who wilfully and indecently exposes his person :

Every person who publicly offers for sale or distribution or exhibits to public view any profane indecent or obscene book paper print drawing painting or representation or sings any profane or obscene song or ballad or uses any profane or obscene language :

Every person who wantonly discharges any firearm or throws or discharges any stone or other missile or makes any bonfire or throws or sets fire to any firework :

Every person who throws or lays any dirt litter or ashes or nightsoil or any carrion fish offal or rubbish on any street.

(2) Any field or ground adjoining or abutting upon any street not being part of the curtilage of a house and not being separated from the street by a close fence not less than six feet in height shall be deemed to be an open and public place for the purposes of section 3 of the Vagrant Act Amendment Act 1873.

Regulations
respecting
public-
houses to ex-
tend to other
houses for
public resort.

216.—(1) Every person not being a licensed victualler or a person licensed to sell beer by retail to be drunk on the premises who shall have or keep any house shop room cellar or vault or place of public resort within the city wherein tea or coffee provisions liquors or refreshments of any kind shall be sold drunk used or consumed (whether the same shall be kept or retailed therein or procured elsewhere) and who shall wilfully or knowingly permit drunkenness or other disorderly conduct in such house shop room vault or place or knowingly suffer any unlawful games or any gaming whatsoever therein or knowingly permit or suffer prostitutes

or persons of notoriously bad character to meet together and remain therein shall for every such offence be liable to a penalty of not more than five pounds.

(2) It shall be lawful for all constables and officers of police at all times to enter into any house shop room cellar or vault within the city where tea or coffee or refreshments or provisions of any kind shall be so sold drunk used or consumed as aforesaid the owner or keeper of which house shop room cellar or vault shall within twelve months previous to such entry have been convicted of knowingly permitting or suffering common prostitutes reputed thieves or drunken or idle and disorderly persons to assemble at the same and continue therein or to play therein at any game with cards or dice and if any person having or keeping any such house shop room cellar or vault or any servant or other person in his employ or by his direction shall in such case refuse to admit or shall not on application admit such constable or officer into such house shop room cellar or vault or upon such premises every person so offending shall for every such offence forfeit a sum not exceeding forty shillings.

PART XVII.

HACKNEY CARRIAGES.

217.—(1) For the purpose of the provisions of the Corporation Acts and Orders and of the Town Police Clauses Acts 1847 and 1889 with respect to hackney carriages the city shall be the prescribed distance except with respect to any hiring taking place within the city in which case ten miles from the junction of Commercial Street with Briggate shall be the prescribed distance And in the case of any such hiring within the city any offence against any byelaw of the Corporation whether such offence shall have been committed within the city or not may be brought before and determined by any justice or justices of the peace having jurisdiction in the city.

Limits of
Act and
power to
make bye-
laws under
this Part of
Act.

(2) The powers of the Corporation to make byelaws under the said Acts with respect to hackney carriages shall extend and apply to the following provisions (namely) :—

For securing the fitness of animals to be allowed to draw any hackney carriage and for the removal therefrom of unfit animals :

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PART XVII.
*Hackney
Carriages.*

For the making of and securing the compliance with a rota regulating the days and times during which any particular hackney carriage may stand at any particular stand in the city and for the alteration thereof from time to time :

For preventing the carrying in or upon hackney carriages of dead bodies or of persons having any infectious or contagious disease.

Stands for
hackney car-
riages.

218.—(1) The Corporation may by resolution without any further authority fix and determine the stands for hackney carriages in the city and the number and description of hackney carriages which may stand thereat and may vary and alter such stands and the number of hackney carriages to be allowed at any stand and may regulate and prescribe the days or times during which any hackney carriage may stand at any particular stand.

The Corporation shall cause to be distributed in the city and to be affixed on the outside of the town hall such notice as they deem sufficient of every order or resolution under this section and no such order or resolution shall take effect until after the expiration of one month from the publication thereof.

(2) Every person who after the expiration of one month from such publication uses any place as a stand for hackney carriages other than such as may have been fixed and published as aforesaid or places on any stand so fixed and published any hackney carriage save in accordance with the provisions of any such order or resolution shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

Signature of
and charge
for licences.

219. Any licence for a hackney carriage or omnibus or for the driver or conductor of a hackney carriage or omnibus may be signed by the lord mayor or town clerk and need not be under the seal of the Corporation.

The fee for a driver's or a conductor's licence may be any sum not exceeding five shillings.

As to car-
riages plying
for hire at
railway
stations.

220. Sections 38 to 68 of the Town Police Clauses Act 1847 as amended by the Town Police Clauses Act 1889 incorporated with the Public Health Act 1875 shall be deemed to extend to every hackney carriage used in standing or plying for hire at any railway station or at any yard adjoining to or connected with such railway station within the city Provided that nothing in this Act contained shall extend to or include any omnibus belonging to or

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hired or used by any railway company for conveying passengers and their luggage to or from any railway station of that company and not standing or plying for hire within the prescribed distance Provided also that nothing in this Act shall empower the Corporation to fix the site of the stand or starting place of any omnibus in any railway station or in any yard belonging to a railway company except with the consent of the railway company owning such station or yard.

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PART XVII.
*Hackney
Carriages.*

PART XVIII.

MARINE STORE DEALERS BROKERS &c.

PART XVIII.
*Marine Store
Dealers
Brokers &c.*

221.—(1) Every person who shall carry on business as a broker or dealer in old metals or as a dealer in marine stores shall register his name and every place of business warehouse store and place of deposit occupied or used by him for the purpose of such business at the town hall in a book to be kept by the Corporation for the purpose.

Registration
of marine
store dealers
and others.

(2) Every person who after the expiration of one month from the commencement of this Part of this Act shall carry on such business without having so registered shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

222. For every registration under this Part of this Act there shall be paid to the Corporation such fee not exceeding five shillings as the Corporation shall direct.

Fee for
licence.

223.—(1) Every person so carrying on business as aforesaid shall correctly enter in a book to be kept by him for that purpose the description and price of all articles purchased or otherwise acquired by him and the name address and occupation of the person from whom the same is purchased or otherwise acquired.

Entry in
books of
articles pur-
chased.

(2) If a person so carrying on business neglect or refuse to keep such book or to make such entries he shall be liable to a penalty not exceeding five pounds.

224. The Corporation their officers and servants and persons authorised in that behalf by the Corporation shall have free access at all reasonable times to every place of business warehouse store and place of deposit required by this Part of this Act to be registered to inspect the same and to inspect the books by this Part of this Act required to be kept and every person who shall prevent hinder or obstruct any officer servant or person so authorised in the

Power to
inspect
places of
business &c.

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PART XVIII.
*Marine Store
Dealers
Brokers &c.*

Disqualifi-
cation for
registration.

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execution of his duty under this section shall be liable for every such offence to a penalty not exceeding forty shillings.

225. Any person may by order of any court of summary jurisdiction before whom such person shall be convicted of any offence which in the opinion of the court shall render it expedient that such person should be so disqualified be disqualified for any period named in such order from being and he shall accordingly not be entitled to register any place of business warehouse store or place of deposit under the provisions of this Part of this Act.

Saving for
licensed
pawnbrokers
and others.

226. Nothing in this Part of this Act contained shall be deemed to affect persons carrying on the business of pawnbrokers and duly licensed for that purpose.

PART XIX.
*Music and
Dancing
Licences.*

PART XIX.

MUSIC AND DANCING LICENCES.

Power to
licence places
for music
and dancing.

227.—(1) No house room garden or other place whether or not licensed for the sale of wine spirits beer or other fermented or distilled liquors shall be kept or used for public dancing singing music or other public entertainment of the like kind without a licence for one or more of the said purposes for which the same is to be used first obtained from the Corporation and for the registration thereof a fee of five shillings shall be paid by the person applying therefor.

(2) The Corporation may at any quarterly or monthly meeting of the council or at any meeting specially called for the purpose grant licences to such persons as they shall think fit to keep or use houses rooms gardens or places for all or any of the purposes aforesaid upon such terms and conditions and subject to such restrictions as they by the respective licences determine.

(3) Every licence shall be in force for one year or for such shorter period as the Corporation on the grant of the licence shall determine but subject to revocation under the powers of this Act.

(4) The Corporation may at any such meeting as aforesaid transfer any such licence to such person as they think fit.

(5) A person applying for any such licence or for the transfer of any such licence shall give fourteen days' notice to the town clerk of his intended application.

(6) There shall be affixed and kept up in some conspicuous place on the door or entrance of such house room garden or place

kept or used for any of the said purposes and so licensed as aforesaid an inscription in large capital letters in the words following "Licensed pursuant to Act of Parliament for" with the addition of words showing the purpose or purposes for which the same is licensed and no such house room garden or place kept or used for any of the said purposes although licensed as aforesaid shall be open or kept opened for any of the said purposes except on the days and between the hours stated in the licence.

(7) The affixing and keeping up of such inscription as aforesaid and the said limitation in point of time shall be inserted in and made conditions of every such licence.

(8) Any person who commits a breach of any such terms and conditions as aforesaid or of any of them shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds and the licence shall be liable to be revoked by the Corporation.

(9) No appeal shall lie from any decision of the Corporation under this section.

(10) The Corporation or the lord mayor may if and as they or he shall think fit grant to any person applying for the same an occasional licence to keep or use any house room or garden or other place for any purpose mentioned in the preceding paragraphs of this section for any period not exceeding fourteen days which they or he shall specify in such licence notwithstanding that no notice shall have been given to the town clerk as required thereby and the provisions of the said paragraphs with any necessary modifications shall apply to such occasional licences.

(11) The person occupying or rated as the occupier of any house room garden or place which is kept or used for public dancing singing music or other public entertainment of the like kind without a licence under this Act shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

PART XX.

INFECTIOUS DISEASES.

PART XX. *Infectious Diseases.*

228. Every dairyman supplying milk within the city from premises whether within or beyond the city shall notify to the medical officer of health all cases of infectious disease among persons engaged in or in connection with his dairy as soon as he becomes aware or has reason to suspect that such infectious

Dairymen to notify infectious disease existing among their servants &c.

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PART XX.
*Infectious
Diseases.*

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Prohibition
on infected
persons
carrying on
business.

disease exists and any dairyman who makes any default in so doing shall be liable to a penalty not exceeding forty shillings.

229. No person suffering from an infectious disease shall milk any animal the milk of which is intended for consumption within the city or pick fruit intended for consumption within the city or engage in any trade or business connected with food intended for consumption within the city or carry on any trade or business in such a manner as to be likely to spread infectious disease within the city and if he does so he shall be liable to a penalty not exceeding forty shillings.

Compensa-
tion to dairy-
men.

230. If any dairyman shall at the request of the Corporation stop his milk supply within the city on account of the spread or suspected spread of infectious disease or the probability that the consumption of such milk may cause tuberculosis to persons residing within the city the Corporation may make compensation to him for any loss occasioned by such stoppage and any such compensation may be paid out of the consolidated fund or rate.

Medical offi-
cer of health
may require
dairymen to
furnish lists.

231. If the medical officer of health shall have reasonable cause to believe that any person in the city is suffering from infectious disease attributable to milk supplied within the city he may by notice in writing require every person supplying milk to the person so suffering or to the house of which he is an inmate to furnish him with a list of all the farms dairies or places from which such person derives his supply of milk or from which he has derived his supply during the last six weeks and a list of the persons to whom he has within such six weeks supplied milk within the city and the Corporation shall pay to him for every such list the sum of sixpence and after the rate of sixpence for every twenty-five names contained therein and every such person failing to comply with such request shall for each such offence be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Persons
engaged in
washing or
mangling
clothes to
furnish lists
of owners of
clothes in
certain cases.

232. Whenever it shall be certified to the Corporation by the medical officer of health that it is desirable with a view to prevent the spread of infectious disease that they should be furnished with a list of the customers of any person earning a livelihood or deriving gain by the washing or mangling of clothes the Corporation may require such person to furnish to them a full and complete list of the names and addresses of the owners of clothes for whom such person washes or mangles or has washed or mangled during the past six weeks and such person shall furnish such list

accordingly and the Corporation shall pay to him for every such list the sum of sixpence and at the rate of sixpence for every twenty-five names contained therein and any person who shall wilfully or knowingly offend against this enactment shall for each such offence be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

233. If any person shall at the request of the Corporation or of the medical officer of health stop his employment for the purpose of preventing the spread of infectious disease the Corporation may make compensation to him for any loss he may sustain by reason of such stoppage.

Compensation to persons ceasing employment.

234. No person shall take out of any public or lending library any book for use in any house in which there is a person suffering from infectious disease and no person shall return to any public or lending library any book which has been to his knowledge exposed to infection from any infectious disease but shall at once give notice that it has been exposed to infection to and leave the book at the office of the inspector of nuisances who shall cause the same to be disinfected and then returned to the librarian. If any person offends against this enactment he shall be liable to a penalty not exceeding forty shillings.

Protection against infection of books in lending library.

235. The provisions of section 126 of the Public Health Act 1875 shall extend and apply to any person who being in charge of a person suffering from any dangerous infectious disorder permits such sufferer to expose himself without proper precautions against spreading the said disorder in any street public place shop inn or public conveyance within the city or to enter any public conveyance within the city without previously notifying to the owner conductor or driver thereof that he is so suffering.

Exposure of infected persons.

236. It shall not be lawful to hold any wake over the body of any person who has died of any infectious disease and the occupier of any house or premises or part of a house or premises who permits or suffers any such wake to take place in such house or premises or part of a house or premises and every person who with the knowledge of this prohibition attends to take part in such wake shall be liable to a penalty not exceeding forty shillings.

Wake not to be held over body of person dying of infectious disease.

237. No person being the parent or having care or charge of a child who is or has been suffering from infectious disease shall after a notice from the medical officer of health that the child is not to be sent to school permit such child to attend school

Child suffering from infectious disease not to attend school.

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*Infectious
Diseases.*

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without having procured from the medical officer of health a certificate (which shall be granted free of charge upon application) that in his opinion such child may attend without undue risk of communicating such disease to others.

If any person offends against this enactment he shall be liable to a penalty not exceeding forty shillings.

Power to
medical
officer to ex-
amine school
children.

238. The medical officer of health may enter any public elementary school within the city at all reasonable times and examine the scholars attending the same and may exclude from attendance thereat for such period as he shall consider requisite any scholar who in his opinion is suffering from infectious disease or is likely to spread infection.

The medical officer of health shall upon the exclusion of any scholar in manner aforesaid give notice thereof in writing to the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends and shall send a copy of such notice to the parent or guardian of the scholar.

Any person who shall obstruct the medical officer of health in carrying into effect the provisions of this section or who shall permit any scholar to attend school after he shall have been excluded as aforesaid and before the expiration of the period of exclusion shall be liable to a penalty not exceeding forty shillings.

Persons may
be removed
from infected
houses.

239. If the Corporation or the medical officer of health deem it necessary to remove from any house or part thereof all or any of the residents not being themselves sick on account of the existence or recent existence therein of infectious disease or for the purpose of disinfecting such house or part thereof they may make application to a justice and the justice if satisfied of the necessity of such removal may grant a warrant authorising the Corporation or the medical officer of health to remove such residents and imposing such conditions as to time and otherwise as to him may seem fit. Provided always that no such warrant shall be necessary when the removal is carried out with the consent of any such resident or his parent or guardian. The Corporation shall and they are hereby empowered to provide free of charge temporary shelter with any necessary attendants for such persons while prevented from returning to such house or part thereof.

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240.—(1) The occupier of any building in the city which is used for human habitation and in which there is or has been any person suffering from a dangerous infectious disease shall on the application of the medical officer of health at any time during the illness of such person or within six weeks from the occurrence of such illness furnish such information within his knowledge as the medical officer of health may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

PART XX.
*Infectious
Diseases.*

Penalty on
withholding
information
from medical
officer of
health.

(2) Any occupier refusing to furnish such information or knowingly furnishing false information shall be liable on summary conviction to a penalty not exceeding forty shillings.

(3) "Occupier" shall have the same meaning as in the Infectious Disease (Notification) Act 1889.

241. The Corporation may provide or contract with any person or persons to provide nurses for attendance upon any persons suffering from any infectious disease within the city and may charge a reasonable sum for the service of any nurse provided by them.

Corporation
may provide
nurses.

242. Public notice of the provisions of this Part of this Act shall be given forthwith after the commencement of this Act by advertisement in two newspapers published or circulating in the city and by a notice affixed outside the town hall and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can be reasonably ascertained. Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section have been complied with.

Public notice
to be given
of provisions
of Part XX.
of Act.

PART XXI.

SANITARY PROVISIONS.

PART XXI.
*Sanitary
Provisions.*

243.—(1) The Corporation may order the owner or occupier of any hotel tavern inn public-house beerhouse eating-house or other such place to provide and maintain in or near some convenient part of their premises such separate urinals and closet accommodation as shall be reasonably necessary for the use and accommodation of the occupiers of and the visitors to such premises.

Provision of
urinals for
hotels and
public-
houses.

(2) If any person fails herein for the space of two months next after notice of such order he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding five shillings.

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(3) All such urinals shall be cleansed and kept cleansed by the occupier of the house or place to which they belong and in default thereof such occupier shall be liable to a penalty not exceeding forty shillings for every such offence.

(4) This section shall not apply to any railway station refreshment room.

Corporation
may require
offensive
urinals &c. to
be removed.

244. If any urinal or other sanitary convenience now or hereafter opening on any street shall be so placed or constructed as to be a nuisance or offensive to public decency the Corporation by notice in writing may require the owner to remove such urinal or convenience or otherwise to reconstruct the same in such a manner or with such materials as may be required to abate the nuisance and remove the offence against public decency Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

As to closet
accommoda-
tion.

245.—(1) Notwithstanding anything in the Public Health Acts or in any local Acts or byelaws in force within the city and when a sewer and water supply sufficient for the purpose are reasonably available all new buildings erected within the city shall be provided with proper and sufficient waterclosets.

(2) On the erection of any new building within the city and when a sewer and water supply sufficient for a watercloset are not reasonably available the Corporation may by written notice require one or more proper and sufficient earthclosets or privies and ashpits to be provided at or in connection with such building.

(3) Any person offending against any requirement of the Corporation under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(4) The Corporation may make byelaws with respect to waterclosets and may by means of such byelaws prescribe the description or nature size materials position and level thereof and of the apparatus and the manner of flushing the same and the means to be provided for protection of the same from frost The Corporation may also make byelaws as to the description nature size material position and level of all other closet accommodation.

Conversion
of existing
accommoda-
tion into
watercloset.

246.—(1) When a sewer and water supply sufficient for the purpose are reasonably available the Corporation may require any existing closet accommodation (other than a watercloset) provided at or in connection with any building to be altered so as to

be converted into a watercloset which shall comply with the bye-laws for the time being in force and shall communicate with a sewer and they may also require a separate receptacle for ashes and house refuse to be provided at or in connection with such building.

(2) If the owner of any such building fail in any respect to comply with a notice from the Corporation under this section the Corporation may at the expiration of a time to be specified in the notice (not being less than twenty-one days after the service of the notice) do the work specified in such notice and may recover from the owner the expenses incurred by the Corporation in so doing :

Provided that if in any case such alteration shall be required in respect of any existing closet accommodation which prior to the service of the notice under this section shall not have been certified by the medical officer of health to be insufficient for the necessities of the inhabitants of the building or to be in such a state as to create a nuisance or to be injurious to health then the Corporation shall bear and pay such sum towards the expenses incurred by them (not being less than one-half thereof) as they may consider just and proper according to the circumstances and the remainder of the expenses shall be borne by the owner.

(3) The Corporation may contribute towards the expenses incurred in making any alteration of any closet accommodation in pursuance of this section in any case in which they may not be required to bear any part of such expense.

(4) The notice under this section shall state the effect of the provisions of this section.

247.—(1) Where any person deems himself aggrieved by any requirements of the Corporation under the two last preceding sections or disputes the reasonableness of the expenses charged to him by the Corporation under such sections such person may within fourteen days after the service of notice of the requirement or of a demand for payment of the expenses appeal to a court of summary jurisdiction and the court may make such order in the matter as to them may seem equitable and the order so made shall be binding and conclusive on all parties :

Appeal
under two
last pre-
ceding sec-
tions.

Provided nevertheless that the right of appeal subsequent to the service of a demand for payment shall be restricted to the ground of the reasonableness of the amount of the expenses and the appellant shall be precluded from raising at that stage any other question.

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*Sanitary
Provisions.*

(2) Pending the decision of the court upon such appeal the Corporation shall not be empowered to execute any works included in the notice and any proceedings which may have been commenced for the recovery of such expenses shall be stayed.

Defining the
establishing
of a new
business.

248. For the purposes of section 112 of the Public Health Act 1875 a trade business or manufacture shall be deemed to be established anew not only if it is established newly but also if it is removed from any one set of premises to any other premises or if it is renewed on the same set of premises after having been discontinued for a period of six months or upwards or if any premises on which it is for the time being carried on are enlarged without the sanction of the Corporation but a trade business or manufacture shall not be deemed to be established anew on any premises by reason only that the ownership of such premises is wholly or partially changed or that the building in which it is established having been wholly or partially pulled down or burnt down has been reconstructed without any extension of its area.

Regulation
dustbins.

249. The Corporation may by notice in writing require the owner or occupier of any dwelling-house to provide galvanized iron or enamelled iron dustbins or ashtubs in lieu of ashpits and such dustbins or ashtubs shall be of such size and construction as may be approved by the Corporation and any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Corporation shall for every such offence be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings. Provided that this section shall not apply to any dustbins ashtubs or ashpits in use at the passing of this Act so long as the same are of suitable size and in proper order and condition.

Power to
charge for
removal of
trade refuse
&c.

250. If any trade refuse or any building or other materials or rubbish of a like description be deposited in any privy cesspool ashpit dustbin or ashtub the Corporation may make a reasonable charge for the removal of the same which charge shall be paid to the Corporation by the occupier of the premises in respect of which the charge is made.

Power to
supply courts
with water-
closets &c.

251. The Corporation for the purpose of supplying a court or place with closet accommodation may from time to time purchase by agreement any building and remove the same and execute all consequent structural and other works and the owner or owners of the houses in the court or place benefited thereby shall be liable to pay the expenses incurred by the Corporation in the execution

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of this section and the amount thereof shall be apportioned among those owners by the city engineer or surveyor in proportion to the rateable value of the property held by them in such court or place and the amount apportioned to each owner shall be payable by and recoverable from him summarily as a civil debt or as private improvement expenses under the Public Health Act 1875 Provided that if any owner feels himself aggrieved as regards either the amount of such expenses or the apportionment thereof he may within twenty-one days from service of notice on him by the Corporation or the city engineer or surveyor of the amount due from such owner appeal to a court of summary jurisdiction to determine the amount or apportionment as the case may be.

252. In addition to all other powers vested in the Corporation the Corporation if it shall appear to them on the report of the city engineer or surveyor or medical officer of health that any building whether built before or after the commencement of this Act is not provided with a proper sink or drain or other necessary appliances for carrying off refuse water from such building may give notice in writing to the owner or occupier of such building requiring him in the manner and within the time to be specified in such notice to provide such sink drain or other appliances If the owner or occupier makes default in complying with such requirement within the time specified in such notice he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and in case of default the Corporation may if they think fit themselves provide such sink drain or other appliances and the expenses incurred by them in so doing shall be repaid to them by such owner or occupier and may be recovered summarily.

Summary
power to
provide sinks
and drains
for buildings.

253.—(1) The medical officer of health or surveyor or any other officer from time to time appointed by the Corporation may if he has reasonable ground for believing the existence of a nuisance inspect any drain closet accommodation or cesspool or any sinks traps syphons pipes or other works or apparatus connected therewith and for that purpose may (on production of his authority if required) at all reasonable times in the daytime after twelve hours' notice in writing has been given to the occupier of or left on the premises to which such drain closet accommodation or cesspool or such works or apparatus is attached or in any case of emergency without notice enter with or without workmen on any premises and cause the ground to be opened wherever such officer thinks fit doing as little damage as may be.

Inspection
of drains
privies and
cesspools.

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(2) If such drain closet accommodation or cesspool or the connected works and apparatus be found on inspection as aforesaid to be properly made and in proper order and condition the Corporation shall cause the same to be reinstated and made good as soon as may be and the expenses of examination reinstating and making good such drain closet accommodation cesspool or other works or apparatus as aforesaid shall be defrayed by the Corporation and full compensation shall be made by them for all damage or injury done or occasioned by the examination of any such drain closet accommodation cesspool or other works or apparatus as aforesaid.

(3) If upon such inspection as aforesaid any drain closet accommodation or cesspool or the connected works or apparatus appear to be in bad order and condition or to require cleansing alteration or amendment or to be filled up and disused the Corporation shall cause notice in writing to be given to the owner or occupier of the premises upon or in respect of which the inspection was made requiring him forthwith or within such reasonable time as shall be specified in such notice to do the necessary works in accordance with the reasonable requirements of the Corporation and if such notice be not complied with by the person to whom it is given the Corporation may if they think fit execute such works and may recover the expenses incurred by them in so doing from the owner or occupier of the premises in a summary manner. Provided that where the Corporation under this enactment require the alteration of any drain closet accommodation or other like accommodation which has after construction thereof been altered according to any different system required by the Corporation all the expenses of such further alteration shall be paid by the Corporation.

Occupation
of rooms
over privies
to discon-
tinue.

254. No room built before or after the commencement of this Act any portion of which extends immediately over or immediately adjoins any privy cesspool midden or ashpit shall be occupied as a dwelling or sleeping room and if any person shall occupy or suffer to be occupied as a dwelling or sleeping room any such room every person so offending shall for every such offence forfeit not exceeding twenty shillings for every day during which such room continues to be so let or occupied after notice in writing from the Corporation or the town clerk to discontinue such letting or occupation and the Corporation may by notice in writing to the owner of such privy cesspool midden or ashpit require him within one month to remove such privy cesspool midden or ashpit

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and the contents thereof or make such other alterations as they or their city engineer or surveyor may require.

PART XXI.
*Sanitary
Provisions.*

255. It shall not be lawful to blow or inflate the carcase or any part of the carcase of any animal slaughtered within or brought within the city and any person offending against this enactment or exposing or depositing for sale within the city a carcase blown or inflated or any part thereof shall be liable to a penalty not exceeding twenty shillings.

Prohibition
of blowing
or inflating
carcases.

256. It shall be lawful for the Corporation from time to time to cleanse any becks rivulets and streams of water (except the River Aire) and to drain any stagnant pools of water within the city and the Corporation their officers and servants may from time to time enter any premises in the daytime for the purpose of inspection and to do all necessary acts for any of the purposes aforesaid so that the same may be executed with all convenient despatch.

Power to
cleanse becks
&c.

257. It shall be lawful for the Corporation by agreement with the owner or owners of lands adjoining the part of any river (except the River Aire) stream beck or watercourse within the city proposed by the Corporation to be arched over or covered in to arch over or cover in or pave the bottom or wall the sides of such river stream beck or watercourse Provided always that in executing any works authorised by this section the Corporation shall construct and for ever thereafter maintain a suitable manhole at or as near as conveniently may be to the place where any highway crosses the course of such stream beck or watercourse and the undertakers of the Aire and Calder Navigation and all persons appointed by them or acting on their behalf shall at all times have free access to the said streams becks or watercourses and manholes.

Power to
arch over
rivers becks
&c.

258. Any person who without the written consent of the Corporation builds or causes to be built within the city any building (not being a building other than a dwelling-house belonging to any railway or canal company and intended to be used by such company in connection with their railway or canal) in or over the bedcourse or waterway or any part of the bedcourse or waterway of any river stream beck or watercourse within the city shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may cause any building erected in contravention of this section to be altered pulled down or otherwise dealt with as they may

Buildings
not to be
erected over
rivers becks
&c.

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PART XXI.
Sanitary
Provisions.

For regu-
lating manu-
facture and
sale of ice
cream.

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think fit and may recover from the offender any expenses incurred by them in so doing summarily as a civil debt.

259.—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice cream or other similar commodity who within the city—

- (a) Causes or permits ice cream or any similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any cellar room or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain ; or
- (b) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination ; or
- (c) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer of health ;

shall be liable for every such offence on summary conviction to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice cream or any similar commodity) suffering from any infectious disease the medical officer of health may seize and destroy all ice cream or similar commodity or materials for the manufacture of the same in such building and the Corporation may compensate the owner of the ice cream or similar commodity or materials so destroyed.

Inspection of
premises.

260.—(1) Any officer duly authorised by the Corporation in that behalf shall at all reasonable times have the same power of entry and inspection into and of the premises of any manufacturer or vendor of or merchant or dealer in ice cream or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein as an officer of the Corporation would have under section 102 of the Public Health Act 1875 in the cases therein mentioned.

(2) Any person refusing entry into such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings for each offence.

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261. Every dealer in ice cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand must have his name and address legibly painted or inscribed on such cart barrow vehicle or stand and if he fails to comply with this enactment he shall be liable to a penalty not exceeding forty shillings.

PART XXI.
Sanitary Provisions.

As to dealers in ice cream.

262. From and after the commencement of this Act the provisions of section 22 subsection (2) of the Public Health Acts Amendment Act 1890 as to the report of the surveyor shall extend and apply to the medical officer of health and such subsection so far as the same affects the city shall be read as if the words "their surveyor or medical officer of health" were inserted instead of the words "their surveyor."

Extending provisions of s. 22 (2) of Public Health Acts Amendment Act 1890.

263. For the purposes of the Public Health Acts the expression "medical officer of health" shall have the same meaning as in this Act.

Definition of "medical officer" to extend to Public Health Acts.

PART XXII.

PART XXII.
Nuisances.

NUISANCES.

264. For the purposes of the Public Health Act 1875—

As to nuisances.

- (1) Any cistern used for the supply of water for domestic purposes so placed constructed or kept as to render the water therein liable to contamination causing or likely to cause risk to health;
- (2) Any gutter drain shoot stack-pipe or down spout of a building which by reason of its insufficiency or its defective condition shall cause damp in such building or in an adjoining building;
- (3) Any deposit of material in or on any building or land which shall cause damp in such building or in an adjoining building so as to be dangerous or injurious to health;
- (4) Any river stream or watercourse other than the River Aire or any part or parts thereof respectively within the city being so choked or silted up as to obstruct or impede the proper flow of water along the same and thereby cause or render probable an overflow of such river stream or watercourse on to or into any land and property adjacent thereto;

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Nuisances.

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shall be deemed to be a nuisance within the meaning of the said Act.

Penalty on
burning
bricks near
dwelling-
houses.

265. Any person who burns bricks or tiles in any place nearer than thirty yards to any dwelling-house erected before the place was used for burning bricks or tiles and situate in or near to any street shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

As to ap-
pointment
of inspector
of nuisances.

266. The Corporation may appoint more than one inspector of nuisances and section 189 of the Public Health Act 1875 and section 24 of the Local Government Act 1888 shall for the purposes of the execution of those Acts within the city be construed accordingly.

Nuisances
partly within
and partly
without city.

267. If any nuisance or annoyance to the inhabitants of the city shall arise or lie in or upon any building or the curtilage thereof situate partly within and partly without the city the Corporation shall have in respect of such building and curtilage and the owner and occupier thereof such and the like powers as they would have if the whole of such building and curtilage were within the city.

PART XXIII.
*Common
Lodging-
houses.*

PART XXIII.

COMMON LODGING-HOUSES.

Registration
of common
lodging-
houses and
keepers.

268.—(1) Notwithstanding anything in the Public Health Act 1875 the registration of a common lodging-house or of the keeper of a common lodging-house shall operate for one year only and application for the renewal of such registration shall be made to the Corporation on or previous to the thirty-first day of December in every year.

(2)—(a) The Corporation may notwithstanding the provisions of section 78 of the Public Health Act 1875 refuse to register or re-register any person as a common lodging-house keeper unless they are satisfied of his character and fitness for the position :

(b) Any person aggrieved by such refusal may appeal to a court of summary jurisdiction within fourteen days after such refusal provided he give twenty-four hours' notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as they may think fit and to award costs.

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PART XXIII.
*Common
Lodging-
houses.*

(3) Every person who without being registered in accordance with the Public Health Act 1875 and this Act shall keep a common lodging-house within the city and every person who after the thirty-first day of December 1905 shall keep a common lodging-house without the registration of such person and of such house being renewed for the current year shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

269. The keeper of every common lodging-house within the city shall reside constantly and shall remain between the hours of nine o'clock in the afternoon and six o'clock in the forenoon in such house and shall manage control and exercise proper supervision over the same and the inmates thereof except at such times as some other person appointed by him for that purpose and whose name is registered at the office of the Corporation shall with the approval of the Corporation in writing under the hand of their officer appointed for that purpose (which approval and registration shall be revocable by the Corporation) reside and remain in such house and manage control and exercise proper supervision over the same and the inmates thereof as the case may be and any person who shall offend against this provision shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Regulations
as to com-
mon lodging-
house
keepers.

270.—(1) Every common lodging-house shall be provided with sufficient and suitable sanitary conveniences having regard to the number of lodgers who may be received therein and also with proper separate sanitary convenience for persons of each sex.

Sanitary
conveniences
in common
lodging-
houses.

(2) Where it appears to the Corporation on the report of their inspector of nuisances that the provisions of this section are not complied with in the case of any common lodging-house the Corporation may if they think fit by notice require the keeper thereof to make such alterations and additions therein as may be required to provide such sufficient suitable and proper sanitary conveniences as aforesaid.

(3) Any person who shall neglect or refuse to comply with any such notice shall be liable for each default to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

271. Notice of the provisions of this Part of this Act shall be served upon the keeper of every common lodging-house within the city either personally or by leaving the same at the common lodging-house.

Notice to
common
lodging-
house
keepers.

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PART XXIV.

*Smoke
Prevention.*

PART XXIV.

SMOKE PREVENTION.

Prevention
of smoke.

272. The following provisions shall be in force with respect to the prevention of smoke (that is to say):—

(1) Every furnace employed or to be employed in the working of engines by steam and every furnace employed or to be employed in any mill factory printing house dye house iron foundry glass house distillery brew house sugar refinery bakery gasworks waterworks or other buildings used for the purpose of trade or manufacture (although a steam engine be not used or employed therein) shall in all cases be constructed or altered so as to consume or burn the smoke arising from such furnace:

(2) If any person uses or suffers to be used any such furnace which shall not be constructed so as to consume or burn its own smoke or if any person using or permitting to be used any furnace constructed so as to consume or burn its own smoke shall in the event of the smoke arising therefrom not being effectually consumed or burnt fail to show that such furnace has not been negligently used he shall if he is the owner or occupier of the premises or a foreman or other person employed by such owner or occupier be liable to a penalty not exceeding five pounds and upon a second conviction to a penalty not exceeding ten pounds and for every subsequent conviction to a penalty not exceeding twenty pounds.

Penalty not
to attach in
certain cases.

273. The words “consume or burn the smoke” shall not be held in all cases to mean “consume or burn all the smoke” and the court having cognizance of the case shall not impose a penalty if they are of opinion that a person has so constructed or altered his furnace as to consume or burn all the smoke arising from such furnace so far as in the opinion of the court is practicable without damaging the article manufactured or operated upon or rendering necessary any expenditure or inconvenience which in the opinion of the court shall be unreasonable and that such person has carefully attended to the same and consumed or burned the smoke arising from such furnace.

What means
deemed
“practicable”
in certain
operations.

274. No means for the prevention or consumption of smoke shall be deemed practicable within the meaning of this Act as regards the application to any dye-pan dye-vat or dye-vessel used

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PART XXIV.
*Smoke
Prevention.*

for the dyeing of wool woollens or worsted stuffs or as regards the smelting of iron ores or the refining puddling shingling and rolling of iron or other metals or the melting and casting of iron into castings or as regards the coking of coal or the calcining of iron-stone or limestone or the making or burning of bricks quarries tiles or pipes unless it shall be proved to the satisfaction of the court that the same have been successfully applied in similar processes and are in actual operation and have been used for twelve months in similar processes or in similar trades under like circumstances.

275.—(1) If the owner or occupier of any premises refuses to allow his premises to be inspected by the inspector of smoke or if any person complaining of the issue therefrom of an excessive quantity of smoke lays an information on oath before a justice it shall be lawful for any constable authorised by warrant under the hands of two justices to enter with the inspector of smoke who shall be bound to act under such warrant into and upon any building or premises in which any furnace may be and to examine into the construction of and manner of using such furnace.

Constables
empowered
to enter
and inspect
furnaces.

(2) Any person obstructing any such constable or his assistants in the execution of any such warrant or order shall be liable to a penalty not exceeding twenty pounds.

276.—(1) The Corporation shall from time to time appoint a fit person to be inspector of smoke.

Appointment
and duties of
inspector of
smoke.

(2) The Corporation shall pay out of the consolidated rate to the inspector of smoke such salary as they may from time to time determine and may remove any such inspector at their pleasure.

(3) It shall be the duty of the inspector at his discretion to take proceedings for enforcing the provisions of this Act for the prevention or consumption of smoke without any authority from or reference to the council or any committee thereof and all expenses reasonably incurred by him in the performance of his duties shall be paid out of the consolidated rate Provided that any inhabitant of the city may also at his own cost and risk take any such proceedings as aforesaid.

PART XXV.

PART XXV.
Rates.

RATES.

277.—(1) There shall be continued or established a fund called the consolidated fund and an account called the consolidated fund account of all moneys carried under the provisions of any

Consolidated
fund.

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general Act of Parliament or of the Corporation Acts and Orders to the account of that fund shall be kept by the city treasurer and such moneys shall be applied by the Corporation in defraying such of the expenses chargeable thereon as they may think proper.

(2) There shall be paid into the consolidated fund all moneys directed to be so paid under the provisions of any general Act of Parliament or of the Corporation Acts and Orders or which are not by such provisions or any of them payable into or to the credit of the city fund or the city rate or the highway rate or a fund or rate other than the consolidated fund or rate.

(3) The consolidated fund shall be applicable to and charged with payments for the following purposes (that is to say):—

For the purpose of defraying all expenses of the Corporation expressly charged thereon by the Corporation Acts and Orders :

For the purpose of defraying all expenses incurred and to be incurred by the Corporation under the provisions of any General Act of Parliament or of the Corporation Acts and Orders and which are not by such provisions or any of them charged on or payable out of the city fund or the city rate or the highway rate or any fund or rate other than the consolidated fund or rate.

Consolidated
rate.

278.—(1) For the purpose of defraying any expenses chargeable on the consolidated fund which that fund is insufficient to meet the Corporation may continue to make and levy and shall from time to time make and levy a rate to be called the consolidated rate and the proceeds thereof shall be paid into the consolidated fund.

(2) Such consolidated rate shall be made and levied on the occupiers of all kinds of property for the time being by law assessable to any rate for the relief of the poor and shall (subject to the provisions of this Act) be assessed on the full net annual value of such property ascertained by the valuation list for the time being in force or if there is none by the rate for the relief of the poor made next before the making of the assessment under this section.

Differential
rating in
respect to
certain
property.

279. As regards the consolidated rate and as regards any increase or addition to the city rate for gas or water purposes the owner of any tithes or of any tithe commutation rentcharge or the occupier of any land used as arable meadow or pasture ground or as woodlands market gardens orchards allotments or nursery

grounds and the occupier of any land covered with water or used only as a canal or towing path for the same or as a railway constructed under the powers of any Act of Parliament for public conveyance shall be assessed in respect of such property in the proportion of one fourth part only of the net annual value thereof Provided always that if any sum shall be paid by such occupier towards the consolidated rate or any increase or addition to the city rate for the purposes aforesaid above one fourth thereof the Corporation shall allow to such occupier on his or their rate the amount so paid in excess of the one fourth as aforesaid and such amount may be recovered by action or may be deducted out of the next rate to which the parties respectively may be liable.

280.—(1) The Corporation shall continue to keep a separate account to be called the Highway Account of all their receipts credits payments and liabilities as surveyors of highways and with respect to highways and all expenses incurred by the Corporation as surveyors of highways and in paving flagging macadamizing maintaining repairing and cleansing highways repairable by the inhabitants at large shall be paid out of and charged on the highway rate to be levied under the powers of this Act. Highway rate.

(2) For the purpose of defraying those expenses the Corporation may continue to make and levy an equal highway rate on the occupiers of all hereditaments by law assessable to any rate for the relief of the poor and such rate shall be assessed on the full net annual value of such hereditaments as ascertained by the valuation list for the time being in force or if there is none by the rate for the relief of the poor made next before the making of the assessment under this section.

281. Any rate which the Corporation are authorised to make under this Act may be made and levied prospectively in order to raise money for the payment of future charges and expenses or retrospectively in order to raise money for the payment of charges and expenses incurred at any time within six months before the making of the rate In calculating the period of six months during which the rate may be made retrospectively the time during which any appeal or other proceeding relating to such rate is pending shall be excluded. Rate may be made prospectively or retrospectively.

282. Any rate which the Corporation are authorised to make under this Act shall be deemed to be and shall be a rate within the meaning of the Poor Rate Assessment and Collection Act 1869 for the purposes of sections 3 and 4 of such Act and the provisions Compound-
ing of rates.

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of those sections accordingly shall apply to any such rate as well as to any poor rate to be levied for and in any township comprised within the city provided that the limits of any rateable value of hereditaments in respect of any such rate or poor rate shall be such an amount not less than six pounds and not exceeding eight pounds as the Corporation shall by resolution determine and the powers of the vestry of every township in the city under the said sections are subject to the provisions of this section hereby transferred to and may be exercised by the Corporation and in relation to any rates made and collected by the Corporation under the provisions of this Act the said sections shall be construed and have effect as if "the Corporation" had been substituted therein for "the Overseers."

Notice of
rates made
by Corpora-
tion.

283. Notice of the intention to make any rate authorised to be made by the Corporation under this Act and of the time at which the same is intended to be made shall be given by the Corporation by advertisement twice in each of not less than two daily newspapers published in the city before such rate shall be made and no other notice of the intention to make any such rate or of the making of any rate shall be necessary neither shall it be necessary in any proceedings for levying and recovering such rate to prove that such notice as aforesaid has been given.

Unoccupied
premises.

284. The Corporation may include unoccupied premises in any rate made by them describing the premises in the column of the rate book appropriated to the name of the occupier as "void" and if any person liable to assessment in respect of such premises as occupier to any such rate shall afterwards occupy such premises during any part of the period for which such rate shall have been made the Corporation may insert in such rate the name of such occupier and may collect from him such portion of the rate as shall be proportionate to the time during which he shall so occupy such premises and every such person shall thereupon be deemed to all intents and purposes to be properly rated and such proportion of the rate may be collected and after demand recovered from such person Provided that any such person whose name shall be so inserted in such rate may appeal against the same to the justices at special sessions or to the general quarter sessions for the city which shall be available next after such demand.

Cesser of
ownership or
occupation.

285. If any owner or occupier assessed or liable to any rate laid by the Corporation ceases to be owner or occupier of the premises in respect whereof he is so assessed or liable before the end of the period for which the rate was made and before the same

is fully paid off he shall be liable to pay only such part of the rate as may be in proportion to the time during which he continues to be such owner or occupier and in every such case if any person afterwards become owner or occupier of the premises during part of the said period he shall pay such part of the rate as may be in proportion to the time during which he continues to be such owner or occupier and the same shall be recovered from him in the same manner as if he had been originally assessed or liable.

286. For the purpose of assessing any rate to be laid by the Corporation any person appointed for the purpose may inspect take copies of or make extracts from any valuation list or rate for the relief of the poor within the city or any book relating to the same. Inspection of poor rate books for assessment purposes.

Any officer having the custody of any such rate or book who refuses to permit such inspection or the taking of such copies or extracts shall be liable to a penalty not exceeding five pounds.

287. The Corporation before proceeding to make any rate which they are authorised to make under this Act shall cause an estimate to be prepared of the money required for the purposes in respect of which the rate is to be made showing— Estimate to be prepared before making rates.

The several sums required for each of such purposes; and

The rateable value of the property assessable; and

The amount of rate which for those purposes it is necessary to make on each pound of such value:

And the estimate so made shall forthwith after being approved of by the Corporation be entered in the rate-book and be kept at their office open to public inspection during office hours thereat but it shall not be deemed part of the rate nor in any respect affect the validity of the same.

288. Any person interested in or assessed to any rate made under this Act may inspect the same and may take copies of or extracts therefrom without fee or reward and any person who having the custody of any such rate refuses to allow or does not permit such inspection or such copies or extracts to be taken shall be liable to a penalty not exceeding five pounds. Rates to be open to inspection.

289. Where the name of any owner or occupier liable to be rated under this Act is not known to the Corporation it shall be sufficient to assess and designate him in the rate as "the owner" or "the occupier" of the premises in respect of which the assessment is made without further description. Description of owner or occupier in rates.

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PART XXV.
Rates.

Power to
Corporation
to amend
rates.

290. The Corporation may from time to time amend or alter any rate—

By making a supplement thereto and by inserting therein the name of any person who ought to have been assessed and rated or who ought to be assessed and rated at the time of the making of such supplement or by striking out the name of any person who ought not to have been assessed or rated or by raising or reducing during the currency of a rate and either for the whole or part of the period of such currency the sum at which any person shall have been assessed or rated if it shall appear to them that such person has been under assessed or rated or over assessed or rated;

By altering the description of the tenement in respect of which any person is assessed or rated and in respect of which the rate has not been paid;

By inserting the description of any new tenement in respect of which any person ought to be assessed and rated.

Every such supplement alteration or insertion when made shall operate as if it had been part of the original rate and any person aggrieved thereby shall have the same right of appeal therefrom as he would have had if the supplement or matter of amendment or alteration had appeared on the rate originally made and as respects such person the rate shall be considered to have been made at the time when he received notice of such amendment.

Power to
levy rates by
instalments.

291. The Corporation may levy any rate they are for the time being authorised to make either in one sum or by any number of instalments (not being more than four) of such amounts and to be paid at such times within the financial year as they shall from time to time fix and determine at the time of making the rate but if the rate is made payable by instalments the demand note shall in addition to other requisite particulars state the time appointed for the payment of each instalment and all powers rights and remedies of the Corporation and their officers for levying and recovering rates shall extend and apply to each instalment as if the same were a separate rate.

Collection
of rates.

292. All rates made or collected under this Act shall commence and be payable at such time or times and shall be made in such manner and form and be collected by such persons as the Corporation may from time to time appoint.

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293. The books of the Corporation and all entries duly made therein shall be received as evidence of rates imposed by virtue of this Act.

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Rates.

Books to
evidence.

294. The Corporation may reduce or remit the payment of any rate made under this Act on account of the poverty of any person liable to the payment thereof.

Power to
reduce or
remit rates.

295. Nothing in this Part of this Act shall alter or affect any lease contract or agreement made or entered into between the landlord and tenant of any premises.

Saving for
existing
agreements.

296. If any person assessed to any rate made under this Act by the Corporation fails to pay the same when due and for the space of fourteen days after the same has been lawfully demanded in writing or if any person quits or is about to quit any premises without payment of any such rate then due from him in respect of such premises and refuses to pay the same after lawful demand thereof in writing any justice may summon the defaulter to appear before a court of summary jurisdiction to show cause why the rate in arrears should not be paid and if the defaulter fails to appear or if no sufficient cause for non-payment is shown the court may make an order for the payment of the same and in default of compliance with such order may by warrant cause the same to be levied by distress of the goods and chattels of the defaulter.

Summary
proceedings
for recovery
of rates.

The cost of the levy of arrears of any rate may be included in the warrant for such levy.

297.—(1) If any person think himself aggrieved by any rate or assessment made under the provisions of this Act he may appeal therefrom at his discretion either to the justices of the peace for the city at the next practicable special sessions for hearing appeals against rates for the relief of the poor or to the next practicable quarter sessions for the city under and according to the provisions of the Summary Jurisdiction Acts but no such appeal shall be entertained by such justices unless seven days' notice in writing of such appeal and of the ground thereof be given to the Corporation by the appellant.

Appeal
against rates.

(2) On appeals under this Act against any rate the court to which such appeal shall be made shall have the same power to amend or quash any rate or assessment and to award costs between the parties to the appeal as is or may by law be vested in any court of quarter sessions with respect to amending or

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quashing any rate or assessment or awarding costs on appeals with respect to rates for the relief of the poor and the costs awarded by the said court under this Act may be recovered in the same manner in all respects as costs awarded on the last-mentioned appeals. Provided that notwithstanding the quashing of any rate appealed against all moneys charged by such rate shall if the said court think fit so to order be levied as if no appeal had been made and such moneys when paid shall be taken as payment on account of the next effective rate for the purposes in respect of which the quashed rate was made.

Corporation
may require
overseers to
collect rates.

298.—(1) The Corporation may if they so resolve make an order on the overseers of any township comprised within the city requiring them to assess levy or collect any rate which by this Act they are authorised to make and thereupon the overseers shall have and exercise all or any of the powers of the Corporation and their officers under this Act for assessing levying or collecting the said rates or either of them as the Corporation shall by resolution delegate to them and in default of compliance with any such order of the Corporation the overseers shall be subject to all provisions and penalties provided by law concerning non-payment of contributions to a borough rate. Provided that any such order shall be for the proceeds of a rate in the pound equal in amount to the rate in the pound made and levied or required to be made and levied for the same purpose in the other townships in the city.

(2) The overseers may if they are required to collect the highway rate pay the amount required by the Corporation in respect of that rate out of the poor rate and may accordingly make the necessary increase in the poor rate:

Provided that for the purpose of section 133 of the Lands Clauses Consolidation Act 1845 so much of the poor rate as is raised for the purpose of the highway rate shall not be deemed to form part of the poor rate.

(3) The Corporation shall repay to the overseers so much of the remuneration of the assistant overseers and of all other the costs and expenses as are incurred by the overseers in respect of the assessment levying and collection of the consolidated rate or the highway rate (when levied as a separate rate).

(4) The accounts of the overseers and the collectors in regard to any rate made and levied by them as aforesaid shall be made up to the thirty-first day of March and the thirtieth

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day of September in each year or to such other date as the Local Government Board shall from time to time prescribe.

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Rates.

(5) The accounts of the overseers assistant overseers and collectors of poor and other rates relating to the rates to be levied and collected by them or any of them pursuant to the provisions of this section shall be submitted to and be audited by the district auditor in the manner provided by section 37 of the Divided Parishes and Poor Law Amendment Act 1876 and such rates shall be deemed to be rates within the meaning of that section.

(6) The overseers shall prepare and submit to the district auditor at every audit of their accounts a financial statement in duplicate in the form and containing the particulars from time to time prescribed by the Local Government Board in respect of the rates to be levied by them as aforesaid one of such duplicates shall have the stamp duty chargeable according to the scale contained in the District Auditors Act 1879 affixed thereon and calculated according to the total of the sums paid to the Corporation during the period to which the statement relates and the provisions of the District Auditors Act 1879 as to the duties of the auditor with reference to such duplicates shall apply as if the said duplicates were prepared and submitted under that Act.

(7) The Corporation shall repay to the said overseers the amount of any stamp duty which may be paid by them upon any financial statement pursuant to the provisions of this section.

(8) The provisions of sections 5 and 6 of the District Auditors Act 1879 shall apply to the accounts of the overseers and collectors and to the stamp duty on such financial statements as aforesaid and any overseer who shall fail to comply with the provisions of this Act with respect to a financial statement shall be liable to the penalty provided in section 7 of the last-mentioned Act.

299. Any assistant overseer or other officer and any collector of poor rates may be required by the Corporation to collect any rate which by this Act they are authorised to make or any water gas electric or other rents and charges leviable by the Corporation and any such assistant overseer or other officer or collector of poor rates holding office at the commencement of this Part of this Act shall if required by him be paid in respect of such additional collection such additional remuneration (if any) as may be agreed between himself and the Corporation or in case of difference may be settled by the Local Government Board.

Further provision as to collection of rates.

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PART XXV.
Rates.

Local
Government
Board may
prescribe
form of
rates &c.

300. The Local Government Board may from time to time prescribe a form of rate which may include the poor rate city rate highway rate consolidated rate or other rates or any of them and in respect of any such rates may prescribe the form of demand note and of rate receipts and any forms so prescribed shall be sufficient in law.

Superannua-
tion Act
1896 to apply
to overseers
and Corpora-
tion.

301. The contributions which under the Poor Law Officers' Superannuation Act 1896 have been made by any assistant overseers collectors and other officers and servants who are transferred by this Act or by the County Borough of Leeds Confirmation Order 1904 to the service of the Corporation shall be transferred by the guardians or overseers who receive or have received them to the borough fund and the said Act shall apply to such officers and to the Corporation in relation to them as nearly as may be as if the Corporation were guardians or overseers and the borough fund were the common fund of a union.

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*Financial
Provisions.*

PART XXVI.

FINANCIAL PROVISIONS.

Borrowing
powers of
Corporation.

302.—(1) The Corporation may borrow at interest for the purpose of paying the costs and expenses of this Act as hereinafter provided the sum requisite for that purpose.

(2) The moneys set out in the Eleventh Schedule to this Act being principal moneys which the Corporation prior to the twenty-fifth day of March one thousand nine hundred and four had borrowed or were on that date liable to repay or which under the Acts and Orders by this Act repealed or otherwise the Corporation were on that date or under the Corporation Acts and Orders are authorised to borrow shall be and the same are hereby declared to be principal moneys within the meaning of the Leeds Corporation (General Powers) Act 1901 and the Corporation Acts and Orders and the provisions of such Acts and Orders with respect to principal moneys shall apply accordingly and the Corporation are hereby authorised from time to time independently of any other borrowing power to borrow (so far as the same have not been borrowed) and to reborrow at interest (subject to the provisions of the said Acts) and for the several purposes in such Eleventh Schedule respectively mentioned the amounts of such principal moneys respectively set out in columns eight and twelve of Parts I. to VII. of the said schedule and in column ten of Part VIII. of the said schedule.

(3) Such principal moneys shall be primarily chargeable as follows (that is to say):—

- (A) The principal moneys set out in Parts I. II. III. VI. and VIII. of the said schedule on the city fund;
- (B) The principal moneys set out in Parts IV. and VII. of the said schedule on the consolidated fund;
- (C) The principal moneys set out in Part V. of the said schedule on the highway rate.

(4) In addition to the moneys which the Corporation are by this Act authorised to borrow they may borrow and reborrow such further sums of money for tramway purposes as the Board of Trade may sanction and such sums of money for any of the other purposes mentioned in the said schedule or in this Act as the Local Government Board may sanction and any moneys borrowed under any such sanction shall be paid off or repaid by the Corporation within the periods sanctioned by the said Boards respectively.

303. Whereas the principal moneys set out in Part VIII. of the Eleventh Schedule to this Act include the loans borrowed by the body formerly known as the Leeds School Board the liability in respect of which was by the provisions of the Education Act 1902 transferred to the Corporation And whereas of the total amount so borrowed the sum of four hundred and fifty-five thousand six hundred and forty-eight pounds twelve shillings and elevenpence of which there was outstanding on the twenty-fifth day of March one thousand nine hundred and four the sum of three hundred and ninety-six thousand two hundred and nine pounds ten shillings and eightpence had been lent to the school board by the Corporation out of moneys borrowed by the Corporation and the Corporation were liable on the said date in respect of the said sum of three hundred and ninety-six thousand two hundred and nine pounds ten shillings and eightpence by reason of the transfer of the liability of the school board as before recited and of the said borrowing of the said moneys by the Corporation as aforesaid:

Loans to
former Leeds
School
Board.

It is hereby declared that the obligation of the Corporation in respect of the said sum of three hundred and ninety-six thousand two hundred and nine pounds ten shillings and eightpence by reason of the transfer aforesaid shall be deemed to have merged and the same shall merge as from the twenty-fifth day of March one thousand nine hundred and four in the obligation of the Corporation in respect of moneys so borrowed by them as aforesaid and subject to the provisions of this Act such last-mentioned

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Provisions.*

Periods for
repayment
of principal
moneys.

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obligation shall continue in full force and be deemed to be and shall be an obligation in respect of principal moneys incurred by the Corporation for the purposes of education under the provisions of the Education Act 1902.

304.—(1) The Corporation shall provide for the repayment of the principal moneys within the periods hereinafter set out and such periods shall be taken to be the prescribed period within the meaning and for the purposes of the Corporation Acts and Orders (that is to say):—

(A) The several principal moneys mentioned in column eight of Parts I. to VII. of the Eleventh Schedule to this Act within the periods set opposite to such sums respectively in column eleven of the said Parts I. to VII. and the several principal moneys mentioned in column twelve of the said parts of the said schedule within the periods set opposite to such sums respectively in column thirteen of the said parts and the several principal moneys mentioned in column ten of Part VIII. of the said schedule within the periods set out in column eleven of that part and for the purposes of this subsection this Act shall be deemed to have passed on the 26th day of March one thousand nine hundred and four:

(B) Any principal moneys not mentioned as last aforesaid within the periods by the statutory borrowing powers in respect thereof respectively prescribed.

(2) Nothing in this section shall be construed to compel the owner of any mortgage or Corporation stock granted or issued before the commencement of this Act to accept or the Corporation to make payment of principal moneys due in respect of any such mortgage or Corporation stock before the time originally fixed or otherwise agreed in that behalf and the Corporation may continue on loan the principal moneys secured by any such mortgage or Corporation stock or any part or parts thereof until the time originally fixed or otherwise agreed for the repayment thereof and if at the expiration of any of the periods prescribed as aforesaid by this section any mortgages or Corporation stock granted or issued before the commencement of this Act the holders of which cannot be compelled to accept payment of the sums due to them within the said prescribed period are still outstanding the Corporation may keep invested after the expiration of the said period such portion of the redemption fund as shall be sufficient

to pay off the principal moneys secured by such mortgages or stock and the Corporation shall pay off the same at the times respectively agreed in that behalf and the interest on any such mortgages or stock after the expiration of the said period and until the same are respectively paid off as hereinbefore provided shall be paid out of the interest and annual proceeds of the moneys which the Corporation are hereby empowered to keep invested as part of the redemption fund and if at any time such interest and annual proceeds are insufficient to pay in full the interest on the said mortgages or stock the deficiency so arising shall be made good out of the respective funds or rate which are primarily chargeable in respect of such mortgages or stock and in the order in which they are so liable.

305. The dividends interest annuities and all other annual sums for the time being payable on the principal moneys for the time being owing by the Corporation, are hereby declared to be and shall be a first charge upon the lands and estates the water the gas and other the undertakings of the Corporation and upon all the revenues of the Corporation.

Principal
moneys to be
a charge on
revenue.

306.—(1) Where the Corporation have for the time being any statutory borrowing power they may for the purpose of securing the repayment of the money borrowed in pursuance of that power and the payment of interest thereon issue and renew Leeds Corporation bills or promissory notes signed by three members of the council and countersigned by the city accountant or the town clerk provided that so long as and to the extent of the amount to which for the time being any such bills or promissory notes shall be outstanding in respect of any statutory borrowing power the power by this section conferred shall be in substitution for the power which the Corporation now or at any time hereafter shall possess of raising money in respect of such statutory borrowing power by means of mortgages or the issue of Corporation stock or otherwise Provided also that the total amount of such bills or promissory notes which shall be issued by the Corporation and outstanding for the time being shall not at any time exceed the sum of five hundred thousand pounds except by the amount payable on bills issued shortly before any other bills fall due in order to pay off such last-mentioned bills and no bill or promissory note shall be issued for a less sum than one thousand pounds.

Power to
issue bills
and promis-
sory notes.

(2) A register of the bills or promissory notes issued or renewed by the Corporation and outstanding under this section shall be kept by the city accountant or such other person as may

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be appointed by the Corporation for this purpose and such register shall show the amount of each bill or promissory note the names of the persons by whom it is signed the date of issue the date when the same falls due and the date of payment thereof Such register shall at all reasonable times be open to inspection without payment of any fee by any creditor of the Corporation.

(3) The Corporation shall make regulations with respect to the form preparation mode of issue and of payment discharge and cancellation of bills or promissory notes issued or renewed under the powers by this section conferred on the Corporation and shall furnish to the Local Government Board a copy of all regulations made under this subsection.

(4) Moneys borrowed on the bills and promissory notes issued under the powers of this section are hereby declared to be principal moneys within the meaning of the Leeds Corporation (General Powers) Act 1901 and this Act and the provisions of such Acts shall apply accordingly.

Creation of
Corporation
stock.

307. The Corporation may by resolution of the Council raise all or any of the principal moneys which for the time being they may be authorised to borrow or reborrow by creation of redeemable stock to be from time to time issued for such amount as shall be adequate for the purpose at such price to bear such half yearly or other dividends and to be so transferable (that is to say in books or by deed) as the Corporation direct.

Each resolution for creation of stock shall specify that the stock thereby created is redeemable.

Stock so created shall be designated by the Corporation as Leeds Corporation redeemable stock with the addition if so resolved by the Corporation of descriptive particulars as to dividend or the like and shall be deemed to be and shall be stock within the meaning of section 36 (Mode of raising moneys) of the Leeds Corporation (General Powers) Act 1901.

Saving for
power of
revocation.

308. The Corporation may revoke at any time in whole or in part any resolution as aforesaid for the creation of Corporation stock theretofore passed by the council if and as far as the same has not been acted on by the issue of stock thereunder.

Borrowing
power to be
exercisable
for actual
sum raisable.

309. Each statutory borrowing power of the Corporation shall be construed to authorise the Corporation to create and issue Corporation stock to such nominal amounts as in the aggregate will according to the price of issue produce the actual amount of

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money for the time being lawfully raisable by the Corporation under that power or some portion of that actual amount or (as the case may be) the actual amount of money properly payable by the Corporation as consideration on payment of or redemption by the Corporation of any mortgage bond debenture debenture stock annuity rentcharge rent or other security granted or created by the Corporation.

310.—(1) The Corporation may invest temporarily on statutory securities money raised by the issue of Corporation stock and not for the time being applied to or required for the undertaking or purpose for which it is raised and shall pay the interest and annual proceeds of those securities into the dividends fund.

Temporary
investment
of money
raised by
stock.

(2) The Corporation may if they think fit apply the interest and annual proceeds aforesaid or any part thereof in reduction of such contributions out of the Corporation revenues as are payable into the dividends fund in respect of dividends on the respective portions of Corporation stock by the issue whereof that money is raised.

311.—(1) The Corporation may if they think fit and on and subject to such terms and instructions not inconsistent with the provisions of the Corporation Acts and Orders as they think expedient appoint and keep appointed an officer of the Corporation or other person or the Bank of England or any other bank or a banker as registrar for all or any of the purposes of this Part of this Act (in this Part of this Act referred to as “the registrar”).

Appointment
of registrar.

(2) The Corporation in relation to the provisions of this Part of this Act and the registrar shall respectively be deemed a banker within the Bankers Books Evidence Act 1879.

312. The Corporation or the registrar shall keep books in which shall be entered the names and addresses and descriptions of holders from time to time of Corporation stock and the amounts held by them (in this Part of this Act referred to as “the Corporation stock registers”).

Corporation
stock regis-
ter.

The Corporation stock registers shall be *prima facie* evidence of any matter entered therein in accordance with this Part of this Act and of the title of the persons entered therein as holders of stock.

313.—(1) On demand of a holder of Corporation stock the Corporation may if they think fit give to him a certificate of the proprietorship thereof under their common seal specifying the

Certificates
of proprietor-
ship of stock.

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amount of Corporation stock to which he is entitled (in this Part of this Act referred to as "a stock certificate").

(2) A stock certificate shall be *prima facie* evidence of the title of the person therein named his executors administrators successors or assigns to the stock therein specified but the want of a stock certificate if such want be accounted for to the satisfaction of the Corporation shall not prevent the holder of stock from disposing of and transferring the same.

(3) If a stock certificate is worn out or damaged the Corporation on production thereof may cancel it and give a similar stock certificate to the party in whom the property in the stock certificate and in the stock therein specified is then vested.

(4) If a stock certificate is lost or destroyed the Corporation on proof thereof to their satisfaction may give a similar stock certificate to the party entitled to the stock certificate lost or destroyed.

(5) In the case of a stock certificate so lost or destroyed as mentioned in the preceding subsection the Corporation shall if they so require be given prior to issuing a new certificate in the place of the one so lost or destroyed by one or more persons to be approved by them an indemnity against any loss damages costs or other expenses which the Corporation may sustain or be put to in consequence of their issuing such new or substituted certificate or of the original certificate being still outstanding.

(6) An entry of the issue of a stock certificate or a substituted certificate as the case may be shall be made in the Corporation stock register.

Consent of
trustees of
incapacitated
persons &c.
to conver-
sion.

314. Any person who holds any security or annuity granted by the Corporation before the commencement of this Act and who is one of the persons enabled by the Lands Clauses Consolidation Act 1845 section 7 to sell land under that Act may in the manner and to the extent in the said section provided consent to any arrangement authorised by the Corporation Acts and Orders for the conversion of such security or annuity into stock of a different class and bearing a different rate of interest and to the payment of such security before the time limited for the payment thereof.

Power for
stockholder
to transfer.

315. Subject to the provisions of this Part of this Act every Corporation stockholder may transfer all or any part of his stock.

Transfer in
books.

316. If and where the resolution for the creation of any portion of Corporation stock makes the same transferable in books

and not by deed the provisions of this section shall apply and have effect but not otherwise :—

- (1) The Corporation or the registrar shall keep books wherein transfers of Corporation stock so transferable shall be entered (in this Part of this Act referred to as “the Corporation stock transfer books”):
- (2) Every such entry shall be expressed in proper words for the purpose of transfer and shall be signed by the party making the transfer or if he is absent by his agent thereunto lawfully authorised in writing under his hand attested by a witness :
- (3) Where the Bank of England are the registrar they may if they think fit require that the agent be so authorised by power of attorney under the hand and seal of the party making the transfer attested by two credible witnesses :
- (4) The person to whom a transfer is made may if he thinks fit underwrite his acceptance thereof :
- (5) Except as otherwise provided by Act of Parliament and subject to the provisions of this Act respecting the stocks and securities of the Corporation existing at the commencement of this Act or respecting any portion of Corporation stock which the resolution for the creation thereof makes transferable by deed no mode of transferring Corporation stock other than that prescribed in this section shall be good in law.

317. If and where the resolution for the creation of any portion of Corporation stock makes the same transferable by deed and not in books the provisions of this section shall apply and have effect but not otherwise :—

Transfer by
deed.

- (1) Every transfer of the stock so transferable shall be by deed :
- (2) The deed of transfer shall relate only to the transfer and shall not contain any recital trust power or proviso whatsoever and such deed shall be effectual in law to pass to the transferee all the interests of the transferor in the stock expressed to be transferred and the dividends thereon :
- (3) The deed of transfer when duly executed together with the certificate representing the stock expressed in the deed to be transferred shall be delivered to and kept by the

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Corporation or the registrar and the Corporation or the registrar shall enter a memorial thereof in a book to be called the register of transfers of Corporation stock and shall indorse on the deed of transfer a notice of that entry :

(4) The Corporation or the registrar shall on demand and on delivery up of the old stock certificate or on proof satisfactory to the Corporation of its absence deliver a new stock certificate to the purchaser :

(5) Until the deed of transfer with the certificate before mentioned has been so delivered to the Corporation or the registrar the Corporation or the registrar shall not be affected thereby and the purchaser of the stock shall not be entitled to receive any dividend thereon.

Evidence on
transfer.

318.—(1) The Corporation or the registrar before allowing any transfer of stock may if the circumstances of the case appear to them or him to make it expedient require evidence of the title of any person claiming a right to make a transfer.

(2) That evidence shall be a statutory declaration of one or more competent persons or of such other nature as the Corporation or the registrar with the approval of the Corporation may require.

Closing of
transfer
books.

319.—(1) The Corporation or the registrar with the approval of the Corporation may as regards any portion of Corporation stock close the Corporation register of transfers on any day in the month next before that in which dividends on that portion of Corporation stock are payable but so that the books be not at any time kept closed for more than twenty-one days.

(2) The persons who on the day of such closing are inscribed as Corporation stockholders shall as between them and their transferees of Corporation stock be entitled to the dividend next payable thereon.

Transmis-
sion.

320.—(1) The interest in Corporation stock of a stockholder dying shall be transferable by his executors or administrators notwithstanding any specific bequest thereof.

(2) The Corporation or the registrar shall not be required to allow any executors or administrators to transfer any stock until the probate of the will of or the letters of administration to the deceased has or have been left with the Corporation or the registrar for registration together with evidence by statutory declaration if the Corporation or the registrar so require of identity of the testator

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or intestate and of the executors or administrators which declaration shall be retained by the Corporation or the registrar who may require all the executors who have proved the will or all the administrators to join in the transfer.

(3) If the interest in any Corporation stock has become transmitted by any lawful means other than a transfer or the death of a stockholder satisfactory evidence of the transmission shall if required be furnished to the Corporation or the registrar by a statutory declaration of one or more competent persons or in such other manner as the Corporation or registrar require.

(4) If the transmission is in consequence of the death of a joint stockholder the declaration shall if the Corporation or the registrar so require set forth a copy of the register of the death or burial of the deceased stockholder and declare the identity of the deceased person with the deceased stockholder and if the transmission is in consequence of the marriage of a female stockholder the declaration shall if the Corporation or the registrar so require set forth a copy of the register of the marriage of the stockholder and declare the identity of the married person with the stockholder.

(5) The name of the person entitled under the transmission shall be entered in the Corporation stock register.

(6) Until such evidence has been furnished the Corporation or the registrar shall not be affected by the transmission and no person claiming by virtue thereof shall be entitled to receive any dividend on the stock.

(7) In this section the term "transmission" includes any case of apparent transmission in consequence of the change of name of the stockholder although the actual ownership of the stock may remain unaltered.

321. Where two or more persons are registered as joint owners of any stock such persons shall be deemed to be joint owners with right to survivorship between them.

Transmis-
sion on
death.

322. The Corporation may pay by the registrar or other officer the dividends on Corporation stock and such dividends shall be paid upon the first day of January and the first day of July in each year except when such days or either of them shall fall on a Saturday Sunday or day observed as a public holiday at the Bank of England and then upon the day next following such excepted day or days.

Payment of
dividends.

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*Financial
Provisions.*

Dividends to
executors.

323. The Corporation or the registrar shall not be required to allow any executors or administrators to receive any dividend on Corporation stock held by their testator or intestate until the probate of the will or the letters of administration has or have been left with and duly registered by the Corporation.

Evidence of
title.

324. The Corporation or the registrar before allowing the receipt of any dividend on any Corporation stock may if the circumstances of the case appear to them or him to make it expedient require evidence of the title of any person claiming a right to receive the dividend and that evidence shall be a statutory declaration of competent persons or of such other nature as the Corporation or the registrar may require.

Dividends
to joint
holders.

325.—(1) Where more persons than one are registered as joint holders of any Corporation stock any one of them may give an effectual receipt for any dividend thereon unless notice to the contrary has been given to the Corporation or the registrar by any other of them.

(2) Where Corporation stock is standing in the name of an infant or person of unsound mind jointly with any person not under legal disability a letter of attorney for receipt of the dividends on the stock shall be sufficient authority in that behalf if given under the hand and seal of the person not under disability attested by two or more credible witnesses but the Corporation or the registrar before acting on the letter of attorney may if they or he think fit require proof to their or his satisfaction of the alleged infancy or unsoundness of mind by a statutory declaration of one or more competent persons.

Dividend
warrants
by post.

326. Where a Corporation stockholder desires to have his dividends sent to him by post he may make a request for that purpose to the Corporation or to the registrar in writing signed by him in a form approved by the Corporation and shall give to the Corporation or the registrar an address in the British Islands to which the letters containing the warrants are to be sent.

The posting by the Corporation or the registrar of a letter containing a dividend warrant addressed to a stockholder at his request at the address so given by him shall as respects the liability of the Corporation and of the registrar be equivalent to the delivery of the warrant to the stockholder himself.

Every warrant so sent by post shall be deemed a cheque and the Corporation and the registrar shall in relation thereto be deemed a banker within the Bills of Exchange Act 1882.

This section shall not apply to cases within section 4 of the National Debt Act 1889.

327.—(1) On demand of a Corporation stockholder the Corporation or the registrar may issue to the stockholder a Corporation stock certificate to bearer that is to say a certificate of title to his stock or any part thereof entitling the bearer to the stock therein specified and transferable by delivery with coupons entitling the bearer of the coupons to the dividends on the stock but so that no such certificate or coupons shall give a title to dividends beyond the time limited for redemption of the stock.

Provisions
respecting
stock cer-
tificates and
coupons to
bearer.

(2) A Corporation stock certificate to bearer shall not be issued in respect of any sum of stock other than ten pounds or a multiple of ten pounds.

(3) No trustee shall apply for purchase take or hold a Corporation stock certificate to bearer unless he is in express words authorised to do so by the instrument creating his trust and any contravention of this provision by a trustee shall be deemed a breach of trust but this provision shall not impose on the Corporation or the registrar an obligation to inquire or to take notice whether a person applying for or holding a stock certificate to bearer is or is not a trustee or subject the Corporation or the registrar to any liability in case of their or his with or without notice issuing to a trustee a stock certificate to bearer or invalidate any stock certificate to bearer issued.

(4) Where a Corporation stock certificate to bearer is outstanding the stock represented thereby shall cease to be transferable by deed under and according to the provisions of this Part of this Act.

(5) The bearer of a Corporation stock certificate to bearer may on delivery up to the Corporation or the registrar of the certificate and of all unpaid coupons belonging thereto require to be entered in the Corporation stock register as the holder of the stock described in the certificate under which he derives title and thereupon the stock shall be re-entered in the register as transferable and shall become and again be transferable in the Corporation stock transfer books or by deed as the case may require and shall as regards the mode of payment of the dividends thereon be in the like condition as if no stock certificate to bearer had been issued in respect thereof.

(6) The coupons issued with a Corporation stock certificate to bearer shall comprise the dividends to be paid in respect of the stock therein specified for such period as the Corporation approve.

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(7) At the end of that period fresh coupons may be issued for such further period as the Corporation approve and so for successive periods during the continuance in force of the stock certificate but the Corporation or the registrar may in lieu of issuing fresh coupons in respect of any stock certificate give in exchange a fresh stock certificate with coupons.

(8) Payment to the bearer of a coupon of the amount expressed therein shall be a full discharge to the Corporation and to the registrar from all liability in respect of that coupon and the dividend represented thereby.

(9) Where the Bank of England is the registrar coupons shall be payable at the chief establishment of the bank at the expiration of three clear days from the day of presentation and at any branch establishment of the bank situate more than ten miles from the chief establishment at the expiration of five clear days from the day of presentation.

(10) If a Corporation stock certificate to bearer or coupon is worn out or damaged the Corporation or the registrar on production and delivery up thereof may cancel it and issue a new certificate or coupon.

(11) If a Corporation stock certificate to bearer or coupon is lost or destroyed the Corporation or the registrar may issue a new certificate or coupon on receiving indemnity to the satisfaction of the Corporation against the claims of all persons deriving title under the certificate or coupon lost or destroyed.

(12) All coupons issued under this Act in respect of any Corporation stock certificate to bearer shall for the purposes of the Acts relating to stamp duties be deemed to have been attached to and issued with such stock certificate.

(13) Corporation stock specified in a stock certificate to bearer shall be charged on the same securities and be subject to the same powers of redemption and other powers and save as regards the mode of transfer and of payment of dividends thereon and save as far as a stock certificate to bearer is a negotiable instrument shall be subject to the same incidents in all respects as if that stock had continued to be registered in the Corporation stock register as transferable in books or by deed.

Nature of
Corporation
stock.

328. Corporation stock is personal property.

Corporation stock is not liable to foreign attachment by the custom of London or otherwise.

No notice of any trust expressed implied or constructive in respect of any Corporation stock or of any Corporation stock certificate to bearer or coupon shall be entered in the Corporation stock register or in any other book kept by the Corporation or the registrar or be receivable by the Corporation or the registrar or affect the Corporation through the registrar or otherwise.

Where any mortgage bond stock funded debt annuities or other security granted or created before or after the commencement of this Act by the Corporation is paid off or redeemed by the Corporation or purchased by them for extinction such security shall be forthwith cancelled by the Corporation and become vested in them without any conveyance transfer or assignment from or by the persons registered as the holders thereof and entitled thereto and on such cancellation the said security and all dividends thereon (not already accrued) shall be and the same are by virtue of this Act extinguished.

329. A person taking or holding Corporation stock shall not be bound to inquire or take notice whether the creation or issue thereof was or was not within the statutory borrowing power of the Corporation or otherwise in accordance with the Corporation Acts and Orders or whether or not the Council or any meeting thereof was properly constituted or convened or whether or not the proceedings at any meeting of the Council were legal or regular or to see to the application of any money raised by Corporation stock or be answerable for any loss or misapplication thereof.

Protection
of holders of
Corporation
stock.

330. Except as in this Part of this Act expressly provided nothing in this Part of this Act shall relieve the Corporation from any obligation imposed on them in relation to any statutory borrowing power by any Act of Parliament under or by which that power for the time being exists or is regulated.

Saving for
other obli-
gations.

331. Nothing in this Part of this Act shall affect any power or duty of the Corporation to sell lease or otherwise dispose of any land or property of the Corporation or to apply any purchase money or other money arising thereby in discharge of any charge on that land or property or the revenues thereof other than the charge of Corporation stock or affect any claim of any person under such first-mentioned charge.

Saving for
power to sell
lands &c.

That land or property shall in the hands of the purchaser or other person taking the same under the sale lease or other disposition be by virtue of this Act absolutely freed from the charge

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of Corporation stock and he shall not be concerned to see to the application of that purchase money or other money or be answerable for any loss or misapplication thereof.

Forgery.

332. Corporation stock shall be deemed capital stock of a body corporate within the Forgery Act 1861.

A Corporation stock certificate to bearer and a coupon connected therewith shall be deemed a stock certificate and coupon within the Forgery Act 1870.

Regulations
as to Cor-
poration
stock forms
fees and
expenses.

333. Where the Bank of England is the registrar they may with the consent of the Corporation from time to time issue any forms that may be required for carrying into effect the provisions of this Part of this Act and may also from time to time make any regulations that are not inconsistent with this Part of this Act relative to the following things and when made may alter vary or repeal any such regulations and make other regulations instead thereof or in addition thereto and any such regulations for the time being in force shall be duly observed:—

- (A) The period for which coupons are to be given :
- (B) The mode in which the bank are to act in issuing stock certificates to bearer or entering in the transfer books the bearers of stock certificates to bearer :
- (C) The mode of proving the title of or identifying any person applying for a stock receipt or stock certificate or stock certificate to bearer :
- (D) With respect to anything necessary for carrying into effect the provisions of this Part of this Act which relate to or affect the bank.

The forms given in the Twelfth Schedule may be used for the purposes therein indicated and the same or forms to the like effect with such variations or additions as circumstances require shall be effectual for those purposes.

Fees not exceeding those specified in the Twelfth Schedule may be taken by or on behalf of the Corporation in the cases therein mentioned.

The proceeds of fees shall be paid by the Corporation into the dividends fund and shall be applied in reduction of contributions out of the Corporation revenues payable into the dividends fund in respect of dividends on such portions of Corporation stock as the Corporation having regard to the cases in which the fees are paid determine.

[5 EDW. 7.] *Leeds Corporation (Consolidation) Act, 1905.* [Ch. i.]

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*Financial
Provisions.*

Expenses of bookkeeping and management and other current expenses from time to time incurred by the Corporation in the execution of this Part of this Act shall be defrayed as the ordinary expenses of the Corporation as a municipal body are or may be defrayed.

334. The existing stocks and securities created and issued by the Corporation as and upon the terms and conditions set out in the Thirteenth Schedule to this Act shall so far as such terms and conditions are not inconsistent therewith and subject thereto be deemed to be Corporation stock issued under and by virtue of the provisions of this Act and to be transferable by deed.

Special pro-
vision as to
existing
stock.

335.—(1) The provisions of the section of this Act whereof the marginal note is "Provisions respecting stock certificates and coupons to bearer" shall with the necessary modifications apply to any mortgages issued or to be issued by the Corporation in exercise of any statutory borrowing power and subsection (3) of section 51 (Provisions as to mortgages) of the Leeds Corporation (General Powers) Act 1901 is hereby repealed.

Amendment
of Leeds
Corporation
(General
Powers) Act
1901.

(2) Any person to whom any outstanding principal money is owing for the time being and who is one of the persons enabled by the Lands Clauses Consolidation Act 1845 section 7 to sell land under that Act may in the manner and to the extent in the said section provided consent to the payment off redemption or substitution therefor of Corporation stock or mortgage as provided by section 52 (Payment off of or substitution for existing securities) of the Leeds Corporation (General Powers) Act 1901 and subsection (3) of such last-mentioned section is hereby repealed.

(3) The expression "Corporation Acts and Orders" in the Leeds Corporation (General Powers) Act 1901 shall extend to and include all the Acts and Orders included in that expression in this Act.

336. The Corporation shall not be bound to see to the execution of any trust whether express or implied or constructive to which any principal money may be subject but the receipt of the person in whose name principal money stands in the register book or books of the Corporation shall from time to time be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such principal money may be subject and whether or not the Corporation have had express or implied notice of any trust or of any charge or incumbrance upon or transfer of such principal money or any part thereof or interest

Corporation
not to regard
trusts.

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*Financial
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thereon not entered in their register book or books and the Corporation shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any of such money.

Separate
accounts for
water gas
tramways
electricity
and market
under-
takings.

337. The Corporation shall keep their accounts so as to show under a separate heading or division in respect of each of the following undertakings (that is to say) The waterworks the gas-works the tramways the electricity and the markets undertakings respectively on the one side all receipts in respect of the particular undertaking and on the other all expenses in respect of the same undertaking such expenses being divided so as to also show in each case the amounts expended in respect of each of the following purposes (that is to say):—

- (A) The working and establishment expenses and cost of the undertaking:
- (B) The interest on principal moneys borrowed by the Corporation and applied by them for the purposes of the undertaking:
- (C) The requisite appropriations instalments or redemption fund payments in respect of such principal moneys as last aforesaid:
- (D) The extension and improvement (if any) of the undertaking.

Reserve
fund.

338.—(1) Whenever in any year it shall appear from the said accounts that the receipts in respect of any one of the said undertakings exceed in amount the expenses in respect of the same undertaking the Corporation may if they think fit set aside in respect of that undertaking such an amount of money as they think reasonable not exceeding the amount of the difference between the said receipts and expenditure for the purpose of providing a reserve fund and such moneys and the resulting income thereof shall be invested in statutory securities and accumulated at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation in respect of the undertaking in question but such maximum shall in no case exceed at any one time a sum equal to one-fifth of the aggregate capital expenditure for the time being by the Corporation.

(2) Such reserve fund shall be applicable to answer any deficiency at any time happening in the income of the undertaking

in respect of which the reserve fund is created and the expenses in respect of that undertaking in any year exceeding the receipts in respect thereof for that year or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the said undertaking and so that if the fund is at any time reduced it may thereafter be again restored to the prescribed limits and so on as often as the reduction happens.

(3) Whenever the amount in the reserve fund shall reach the maximum so prescribed as aforesaid the annual proceeds thereof shall be treated as receipts arising from the undertaking in respect of which the reserve fund is created and shall be dealt with accordingly.

339. In all cases in which the Corporation keep separate accounts for separate purposes they may apportion between those accounts or carry to either of them any receipts credits payments and liabilities which from time to time it appears to them ought to be so apportioned or carried.

Apportion-
ment of
items.

340.—(1) The provisions of the Municipal Corporations Act 1882 relating to the keeping and auditing of accounts and the accounts kept of sums of money received and paid under that Act shall extend to the keeping and auditing of accounts and to the accounts kept of sums of money received and paid under the Corporation Acts and Orders.

Audit of
accounts and
date for
making up
accounts.

(2) All the accounts of the Corporation shall be made up each year to the thirty-first day of March in that year.

PART XXVII.

PART XXVII.
Police.

POLICE.

341. The following sections of the Town Police Clauses Act 1847 (namely):—

Section 10 (Constables not to resign without leave or notice);

Section 12 (Penalty for unlawful possession of accoutrements);

Certain pro-
visions of
Town Police
Clauses Act
1847 incor-
porated.

are hereby incorporated with this Act.

342. The chief constable of the city may provisionally suspend any constable of the city police force from the exercise of his office for such time as the chief constable thinks fit for breach of discipline or neglect or violation of duty or grave misconduct The

Power to
chief con-
stable to
suspend
constables.

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chief constable shall report every such case of suspension to the watch committee who at their next meeting after such suspension may confirm or remit the suspension Any constable who while suspended by the chief constable exercises in any manner the office of constable shall be liable to a penalty not exceeding five pounds.

Constables
suspended or
dismissed to
deliver up
accoutre-
ments.

343. If any constable be suspended by the chief constable and do not if required deliver over to the chief constable all or any part of the clothing accoutrements or appointments supplied to him for the execution of his duty or if any constable be dismissed from or cease to hold and exercise his office and do not forthwith deliver over all the clothing accoutrements appointments and other necessities supplied to him for the execution of his duty to the chief constable or to the person and at the time or place directed by the watch committee he shall be liable to imprisonment with or without hard labour for any term not exceeding one month and any justice may issue his warrant to search for and seize to the use of the Corporation all clothing accoutrements appointments and other necessities not so delivered over wherever found.

Corporation
fire brigade
and control
of operations.

344. The chief constable or superintendent of the fire brigade of the Corporation or other officer for the time being in charge of the engines or part of the fire police establishment of the Corporation attending at any fire in the city shall from the time of his arrival thereat have the sole charge and control of all operations for the extinguishment of such fire whether by the Corporation engine or establishment or any other or others including the fixing of the positions of fire engines and apparatus the attaching of hose to any water pipes or water supply and the parts of the building on fire or of adjoining buildings against which the water is to be directed.

Regulation
of traffic at
fires.

345. The officer in charge of the police at any fire in the city shall have power to stop or regulate the traffic in any street whenever in his opinion it is necessary or desirable to stop or regulate such traffic for the purpose of extinguishing the fire or for the safety or protection of life or property and any person who wilfully disobeys any order given by such officer in pursuance of this section shall be liable to a penalty not exceeding five pounds.

Power to
police con-
stable &c. to
enter and
break open
premises in
case of fire.

346. Any police constable acting under the orders (either general or special) of his superior officer and any member of the fire brigade of the Corporation being on duty and any officer of the Corporation may enter and if necessary break into any building

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in the city being or reasonably supposed to be on fire or any buildings or lands adjoining or near thereto without the consent of the owner or occupier thereof respectively and may do all such acts and things as they may deem necessary for extinguishing fire in any such building or for protecting the same or rescuing any person or property therein from fire.

347. Any constable and all persons called by him to his assistance may seize and detain any person who shall have committed any offence against the provisions of Part XVI. (Street and other police offences) of this Act whose name and residence shall be unknown to and cannot be ascertained by such constable and may convey him with all convenient despatch before some justice without any warrant or authority other than this Act and such justice shall proceed with all convenient despatch to the hearing and determining of the complaint against such offender.

Power to
arrest
unknown
offenders.

PART XXVIII.

PART XXVIII.
Miscellaneous.

MISCELLANEOUS.

348.—(1) The name of the municipal corporation of the city is and shall be “the Lord Mayor Aldermen and Citizens of the City of Leeds.”

Name of
Corporation.

(2) All charters public and general and local statutes orders confirmed by Parliament byelaws regulations commissions fiats awards judgments and decrees and all bonds conveyances covenants deeds mortgages securities contracts agreements resolutions orders and notices legal and other proceedings and the grant of arms from the Heralds College and other instruments and documents relating to the Corporation by their original or any other name shall from and after the commencement of this Act be read and have effect as if throughout the same respectively wherever the original or other name of the Corporation or a reference to the Corporation by their original or other name occurs the present names of the lord mayor aldermen and citizens of the city of Leeds were substituted.

(3) The seal of the Corporation shall be altered in accordance with the provisions of this section.

349. For the better and more effectually carrying into execution the powers and duties of the Corporation under the Public Libraries Acts 1892 to 1901 those Acts shall be read and have

Limit of
library rate
extended.

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Miscellaneous.

effect as if the limit thereby imposed on the amount authorised to be levied by or added to a rate were extended so as not to exceed the sum of twopence in the pound.

Band of
music.

350. The Corporation may pay or contribute towards the payment of a band of music to perform in any park or building for the time being belonging to or held by the Corporation or elsewhere in the city as they may direct and the Corporation may enclose a small area in any park within which such band shall play and make byelaws for regulating the time and place for the playing of the band and the payments to be made for admission within such building or inclosure and for securing good and orderly conduct during the playing of the band. Provided that the payments or contributions of the Corporation for or towards such band shall be paid out of the consolidated fund and shall not in any one year exceed the sum of five hundred pounds.

Disposal of
products
of dust
destructor.

351. The Corporation may provide erect and use apparatus for converting the products of combustion in their dust and refuse destructors into mortar artificial stone or other saleable commodity and may sell such mortar artificial stone or other commodity and any moneys received by the Corporation in respect of such sale shall be carried to the credit of the consolidated fund.

Corporation
may provide
&c. ambu-
lance vans.

352. The Corporation may provide and maintain ambulance vans for use in case of accidents within the city and they may employ officers in connection therewith and they may make such charges for the use of the said vans and for assistance rendered by such officers as they may think fit and the expense of providing and maintaining such ambulance vans and the employment of officers in connection therewith shall be chargeable on the consolidated fund.

Life-saving
apparatus
and assistants
may be pro-
vided &c.

353. It shall be lawful for the Corporation to purchase provide and maintain all such apparatus matters and things as may appear to them to be necessary to assist in searching for drowned persons and restoring animation to persons apparently drowned and to employ and reward assistants therein in such manner as to the Corporation shall seem expedient.

Premises
may be pro-
vided for
drying
washed
clothes.

354. It shall be lawful for the Corporation in their discretion at any time and from time to time to purchase rent or otherwise provide suitable and convenient land and premises for the use and accommodation of the inhabitants of the city in drying washed linen and clothes under and subject to such rules and regulations as the council may deem expedient.

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355.—(1) The Corporation may purchase provide maintain regulate and manage swimming Turkish and other baths and they may demand and take such reasonable charges for the use thereof as they may think fit.

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Miscellaneous.

Turkish and
other baths.

(2) Section 36 (Proportion of baths for labouring classes) of the Baths and Washhouses Act 1846 shall cease to apply to the Corporation and their baths within the city.

356. The fire brigade offices and stations and firemen's dwellings and all the appliances and implements for safety or use in case of fire which at the commencement of this Act were vested in or used by the Corporation shall be deemed to have been acquired and provided under the provisions of section 32 of the Town Police Clauses Act 1847 and such section shall be and is hereby extended to enable the Corporation to provide dwellings for the habitation of the firemen employed by them and to let such dwellings or any of them to such firemen on such terms and conditions as the Corporation shall think fit.

As to fire
brigade
premises and
appliances.

357. Except so far as the same already exists it shall not be lawful for any person to construct or place any weir dam or other obstruction in the bed of the Sheepscar Beck or of the Hol Beck or to construct any lodge by the side of the channel of either of those becks in such manner as to obstruct the free course of the stream.

Prohibition
of future
weirs in
Sheepscar
Beck and
Hol Beck.

358. The Corporation shall at all times maintain in good and efficient repair and working order all works affecting the Sheepscar Beck or the Hol Beck constructed by them for straightening and improving the beds of such becks or otherwise.

Corporation
to maintain
works.

359. The Corporation shall at all times maintain the works constructed by them in the Hol Beck so far as the same works pass through or affect the railway lands or property of the Midland Railway Company in complete and substantial repair and condition to the reasonable satisfaction in all respects of the engineer for the time being of the Midland Railway Company and if and whenever the Corporation fail so to do the Midland Railway Company may make and do such works and things as may be requisite in that behalf and the reasonable amount of their expenditure in that behalf from time to time shall be repaid to them by the Corporation and in default of full payment the amount due may be recovered with full costs by the company from the Corporation in any court of competent jurisdiction and if any dispute shall arise

For protec-
tion of Mid-
land Rail-
way Com-
pany.

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under this Act between the Corporation and the company or their respective engineers the matter in dispute shall from time to time be decided by an engineer to be appointed by the Board of Trade on the application of either of the parties and the cost of such arbitration shall be paid by the Corporation.

The Corporation shall not in the execution or maintenance of the works by this Act authorised in any manner alter the line or levels of the said railway or interfere with the free uninterrupted and safe use and working of the Midland Railway and the sidings roads and approaches connected therewith and the safe conduct of the traffic thereon respectively and all costs and expenses incurred by the company in watching lighting and signalling the said railway or in propping shoring and repairing the works of the company shall be repaid to them on demand by the Corporation and all damages which may arise to the company by reason of any of the works by this Act authorised shall be paid by the Corporation and may be recovered as liquidated damages.

Power to
grant super-
annuation
allowance or
gratuity to
officers.

360.—(1) The Corporation may from time to time grant at their discretion to any present or future officer (other than a police officer) or servant of the Corporation who may become incapable of discharging with efficiency the duties of his office by reason of old age or of permanent infirmity in mind or body an annual allowance upon his resignation or otherwise ceasing to hold his office and the allowance may be of any annual amount not exceeding two-thirds of his then salary or other remuneration from the Corporation and may be granted to him upon such terms and conditions and to continue for such period during his lifetime as the Corporation think fit or the Corporation may if they think fit grant to any such officer or servant or to the widow or family of any such officer or servant who may die in their service a gratuity not exceeding in the whole one year's pay.

(2) Every such allowance or gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer or servant would have been charged or paid if he had continued in his office or service.

Power to
create acci-
dent fund.

361. The Corporation may if they think fit form a fund to be called the accident fund to provide for meeting claims upon them under the Employers' Liability and Workmen's Compensation Acts in respect of any accident occurring in the execution of any of their powers as a Corporation or under the Corporation Acts and Orders and such fund shall be formed by annually appropriating

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thereto out of their revenues such sum as they from time to time deem expedient and investing the same at compound interest in or upon any statutory securities and accumulating the same and the Corporation may from time to time or at any time resort to the fund for any purpose mentioned in this section.

362. The Corporation may declare any expenses incurred by them under the provisions of the Corporation Acts and Orders which are recoverable from the owner or owners to be private improvement expenses and thenceforth those expenses may be recovered and shall be charged upon the premises in respect of which they were incurred in accordance with the provisions of section 257 of the Public Health Act 1875.

Expenses may be declared private improvement expenses.

363. Whenever the Corporation under any enactment or byelaw for the time being in force within the city execute re-execute or alter any work act or thing in default of the owner or occupier and in the absence of misconduct or negligence on the part of the Corporation or of any contractor or person employed by them are required to pay any damages penalties costs charges and expenses for or in respect of or consequent upon the executing re-executing or altering such work act or thing the amount thereof when paid shall be deemed to be part of the expenses payable by such owner or occupier and shall be recoverable accordingly.

In executing works for owner Corporation not liable for damages save in case of negligence.

364. Whenever default is made in the execution of any work act or thing required by any Act or byelaw in force within the city to be done in respect of any sewer or drain by any owner occupier or other person and default is made therein or if any such work act or thing is improperly or insufficiently done the Corporation may cause such work act or thing to be executed re-executed or done (as the case may require) and also whenever any work act or thing is by this Act or any such byelaw prohibited from being done in respect of any sewer or drain and it nevertheless is done the Corporation may remove abate or alter the work act or thing so done and the expenses incurred by the Corporation in any such case or incidental thereto shall be repaid to them by the person making default in the execution or doing of or improperly or insufficiently or unlawfully executing or doing such work act or thing as the case may be notwithstanding any penalty may be imposed on such person by any Act or byelaw.

Power to execute sewerage or drainage works in default of person liable.

365. Where the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which are recoverable by the

Apportionment of expenses in case of joint owners.

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Miscellaneous.

Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be settled by the surveyor or in case of dispute by a court of summary jurisdiction.

Shops may
be provided
in connection
with schemes
under
Housing of
the Working
Classes Acts.

366. In connection with the provision of any accommodation required to be provided by the Corporation in connection with the schemes of the York Street and Quarry Hill unhealthy areas respectively now being carried out by them under the Housing of the Working Classes Acts the Local Government Board may sanction a scheme which includes as part thereof the provision of shops or stores on the ground floor of any buildings in which such accommodation is to be provided and in the event of the said accommodation being erected by the Corporation the powers of the Local Government Board to sanction the borrowing of money by the Corporation under and for the purpose of the said Acts shall extend to and include this purpose.

Service of
notices.

367.—(1) Any notice or demand given made or served by or on the part of the Corporation under this Act or any other Act or byelaw shall be sufficiently authenticated by the name of the town clerk treasurer city engineer city accountant or other appropriate officer (according to the subject of the particular instrument) being affixed thereto in print or in writing or by a stamp on behalf of the Corporation.

(2) Subject to the express provision of this or any other Act it shall be sufficient where any such notice summons or demand is required to be given to or served on the owner or occupier of any property to address the same to such owner or occupier by his description as owner or occupier (as the case may be) of the premises (naming them) in respect of which the same is given or served without further name or description.

(3) Any such notice or demand may be served on any owner occupier or other person either personally or by sending the same prepaid through the post by prepaid letter addressed to him by name at his last known or usual place of abode or business or by delivering the same to some inmate at his last known or usual place of abode or business or in case of an occupier to any inmate of the premises in respect of which such notice summons or demand shall be given or served or if the premises are unoccupied and the place of abode of the person to be served is unknown it shall be sufficient to affix such notice summons or demand or a copy thereof on some conspicuous part of the premises.

(4) Provided always that in the case of any railway or canal company any such notice or document shall be delivered or sent by

post addressed to the secretary of the company at their principal office or place of business.

(5) For the purposes of this section the expression "notice" shall include a copy of an order made by the Corporation for paving flagging levelling draining or sewerage a street or part of a street under the Corporation Acts and Orders.

368. Any notice or other document required to be served on the Corporation may be lawfully served by delivering the same to the town clerk or leaving the same at his office with some person employed there by him or by being sent through the post in a prepaid letter directed to the town clerk in which latter case service shall be deemed to be effected on the Corporation on the day on which such letter would be delivered in the ordinary course of post.

Service of
notice on
Corporation.

369. Where in any legal proceedings taken by or on behalf of the Corporation or the council whether under any general or local Act of Parliament and whether passed before or after the passing of this Act it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the council or to prove any resolution of the council or of any committee of the council a certificate of such appointment authority or resolution purporting to be authenticated by the signature of the mayor or the town clerk shall be *prima facie* evidence of such appointment authority or resolution.

Evidence of
appointment
authority &c.

370. All the provisions with respect to byelaws contained in sections 182 to 185 (both included) of the Public Health Act 1875 (except so much thereof as relates to byelaws of a rural sanitary authority) shall apply to all byelaws from time to time made by the Corporation under the powers of the Corporation Acts and Orders and for which no other provision has been made.

General
provisions as
to byelaws.

371.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under the Corporation Acts and Orders and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

Inquiries
by Local
Government
Board.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses

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Miscellaneous.

summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

Certified
copies of
plan to be
evidence.

372. Copies of any plan deposited with the town clerk or any extract therefrom certified by him to be true shall be received by all courts of justice or elsewhere as *prima facie* evidence of the contents of such plan and such plan shall at all reasonable times be open to the inspection of the persons liable to rates imposed by the Corporation and all such persons shall be entitled to a copy of or extract from such plan certified by the town clerk on payment of a reasonable fee for every such copy or extract.

Compensa-
tion how to
be deter-
mined.

373. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts.

Recovery
of sums by
action.

374. Whenever any person neglects to pay any rent rate or sum due to the Corporation they may recover the same in any court of competent jurisdiction for the recovery of debts of the like amount and the remedy of the Corporation under this enactment shall be in addition to their other remedies for the recovery of such rent rate or sum.

Recovery of
penalties.

375. Save as otherwise expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Right of
appeal.

376. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence or consent or approval of or by the Corporation or of or by any officer or valuer of the Corporation or by any conviction or order made by a court of summary jurisdiction under any provision of this Act or of the Corporation Acts and Orders or any byelaws made under this Act or the Corporation Acts and Orders may if no other mode of appeal is provided appeal to the next practicable court of quarter sessions for the city under and according to the provisions of the Summary Jurisdiction Acts and the said court may make such order in the matter as to the said

court may appear just Provided that for the purposes of this section section 31 subsection (2) of the Summary Jurisdiction Act 1879 shall be read and have effect as if twenty-eight days were the prescribed time for notice of appeal Provided also that nothing in this section shall extend to or apply so as to allow of an appeal against any decision of the Corporation in the matter of the licensing of any house room gardens or other place for music dancing or other public entertainment under the provisions of Part XIX. (Music and Dancing Licences) of this Act.

377. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate payable to the Corporation. Judges not disqualified.

378. All powers given to the Corporation under this Act (except those given by Part II. of this Act) shall be deemed to be in addition to and not in derogation of any other powers conferred on them by the Public Health Act 1875 the Municipal Corporations Act 1882 or any Act amending the same respectively and such other powers may be exercised in the same manner as if this Act had not been passed. Powers of Act cumulative.

379. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown. Crown rights.

380. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation in the first instance out of the city fund and city rate and ultimately out of moneys to be borrowed as by this Act provided. Costs of Act.

PART XXIX.

PART XXIX.
Repeal.

REPEAL.

381.—(1) Subject to the provisions of this Act the Acts and Orders specified in the Fourteenth Schedule to this Act (in this section referred to as "the repealed Acts") are hereby repealed to the extent mentioned in the third column of that schedule Provided that the sections of the repealed Acts mentioned in such third column as excepted from repeal and which are set forth at length in the Fifteenth Schedule to this Act shall have and continue to have the same effect as if this Act had not been passed Provided further and there is hereby also excepted from repeal any powers of the Corporation under such Acts or any of them with

Repeal of Acts.

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PART XXIX.
Repeal.

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respect to the compulsory acquisition thereunder by the Corporation of any lands and any such powers (together with the benefit of any provisions of any other of the repealed Acts incorporated therewith) shall remain in full force and be exercisable to the same extent and subject to the same conditions and restrictions as if this Act had not been passed.

Savings from
effect of
repeal.

(2) Notwithstanding the repeal of the repealed Acts as aforesaid—

(A) All existing bonds mortgages annuities stock or other securities granted payable or created by the Corporation under any of the repealed Acts shall be and continue valid and available for all purposes and for and against all parties and the holders of all such bonds mortgages annuities stock or other securities shall be in the like position and entitled to the like powers rights and remedies as if the same had been respectively granted or issued under the Corporation Acts and Orders :

(B) All property vested in the Corporation at the commencement of this Act shall continue vested in the Corporation and all acts works matters and things before the commencement of this Act done or commenced under the powers of the repealed Acts or any of them and which were at the commencement of this Act valid and available or in progress and all existing notices notices to treat agreements awards conveyances contracts covenants deeds instruments leases obligations rights and remedies shall be and continue valid and available for all purposes and for and against all parties and may be continued enforced and completed as if this Act had not been passed :

(C) All actions arbitrations prosecutions and proceedings by with or against the Corporation by reason of any matter or thing done before the commencement of this Act in execution of or in relation to the repealed Acts or any of them may be continued commenced or prosecuted by or against the Corporation as if this Act had not been passed :

(D) All existing byelaws rules regulations orders and licences shall continue in force until repealed altered or revoked under the provisions of this Act or until their expiration and may be enforced in like manner and with the same penalties as if made for like purposes respectively under the provisions of this Act :

(E) All rates rents tolls and other sums at the commencement of this Act due or accruing due to the Corporation may be collected and recovered by the Corporation as if this Act had not been passed :

(F) All books and documents which under any of the repealed Acts or otherwise would have been receivable in evidence shall be receivable in evidence as if this Act had not been passed.

382. Notwithstanding anything in this Act contained the agreement dated the fourteenth day of April one thousand eight hundred and fifty-six and made between the mayor aldermen and burgesses of the borough of Leeds of the one part and the Reverend James Armitage Rhodes and William Nicholson Nicholson of the other part which agreement is set forth in the Fifteenth Schedule to this Act shall continue and remain of full force and effect and shall enure for the benefit of His Majesty's justices of the peace for the time being acting in and for the west riding of the county of York and of the county council of the said west riding as fully and effectually to all intents and purposes as though the Leeds Improvement Amendment Act 1856 had not been repealed and as though the Corporation were named in the said agreement instead of the mayor aldermen and burgesses of the borough of Leeds.

Preserving
continuance
of scheduled
agreement.

383. Notwithstanding anything contained in this Act the obligations and duties imposed by section XX. of the Leeds Improvement Amendment Act 1856 upon the mayor aldermen and burgesses of the borough of Leeds acting by their council shall continue to be performed and discharged by the Corporation and all the rights authorities and privileges by the same section conferred upon recorders justices of the peace and others shall continue to be exerciseable and may be exercised and enjoyed by such recorders justices of the peace and others as fully as though the said Act had not been repealed.

Continuing
obligations
and rights
with respect
to premises
used for ac-
commodation
of county
justices and
others.

A.D. 1905. The SCHEDULES referred to in the foregoing Act.

First Schedule.

THE FIRST SCHEDULE.

THE CORPORATION ACTS AND ORDERS.

Session and Chapter.	Title or Short Title.
1 Edward 7 c. cclv.	The Leeds Corporation (General Powers) Act 1901.
1 Edward 7 c. cclvi.	The Leeds Corporation Water Act 1901.
59 & 60 Vict. c. ccxxxviii.	The Leeds (Housing of Working Classes) Order 1896 confirmed by the Local Government Board's Provisional Orders Confirmation (Housing of Working Classes) Act 1896.
1 Edward 7 c. clxxi.	The Leeds (Housing of Working Classes) Order 1901 confirmed by the Local Government Board's Provisional Orders Confirmation (Housing of Working Classes) (No. 2) Act 1901.

And also such parts and sections of Acts of Parliament as are excepted from repeal and set out in the Fifteenth Schedule to this Act.

*Second
Schedule.*

THE SECOND SCHEDULE.

LANDS UPON WHICH THE CORPORATION ARE AUTHORISED TO MANUFACTURE GAS.

A piece or parcel of land situate in York Street in the city of Leeds containing 10,535 square yards or thereabouts bounded on the north-east in part by other property belonging to the Leeds Corporation in other part by Vienna Street and in other part by Purdy Street on the south-east by York Street on the north-west and south-west by other property belonging to the Leeds Corporation.

A piece or parcel of land situate in the city of Leeds containing 1,785 square yards bounded on the north and west by other property belonging to the Leeds Corporation on the south by Stainburn Street and on the east by Stainburn Square.

A piece or parcel of land situate at Sheepscar in the city of Leeds containing 10,948 square yards bounded on the north-east by Sheepscar Street on the south-east by property now or lately belonging or reputed to

belong to Messrs. Watson Walker and Quickfall on the north-west by Barrack Street and on the south-west in part by Sheepscar Beck and in other part by property now or lately belonging or reputed to belong to Messrs. Miers.

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—
Second
Schedule.

A piece or parcel of land situate partly in the township of Hunslet and partly in the township of Leeds in the city of Leeds containing 48,940 square yards bounded on the north-east in part by Barstow Street and in other part by property of the Middleton Estate and Colliery Company Limited and in other part by Orfeur Street on the east or south-east by other property of the Middleton Estate and Colliery Company Limited and on the west or north-west in part by property belonging or reputed to belong to Mr. March in other part by Meadow Lane in other part by Church Cross Street and in other part by Holmes Street Cave Street and Dewsbury Road and on the south-west in part by property now or lately belonging or reputed to belong to Hathorn Davey and Co. Limited and in other part by property belonging or reputed to belong to Beckett and Co. and in other part by Jack Lane.

A piece or parcel of land situate in the township of Hunslet in the city of Leeds containing 9,024 square yards bounded on the north and west by property of the Middleton Estate and Colliery Company Limited on the east by Kidacre Street and on the south by Hood Street.

A piece or parcel of land situate in the township of Wortley in the city of Leeds containing 42,908 square yards bounded on the north-east in part by Canal Street and in other part by Herbert Street Delhi Street Wineford Street Greenland Street and Greenland Place on the south-east by Wellington Road on the north-west by Hopewell Street and Stapleton Street and on the south-west by Renton Street.

A piece or parcel of land situate in the township of Wortley containing 10,072 square yards bounded on the north-west by Talavera Street on the south-east by Geldard Road on the north-west by Wellington Road and on the south-west in part by property now or lately belonging or reputed to belong to Joseph Lawson and in other part by property of the Great Northern Railway Company.

A piece or parcel of land situate in the township of Wortley in the city of Leeds containing 2,251 square yards bounded on the north-east by Talavera Street on the south-east by property of the Great Northern Railway Company and on the north-west by Geldard Road.

A piece or parcel of land situate at Farnley in the township of Wortley in the city of Leeds containing 3,938 square yards bounded on the north-east and west by property formerly belonging to John Lupton on the south-west by Wortley Beck and on the south by the Leeds and Whitehall Road.

A piece or parcel of land situate in Kirkstall Road in the city of Leeds containing 12,203 square yards or thereabouts bounded on the north or north-east by Kirkstall Road on the east by Burley Place on the south-east by Canal Road on the west by property of the North Eastern Railway Company and on the south by the River Aire.

A.D. 1905.

THE THIRD SCHEDULE.

Third
Schedule.

CORPORATION TRAMWAYS.

PART I.—CONSTRUCTED AT THE PASSING OF THE ACT.

Tramway No.	Description of the Tramways and of the Streets along which the same are laid down.	Length excluding Crossovers Passing Places Sidings and Junctions.			
		Double Track.		Single Track.	
		M. F.	Yds.	M. F.	Yds.
1	From junction of Briggate with Boar Lane to Kirkstall Abbey by way of Boar Lane Wellington Street Kirkstall Road Commercial Road and Abbey Road.	3	1 41·8		22
2	From junction of St. Paul's Street with Infirmary Street to junction of West Street with Kirkstall Road by way of St. Paul's Street and West Street.	3	169		206
3	From junction of Boar Lane with City Square to Kirkstall Lane by way of Infirmary Street East Parade Park Lane Burley Street Burley Road and Cardigan Road.	2	0 44	5	53
4	From junction of Victoria Road with Cardigan Road to Hyde Park Corner by way of Victoria Road Headingley.	4	158	—	
5	From junction of Park Row with Boar Lane to Three Horse Shoes Otley Road by way of Park Row Cookridge Street Woodhouse Lane Headingley Lane and Otley Road.	2	5 90		22
6	From junction of Cambridge Road with Meanwood Road to Hyde Park Corner by way of Cambridge Road and Woodhouse Street.	4	163	2	59·5
7	From Woodhouse Street to the junction of Park Lane with Burley Street by way of Woodhouse Lane Hyde Park Moorland Road Bellevue Road and Park Lane.	2	209	7	92·62
8	From junction of North Street with Meanwood Road to Meanwood by way of Meanwood Road.	2	3 53		22
9	From junction of Briggate with Boar Lane to Canal Gardens Princes Avenue by way of Briggate North Street Chapeltown Road Harrogate Road and Street Lane.	4	7 11	—	
10	From junction of Roundhay Road with North Street to Canal Gardens Princes Avenue by way of Roundhay Road and Princes Avenue.	2	5 94	—	
11	From Briggate to junction of North Street with New Briggate by way of Duncan Street New Market Street and Vicar Lane.	3	1·27	—	
12	From junction of Briggate with New Market Street to the city boundary at Seacroft by way of Kirkgate New York Street York Street and York Road.	1	7 177·45	4	79·75
13	From junction of Burmantofts Street with York Road to Roundhay Road by way of Burmantofts Street Beckett Street and Harehills Road.	7	110	3	44
14	From junction of Beckett Street with Stanley Road Dépôt by way of Stanley Road.		49·28	—	
15	From Stanley Road Dépôt to Harehills Lane by way of Stanley Road and Compton Road.	1	159·5	1	30·14
16	From Corn Exchange to junction of Marsh Lane with York Road by way of Call Lane Kirkgate and Marsh Lane.	1	198	2	162·5
17	From junction of Accommodation Road with York Road to Cross Green Lane by way of Accommodation Road Dial Street and Easy Road.	3	144	1	0 94
Carried forward - - - - -		24	0 112·30	4	4 7·51

A.D. 1905.

CORPORATION TRAMWAYS.

*Third
Schedule.*

PART II.—IN COURSE OF CONSTRUCTION OR AUTHORISED TO BE
CONSTRUCTED AT THE PASSING OF THE ACT.

Tramway No.	Description of the Tramways and of the Streets along which the same are to be laid down.	Length excluding Crossovers Passing Places Sidings and Junctions.			
		Double Track.		Single Track.	
		M.	F.	Yds.	
1	From junction of City Square with Infirmary Street to junction of City Square with Wellington Street by way of City Square and Quebec Street.			138·6	—
2	From junction of Wellington Road with Wellington Bridge Street to junction of St. Philip Street with West Street by way of St. Philip Street.			180·84	—
3	From present terminus in Low Road to the City Boundary in Leeds and Wakefield Road by way of Low Road Hunslet.	-	-	-	22
4	From junction of Whitehall Road with Geldard Road to the City Boundary at Drighlington by way of Whitehall Road.	3		215·16	3 1 81·4
5	From the junction of Stanningley Road with Lower Town Street to the City Boundary at Calverley by way of Lower Town Street Upper Town Street Broad Lane Whitecote Hill Leeds and Bradford Road and Town Street Rodley.	6		44·88	1 3 85·14
6	From the present terminus in Abbey Road to the City Boundary at Horsforth by way of Abbey Road.	1	1	106·7	—
7	From the junction of Waterloo Road with Hunslet Road to the junction of Balm Road with Moor Road by way of Waterloo Road Church Street and Balm Road.	5		12·54	1 7·7
		3	2	38·72	4 5 196·24

Totals reduced to single track - - M. F. Yds.
11 2 53·68.

*Fourth
Schedule.*

THE FOURTH SCHEDULE.

CORPORATION TRAMWAYS.

LANDS FOR THE GENERATION OF ELECTRICITY.

(1) A piece of land situate in the township parish and city of Leeds containing 8,421 square yards or thereabouts bounded on the north by a public highway called the Calls on the east partly by premises now or late in the occupation of Mr. William Turton and partly by Crown Point Road on the south by the River Aire and on the west by a warehouse now or late in the occupation of Messrs. Fox and Atkinson and others and part of which land is now or lately was used by the Corporation as a sanitary depôt.

[5 EDW. 7.] *Leeds Corporation (Consolidation) Act, 1905.* [Ch. i.]

(2) A triangular piece of land in the township parish and city of Leeds : A.D. 1905.
 adjoining the Corporation Tramways Generating Station bounded on the
 south-west by such station on the north by a public highway called the Calls
 and on the south-east by Crown Point Road and containing 883 square yards
 or thereabouts.

*Fourth
Schedule.*

THE FIFTH SCHEDULE.

*Fifth
Schedule.*

CORPORATION TRAMWAYS.

RATES AND CHARGES FOR THE CONVEYANCE OF ANIMALS GOODS &C.

			Per Mile.	
<i>Animals.</i>			s.	d.
For every horse mule or other beast of draught or burthen	per head		0	4
For every ox cow bull or head of cattle	per head	...	0	3
For every calf pig sheep or other small animal...	per head	...	0	1½

Goods and Minerals.

For all coal coke culm charcoal cannel limestone chalk lime salt sand fireclay cinders dung compost and all sorts of manure and all undressed materials for the repair of public roads or highways	per ton	0	2
For all iron ironstone iron ore pig iron bar iron rod iron sheet iron hoop iron plates of iron slabs billets and rolled iron bricks slag and stone and stones for building pitching and paving tiles slates and clay (except fireclay) and for wrought iron not otherwise specifically classed herein and for heavy iron castings including railway chairs	per ton	0	2½
For all sugar grain corn flour hides dye-woods earthenware timber staves deals and metals (except iron) nails anvils vices and chains and for light iron castings	per ton	0	3
For cotton and other wools drugs and manufactured goods and all other wares merchandise fish articles matters or things	per ton	0	4
For every carriage of whatever description under one ton in weight tenpence with the additional charge of twopence per quarter of a ton over one ton in weight.			

Single Articles of Great Weight.

For the carriage of any iron boiler cylinder or single piece of machinery or single piece of timber or stone or other single article the weight of which including the carriage does not exceed four tons	per ton	0	8
For the carriage of any single piece of timber stone machinery or other single article the weight of which with the carriage exceeds four tons such sum as the person or persons entitled to demand and take tolls and charges in respect of the same may think fit.			

A.D. 1905.

*Fifth
Schedule.*

<i>Parcels.</i>				<i>Any Distance.</i>	
				<i>s.</i>	<i>d.</i>
For any parcel not exceeding seven pounds in weight	...	...	...	0	3
For any parcel exceeding seven pounds and not exceeding fourteen pounds in weight	...	...	...	0	5
For any parcel exceeding fourteen pounds and not exceeding twenty-eight pounds in weight	...	...	...	0	7
For any parcel exceeding twenty-eight pounds and not exceeding fifty-six pounds in weight	...	...	...	0	9
For any parcel exceeding fifty-six pounds in weight such sum as the person or persons entitled to demand and take tolls and charges in respect of the same may think fit:					

Provided always that articles sent in large aggregate quantities although made up in separate parcels such as bags of sugar coffee meal and the like shall not be deemed small parcels but that term shall apply only to single parcels in separate packages.

Regulations as to Tolls.

For a fraction of a ton tolls or charges may be demanded and taken according to the number of the quarters of a ton in such fraction and if there be a fraction of a quarter of a ton such fraction shall be deemed a quarter of a ton.

With respect to all articles except stone and timber the weight shall be determined according to the imperial avoirdupois weight.

With respect to stone and timber fourteen cubic feet of stone forty cubic feet of oak mahogany teak beech or ash and fifty cubic feet of any other timber shall be deemed one ton weight and so in proportion for any smaller quantity.

*Sixth
Schedule.*

THE SIXTH SCHEDULE.

CORPORATION TRAMWAYS.

AGREEMENT WITH THE HORSFORTH URBAN DISTRICT COUNCIL.

MEMORANDUM OF AGREEMENT made this 21st day of December 1903 between the LORD MAYOR ALDERMEN AND CITIZENS OF THE CITY OF LEEDS (hereinafter called "the Corporation") of the one part and the HORSFORTH URBAN DISTRICT COUNCIL (hereinafter called "the district council") of the other part.

WHEREAS the Corporation are the owners of the Leeds Corporation Tramways undertaking:

And whereas the district of the district council is contiguous to the city of Leeds:

And whereas the district council are empowered under the provisions of the Horsforth Urban District Tramways Order 1903 (hereinafter referred to as "the Horsforth Order") to construct certain tramways within their district:

A.D. 1905.

*Sixth
Schedule.*

And whereas the district council have requested the Corporation to construct and work the tramways authorised by the Horsforth Order and the Corporation have agreed to accede to such request upon the terms and conditions hereinafter contained:

Now therefore it is hereby mutually agreed by and between the parties hereto as follows (that is to say):—

- (1) The district council shall transfer to the Corporation the powers conferred upon the district council by the Horsforth Order and such powers shall be exerciseable in perpetuity by the Corporation in the same way and to the like effect as if the Horsforth Order had been obtained by the Corporation and the tramways had been authorised as part of the Leeds Corporation Tramways undertaking and the Corporation shall relieve the district council of all obligations incumbent upon them under the Horsforth Order provided however that section 38 (Mortgages may include rents) section 41 (Audit of accounts) and section 42 (Protection of local authority) thereof shall not apply to the Corporation:
- (2) The Corporation shall not be bound to construct any of the tramways authorised by the Horsforth Order other than so much of Tramway No. 1 as is situate in the Kirkstall Otley and Shipley Road between the boundary of the city of Leeds and the junction of Calverley Lane with the said Kirkstall Otley and Shipley Road:
- (3) The Corporation shall repay to the district council the expenses incurred by the district council in obtaining the Horsforth Order and the confirmation thereof by Parliament:
- (4) The Corporation shall construct the portion of the Tramway No. 1 hereinbefore referred to within the time specified in the Horsforth Order or any extension of such time which may be granted by the Board of Trade and the district council shall afford all facilities for the construction and maintenance of the same:
- (5) The district council shall permit the Corporation to use for the purpose of maintaining and repairing such portion of the roadway as is herein agreed to be maintained and repaired by the Corporation under the provisions of clauses 4 and 6 hereof all materials now or hereafter being in or upon the said roadway:
- (6) The Corporation shall maintain in good condition and repair so much of the roadway as lies between the tram rails and extends 18 inches beyond the rails on each side of any tramway lines and where there are double lines the space between the two sets of lines:

A.D. 1905.

*Sixth
Schedule.*

- (7) The Corporation shall from time to time as and when they may consider it necessary or expedient so to do renew the rails fittings and appliances of the tramways and the paving thereof :
- (8) The district council shall pay to the Corporation in respect of the maintenance of the roadway by the Corporation under clause 6 hereof the sum of £90 per annum in advance for a period of ten years from the date of the opening for public traffic of the portion of Tramway No. 1 hereinbefore referred to the first payment to be made within one calendar month from the day of such opening for public traffic as aforesaid :
- (9) The fares tolls and charges to be levied by the Corporation within the district of the district council shall be in proportion to those levied generally throughout the Leeds Corporation tramways system having regard to the traffic :
- (10) The Corporation shall have power to provide and place apparatus and appliances for or in connection with electric or mechanical traction in over or under the roads or streets within the district of the district council but always in such a manner as will not interfere with the free and safe passage of ordinary traffic on such roads and in particular to place poles section boxes apparatus and appliances for carrying wires at the side of such roads or streets or on the footpaths thereof as they may consider expedient Provided always that the Corporation shall in carrying out such works use all diligence and shall immediately after the completion thereof restore such roads or streets to their former condition as nearly as may be having regard to the nature of the works carried out :
- (11) The Corporation shall maintain on the said tramway such a service of cars as they shall deem sufficient having regard to the traffic thereover :
- (12) The Corporation shall without delay make application to Parliament for the necessary powers to enable them to carry out their part of this agreement and use their best endeavours to obtain the same and the district council shall support such application if requested by and at the expense of the Corporation In the event of the Corporation failing to obtain from Parliament such necessary powers this agreement shall be null and void and at an end :
- (13) In the event of any difference arising between the Corporation and the district council as to the intent and meaning of this agreement or any part thereof the same shall be settled in manner provided by section 33 of the Tramways Act 1870.

IN WITNESS whereof the Corporation and the district council have hereunto affixed their respective common seals the day and year first before written.

A.D. 1905:

*Sixth
Schedule.*

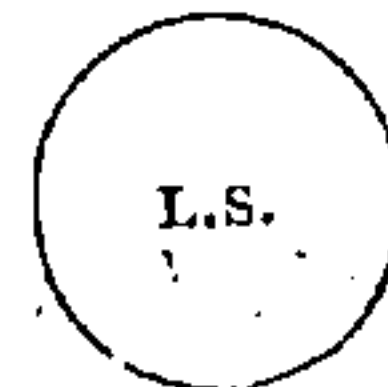
The corporate common seal of the district council was
affixed hereto in the presence of

ROBERT R. JONES

Clerk to the Council.

J. S. NEWSTEAD

Chairman.



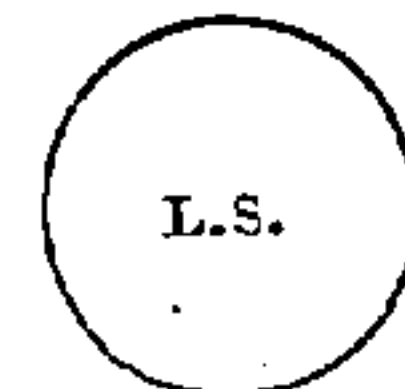
The corporate common seal of the city of Leeds was
affixed hereto in the presence of

WM. WALKER

Chairman of the Finance Committee.

WM. DERRY

City Accountant.



THE SEVENTH SCHEDULE.

*Seventh
Schedule.*

ELECTRICITY.

CHARGES FOR SUPPLY.

In this schedule the expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Corporation charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

Where the Corporation charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of such electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Corporation under any regulations made under this Act.

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*Eighth
Schedule.*

THE EIGHTH SCHEDULE.

ELECTRICITY.

LANDS FOR GENERATING STATIONS.

(1) All that piece or parcel of land situate in Whitehall Road in the city of Leeds and now in the occupation of the Corporation containing in the whole 10,960 square yards or thereabouts and bounded on the north by Whitehall Road aforesaid on the south by the River Aire on the east by an occupation road called Bridge Street leading from Whitehall Road aforesaid to the River Aire and on the west by premises belonging to Messrs. Joseph Watson and Sons Limited.

(2) All that piece of land situate in Aire Street in the city and containing 4,126 square yards or thereabouts and bounded on or towards the north by Aire Street aforesaid on or towards the south by the River Aire on or towards the east partly by property of Robert Atkinson and partly by property of Messrs. Henry Briggs Son and Company Limited and on or towards the west by the said occupation road called Bridge Street which said land is now in the occupation of the North of England Motor Car Company and Messrs. John and Charles Croisdale and William Pape.

*Ninth
Schedule.*

THE NINTH SCHEDULE.

MARKETS FAIRS AND SLAUGHTER-HOUSES.

TOLLS AND STALLAGES IN A COVERED MARKET.

From the occupier of each butcher's shop stall or stand according to the size and dimensions of the same (namely):—

For each and every superficial square foot thereof inside measure—

If taken by the year not exceeding	...	...	6	8
If taken by the half-year not exceeding	...	...	3	4
If taken by the quarter-year not exceeding	...	...	1	8
If otherwise taken or occupied for each market day or other day in the week not exceeding	...	...	0	1 $\frac{3}{4}$

From the occupier of each shop stall or stand for fruit or vegetables raised above the ground with progressive steps benches or otherwise according to the size and dimensions of the same (namely):—

For each and every superficial square foot thereof—

If taken by the year not exceeding	...	...	6	8
If taken by the half-year not exceeding	...	...	3	4
If taken by the quarter-year not exceeding	...	...	1	8
If otherwise taken or occupied for each market day or other day in the week not exceeding	...	...	0	1 $\frac{3}{4}$

[~~5~~ EDW. 7.] *Leeds Corporation (Consolidation) Act, 1905.* [Ch. i.]

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A.D. 1905.

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Schedule.*

From the occupiers of each other shop stall stand or bench of whatever nature or kind according to the size and dimensions of the same (namely) :—

For each and every superficial square foot thereof—

If taken by the year not exceeding	...	...	...	6	8
If taken by the half-year not exceeding	...	...	...	3	4
If taken by the quarter-year not exceeding	...	...	...	1	8
If otherwise taken or occupied for each market day or other day in the week not exceeding	...	...	...	0	1 $\frac{3}{4}$

From the occupier of each compartment or space on the surface of the ground according to the size and dimensions of the same (namely) :—

For each superficial square foot thereof—

If taken by the year not exceeding	...	...	...	4	0
If taken by the half-year not exceeding	...	...	...	2	0
If taken by the quarter-year not exceeding	...	...	...	1	0
If otherwise taken or occupied for each market day or other day in the week not exceeding	...	...	...	0	1

From the occupier of each shop stall or stand in the fish markets according to the size and dimensions of the same (namely) :—

For each and every superficial square foot thereof—

If taken by the year not exceeding	...	...	...	8	6
If taken by the half-year not exceeding	...	...	...	4	3
If taken by the quarter-year not exceeding	...	...	...	2	2
If otherwise taken or occupied for each market day or other day in the week not exceeding	...	...	...	0	1 $\frac{3}{4}$

From every person exposing any article matter or thing for sale in any of the said markets and not occupying any stand shop stall or bench or any defined compartment or space on the surface of the ground :—

For every bull cow ox steer or heifer if sold by the carcase	...	...	...	2	6
For every calf sheep lamb or pig if sold by the carcase	...	...	...	1	0
And so in proportion for every less portion or quantity than the entire carcase.					
For every basket or other package containing not more than twelve pounds weight of butter	...	...	...	0	2
And for every additional six pounds or any part of six pounds weight of butter	...	...	...	0	1
For every package or basket containing not more than three dozen eggs	...	...	...	0	1
And for every additional dozen or part of a dozen eggs	...	...	...	0	0 $\frac{1}{2}$
For every five couple of rabbits or part of five couple	..	...	...	0	1
For every hare leveret pheasant partridge grouse or other game	0	...	...	0	0 $\frac{1}{2}$
For every live or dead duck goose or turkey	...	...	...	0	0 $\frac{1}{2}$
For every sucking or roasting pig	...	...	...	0	1
For any number of live or dead pigeons not exceeding twelve	...	...	...	0	2
And for every additional six pigeons or part of six pigeons beyond twelve	...	...	...	0	1

[Ch. i.] *Leeds Corporation (Consolidation) Act, 1905.* [5 EDW. 7.]

A.D. 1905.

*Ninth
Schedule.*

For every barrel box or other package of fish crabs or lobsters	s.	d.
containing not more than 1 cwt.	0	3
And for every additional 56lbs. weight or part of 56 lbs. weight	0	1½
For every pad or other package of mackerel or other wet fish		
containing not more than fifty such fish	0	1
And for every additional 25 or part of 25	0	0½
For every box or other package of bloaters or dried fish		
containing not more than 50 such fish	0	1
And for every additional 25 or part of 25	0	0½
For every bag or other package of oysters mussels whelks		
periwinkles or cockles containing not more than 1 cwt. ...	0	2
And for every additional 56 lbs. or part of 56 lbs.	0	1
For every waggon containing loose vegetables when loaded		
in the body only	1	6
For every waggon containing loose vegetables when loaded		
on the wings or higher than the body of the waggon ...	2	3
For every railway waggon or other waggon with gearing above		
the body of the same containing loose vegetables	3	0
For every cart containing loose vegetables when loaded in the		
body only	0	9
For every cart containing loose vegetables when loaded on the		
wings or higher than the body of the cart	1	3
For every waggon containing privet quick mistletoe holly or		
other plants trees or shrubs	3	0
For every cart containing privet quick mistletoe holly or other		
plants trees or shrubs... ..	2	0
For every five bundles of celery (each bundle containing not		
more than twelve sticks) or part of five bundles	0	1
For every bunch of bananas	0	1
For every 12 plants shrubs or trees	0	3
For every load bag of potatoes	0	1
For every half load bag of potatoes or for any less quantity ...	0	0½
For every cart load of potatoes not exceeding twelve sacks ...	1	0
For every cart load of potatoes exceeding twelve sacks ...	1	6
From the occupier of each compartment or space in the bird and		
poultry market according to size and dimensions of same two		
cages in height for each market day or other day in the week		
not exceeding for every lineal foot	0	4
For every additional cage in height for every lineal foot ...	0	1
For every basket crate box or other package containing not		
more than five head of ducks fowls or chickens	0	1
For every additional five ducks fowls or chickens or part of five		
ducks fowls or chickens	0	1
For any number of pigeons not exceeding twelve	0	2
For every additional six pigeons or part of six pigeons ...	0	1
For any quantity of other small birds not above enumerated and		
not exceeding one dozen in number	0	2
For every additional six or part of six other small birds not		
above enumerated	0	1

<i>Cart Stand.</i>					s.	d.	A.D. 1905.
From the owner or person in charge of any cart or waggon for each market day or other day in the week :—							<i>Ninth Schedule.</i>
For the use of the stable and manger per horse	...	...	...	...	0	6	
For each carrier's or porter's cart	...	...	...	...	0	2	
For each cart or waggon other than a carrier's or porter's cart or waggon	...	...	...	...	0	1	
<i>In an Open Market.</i>							
For each truck or hand cart containing fruit or vegetables	...	...	...	...	0	6	
For each waggon containing privet quick mistletoe holly or other plants trees or shrubs	...	...	...	...	2	6	
For each cart containing privet quick mistletoe holly or other plants trees or shrubs	...	...	...	...	1	6	
For each truck or hand cart containing privet quick mistletoe holly flowers or other plants trees or shrubs	...	...	...	...	1	0	
For each stand or space occupied upon the floor for trees shrubs privet quick plants mistletoe holly or any other article matter or thing for each superficial square foot thereof not exceeding the sum of	...	...	...	...	0	0½	
For each basket or other package containing flowers herbs watercress or planting roots	...	...	...	...	...2d. to 6d.		
For any number of sieves or other packages of fruit or vegetables not exceeding five in number and containing not more than fifteen pounds weight in each	...	...	...	...	s.	d.	
					0	1	
And in like proportion for each additional five sieves or other packages or any part of five sieves or other packages.							
For any number of sieves or other packages of fruit or vegetables not exceeding five in number containing more than fifteen pounds weight but not exceeding thirty pounds weight in each	...	...	...	...	0	2	
And in like proportion for each additional five sieves or other packages or any part of five sieves or other packages.							
For every drove of geese or turkeys not exceeding twenty in number	...	...	...	...	0	6	
And for every additional ten geese or turkeys or any part of ten geese or turkeys	...	...	...	...	0	3	
For every drove of ducks not exceeding twenty in number	...	...	...	...	0	4	
And for every additional ten ducks or part of ten ducks	...	...	...	...	0	2	
For every live or dead goose or turkey otherwise exposed for sale	...	...	...	...	0	0½	
For every live or dead duck fowl or chicken otherwise exposed for sale	...	...	...	...	0	0½	
For every couple or brace of hares leverets pheasants partridges or other game contained in a basket hamper or other package	...	...	...	...	0	0½	
For every hare leveret or pheasant otherwise exposed for sale	...	...	...	...	0	0½	
For every brace of partridges grouse or other game otherwise exposed for sale	...	...	...	...	0	0½	
For every five couple of rabbits or part of five couple contained in a basket hamper or other package	...	...	...	...	0	1	

[Ch. i.] *Leeds Corporation (Consolidation) Act, 1905.* [5 Edw. 7.]

A.D. 1905.

*Ninth
Schedule.*

For Slaughtering Animals.

	s.	d.
For every ox cow bull steer heifer or bullock not exceeding ...	2	0
For every sheep lamb goat or calf not exceeding ...	0	6
For every hog or pig except a sucking pig not exceeding ...	0	8
For every sucking pig not exceeding ...	0	1
For every other beast not exceeding ...	1	0

For Lairage.

For every ox cow bull steer heifer or bullock per night ...	0	3
For every sheep lamb goat or calf per night ...	0	0½
For every hog or pig ...	0	1

For Pens in the Cattle Market.

For bulls steers cows heifers or bullocks each pen per day from 1s. 6d. to	3	0
For each bull steer cow heifer or bullock brought or exposed to sale per day not exceeding ...	0	6
For each sheep lamb goat or calf per day not exceeding ...	0	1
For each mule or ass per day not exceeding ...	1	0

The above-mentioned tolls stallages rents and charges in the said markets to be paid and payable in respect of the occupation of any shop stall bench stand compartment or space of ground or for any pen or lair as well by the original taker or occupier thereof for a part or portion of the day or space of time as by any subsequent taker or occupier of the same for any part or portion of the day or space of time.

For Weighing and Measuring.

For weighing every waggon cart or carriage of any description any sum not exceeding ...	s.	d.
...	0	6
For weighing every bull ox cow or other like cattle ...	0	2
For weighing every five head of sheep or pigs or any part of five head of sheep or pigs ...	0	1
For weighing every article matter or thing of whatever descrip- tion weighing not more than twenty pounds avoirdupois ...	0	0½
For weighing every article matter or thing of whatever descrip- tion weighing more than twenty pounds but not exceeding two hundred and forty pounds avoirdupois ...	0	1
For weighing every article matter or thing of whatever descrip- tion weighing more than two hundred and forty pounds avoirdupois ...	0	2
For measuring any quantity of goods articles matter or thing sold by measure not exceeding one bushel ...	0	0½
For measuring every quantity more than one bushel and not exceeding two bushels ...	0	1
And for every bushel beyond two bushels ...	0	0½
For measuring any quantity of goods articles matter or thing sold by measure not exceeding ten yards in length ...	0	1
For measuring every quantity more than ten yards and not exceeding twenty yards ...	0	2

In the Corn Exchange.

A.D. 1905.

Rents and entrance and other fees :—		Per annum.			<i>Ninth Schedule.</i>
		£	s.	d.	
For every person selling corn of his own growing in the farmer's market		0	5	0	
For the entrance of every other person to the farmer's market not exceeding for each occasion on which he shall enter ...		0	0	2	
For every grocery stand in the farmer's market ...		2	2	0	
For every full stand in the factor's market ...		8	8	0	
For every half stand in the factor's market ...		5	5	0	
For every leather fair stand in the factor's market ...		2	2	0	
For every leather fair stand and space not exceeding ten square yards in the factor's market		5	5	0	
For land agents carriers forwarding agents carters engineers millwrights milling engineers coal dealers sack dealers manure dealers insurance agents &c. each person ...		1	1	0	
Space for advertisements and show cards according to size... ..	10s. 6d. to	2	2	0	
For the annual rent of each office according to agreement not exceeding		100	0	0	

THE TENTH SCHEDULE.

*Tenth
Schedule.*

REGISTER OF CHARGE ON LANDS FOR PAVING SEWERING
FLAGGING AND KERBING STREETS.

City of Leeds.

The lord mayor aldermen and citizens of the city of Leeds do hereby in pursuance of the Leeds Corporation (Consolidation) Act 1905 charge the lands tenements and hereditaments hereunder mentioned with the sum hereunder stated the same being due and payable to the said lord mayor aldermen and citizens as the local authority in respect of the said lands tenements and hereditaments for and on account of sewerage levelling paving metalling flagging channelling and lighting of and the removal of obstructions in streets together with interest thereon at five pounds per centum per annum from the date of the registration hereof.

Dated this day of 19 .

Description of Premises above referred to.	Name and Address of Owner or reputed Owner.	Name of Occupier (if any).	Amount above referred to.

(Signed)

Town Clerk of Leeds.

A.D. 1905.

*Eleventh
Schedule.*

THE ELEVENTH

STATEMENT AS TO PRINCIPAL

PART I.—WATERWORKS

Act Order or Sanction under which Borrowing Powers were originally obtained.	Purpose of Borrowing Power.	Original Amount of Borrowing Power.	Total Amount borrowed.	Amount extinguished out of Redemption Fund.
1.	2.	3.	4.	5.
		£ s. d.	£ s. d.	£ s. d.
As set out in Part VI. of the Second Schedule of the Leeds Corporation (General Powers) Act 1901.	Purchase and extension of waterworks	2,209,080 0 0	2,173,580 0 0	513,107 7 0
Leeds Corporation (General Powers) Act 1901.	Proportion of costs of issue of 3 per cent. stock.	3,496 5 5	3,496 5 5	
Provisional Orders 1893 1893 and the Leeds Improvement Act 1893:— (Sanction 22nd May 1901) - - -	Waterworks - - - -	63,067 0 0	63,067 0 0	-
Leeds Corporation (General Powers) Act 1901.	Proportion of costs of issue of 3 per cent. stock.	1,313 4 9	1,313 4 9	
Provisional Orders 1893 1893 and the Leeds Improvement Act 1893:— (Sanction 2nd September 1903) -	Waterworks - - - -	49,986 0 0	49,986 0 0	-
(Sanction 13th October 1903) - -	Waterworks - - - -	17,548 0 0	17,548 0 0	
Leeds Corporation Water Act 1901 -	To make additional waterworks - -	*2,200,000 0 0	100,000 0 0	-
Leeds Corporation (General Powers) Act 1901.	Proportion of costs of issue of 3 per cent. stock.	2,082 5 11	2,082 5 11	
Leeds Corporation Water Act 1901 -	Interest on loan for additional water- works.	3,360 8 5	- - -	- - -
	Total - - - - £	4,549,933 4 6	2,411,072 16 1	513,107 7 0

* The Corporation have power to borrow to pay

PART II.—GAS

		£ s. d.	£ s. d.	£ s. d.
As set out in Part V. of the Second Schedule to the Leeds Corporation (General Powers) Act 1901.	Purchase and extension of gasworks -	1,338,600 0 0	1,338,600 0 0	288,057 17 0
Leeds Improvement Act 1893:— (Sanction 8th January 1901) - -	Gasworks - - - -	161,400 0 0	161,400 0 0	8,048 5 4
Leeds Corporation (General Powers) Act 1901.	Do. - - - -	300,000 0 0	250,000 0 0	}
Do. do. -	Do. proportion of costs of issue of 3 per cent. stock.	4,164 11 10	4,164 11 10	
	Total - - - - £	1,804,164 11 10	1,754,164 11 10	298,106 2 4

[5 Edw. 7.] *Leeds Corporation (Consolidation) Act, 1905.* [Ch. i.]

SCHEDULE.

A.D. 1905.

*Eleventh
Schedule.*

MONEYS TO 25TH MARCH 1904.

ACCOUNT.

Borrowing Powers exercised.						Borrowing Powers not yet exercised but still subsisting.	
Amount outstanding.			Amount in the Redemption Fund 25th March 1904.	Amount outstanding after deducting Amount in Redemption Fund.	Period for repayment.	Amount.	Period for repayment from date of borrowing.
Nature of Security by which raised.	Rate per Cent.	Amount.					
6.	7.	8.	9.	10.	11.	12.	13.
		£ s. d.	£ s. d.	£ s. d.		£ s. d.	
Debenture stock -	4	688,419 0 0	0,469 5 6	1,668,325 3 9	An equated period of 35 years from the 25th March 1904.	35,500 0 0	60 years.
Debenture stock -	3½	453,320 0 0					
Debenture stock -	3	46,300 0 0					
Debenture stock -	2½	208,879 0 0					
Stock -	3	182,226 9 3					
Annuity certificate -	4	97,850 0 0					
Stock -	3	68,446 8 10	1,491 0 1	66,955 8 9			
Mortgages -	Var.	49,986 0 0	-	49,986 0 0			
Mortgages -	Var.	17,548 0 0	-	17,548 0 0			
Stock -	3	108,529 14 7	-	108,529 14 7	60 years from date of borrowing.	2,100,000 0 0	60 years.
-	-	-	-	-	-	3,360 8 5	60 years.
-	-	1,919,304 12 8	7,960 5 7	1,911,344 7 1	-	2,138,860 8 5	

interest on this loan up to the 17th August 1911.

and the amount of the interest under the provisions of section 41 of the Leeds Corporation Water Act 1901 not yet borrowed.

ACCOUNT.

		£ s. d.	£ s. d.	£ s. d.		£ s. d.	
Debenture stock -	4	588,237 0 0	144,269 5 2	926,272 17 10	An equated period of 30 years from the 25th March 1904.		
Debenture stock -	3½	150,250 0 0					
Debenture stock -	3	97,020 0 0					
Debenture stock -	2½	116,600 0 0					
Annuity certificate -	4	29,250 0 0					
Funded debt -	4½	30,580 3 0					
Late Gas Company's Debenture stock.	4½	53,605 0 0					
Mortgages -	Var.	153,351 14 8	-	153,351 14 8			
Stock -	3	217,059 10 2	2,873 14 6	264,180 15 8		50,000 0 0	40 years.
Mortgages -	Var.	50,000 0 0					
-	-	1,490,953 7 10	147,147 19 8	1,843,805 8 2	-	50,000 0 0	

[Ch. i.] *Leeds Corporation (Consolidation) Act, 1905.* [5 EDW. 7.]

A.D. 1905.

*Eleventh
Schedule.*

STATEMENT AS TO PRINCIPAL

PART III.—TRAMWAYS

Act Order or Sanction under which Borrowing Powers were originally obtained.	Purpose of Borrowing Power.	Original Amount of Borrowing Power.	Total Amount borrowed.	Amount extinguished out of Redemption Fund.
1.	2.	3.	4.	5.
As set out in Part IV. to the Second Schedule of the Leeds Corporation (General Powers) Act 1901.	Purchase and extension of tramways -	£ 684,000 s. d. 0 0	£ 684,000 s. d. 0 0	£ s. d.
Leeds Corporation (General Powers) Act 1901.	Do. Proportion of cost of issue of 3 per cent. stock.	1,904 17 8	1,904 17 8	97,172 18 5
Leeds Corporation Act 1899 -	Extension of tramways -	52,000 0 0	52,000 0 0	-
Leeds Corporation (General Powers) Act 1901.	Do. Proportion of cost of issue of 3 per cent. stock.	1,082 15 10	1,082 15 10	-
Leeds Corporation (General Powers) Act 1901.	Extension of tramways -	60,000 0 0	60,000 0 0	-
Leeds Corporation (General Powers) Act 1901.	Do. Proportion of cost of issue of 3 per cent. stock.	1,249 7 6	1,249 7 6	-
Do. (Sanction 25th March 1903) -	Construction of permanent way and buildings.	235,300 0 0	235,300 0 0	-
Leeds Corporation (General Powers) Act 1901.	Do. Proportion of cost of issue of 3 per cent. stock.	4,899 12 8	4,899 12 8	-
Do. (Sanction 25th March 1903) -	Electrical equipment -	72,800 0 0	72,800 0 0	-
Leeds Corporation (General Powers) Act 1901.	Do. Proportion of cost of issue of 3 per cent. stock.	1,347 4 10	1,347 4 10	-
Do. (Sanction 25th March 1903) -	Cars -	41,900 0 0	1,900 0 0	-
	Total - - - - £	1,156,483 18 6	1,116,483 18 6	97,172 18 5

PART IV.—ELECTRIC

Leeds Order (No. 2) 1898 -	Purchase of the electric lighting under- taking.	£ 217,420 s. d. 0 0	£ 217,420 s. d. 0 0	£ s. d.
Public Health Act 1875 and the Electric Lighting Act 1882:— (Sanction 22nd July 1901) -	Electric lighting -	505,400 0 0	505,400 0 0	21,602 17 8
Leeds Corporation (General Powers) Act 1901.	Proportion of costs of issue of 3 per cent. stock.	4,818 6 3	4,818 6 3	-
Public Health Act 1875 and the Electric Lighting Act 1882:— (Sanction 1st December 1903) -	Electric lighting -	200,000 0 0	200,000 0 0	-
(Sanction 1st December 1903) -	Electric lighting -	20,000 0 0	20,000 0 0	-
	Total - - - - £	947,638 6 3	947,638 6 3	21,602 17 8

PART V.—HIGHWAYS

As set out in Part III. to the Second Schedule of the Leeds Corporation (General Powers) Act 1901.	Paving and flagging highways -	£ 124,776 s. d. 0 0	£ 119,300 s. d. 0 0	£ 25,070 s. d. 7 6
	Total - - - - £	124,776 0 0	119,300 0 0	25,070 7 6

MONEYS TO 25TH MARCH 1904—*cont.*

A.D. 1905.

ACCOUNT.

*Eleventh
Schedule.*

Borrowing Powers exercised.						Borrowing Powers not yet exercised but still subsisting.		
Amount outstanding.			Amount in the Redemption Fund 25th March 1904.	Amount outstanding after deducting Amount in Redemption Fund.	Period for repayment.	Amount.	Period for repayment from date of borrowing.	
Nature of Security by which raised.	Rate per Cent.	Amount.						
6.	7.	8.	9.	10.	11.	12.	13.	
		£ s. d.	£ s. d.	£ s. d.		£ s. d.		
Debenture stock . . .	2½	213,000 0 0	2,086 17 2	592,543 5 7	An equated period of 25 years from the 25th March 1904.			
Stock . . .	3	99,283 1 2						
Mortgages . . .	Var.	282,847 1 7						
Stock . . .	3	56,435 0 2	1,186 4 7	55,249 4 7				
Stock . . .	3	65,117 15 8	1,368 14 7	63,749 1 1				
Stock . . .	3	255,370 0 0	5,367 14 1	250,002 14 11				
Stock . . .	3	70,218 14 8	2,613 4 10	75,705 0 10				
Mortgages . . .	Var.	8,100 0 0						
Mortgages . . .	Var.	1,000 0 0	- - -	1,900 0 0		-	40,000 0 0	15 years.
- - -	- - -	1,051,772 11 8	12,622 15 3	1,039,149 16 0	- - -	40,000 0 0		

LIGHTING ACCOUNT.

Debenture stock -	5	£ 217,420 0 0	£ 26,025 4 7	£ 191,394 15 5	40 years from the 25th March 1899.	£ s. d.
Stock -	3	251,132 0 0	541 7 1	502,993 2 0	An equated period of 23 years from the 25th March 1904.	
Mortgages -	Var.	252,402 2 4				
Mortgages -	Var.	200,000 0 0	-	200,000 0 0		
Mortgages -	Var.	20,000 0 0	-	20,000 0 0		
-	-	940,054 9 1	26,566 11 8	914,387 17 5		

ACCOUNT.

Mortgages -	Var.	£ 94,229 12 6	£ 9,735 14 2	£ 84,493 18 4	An equated period of 19 years from the 25th March 1904.	£ 5,476 0 0	20 years.
-	-	94,229 12 6	9,735 14 2	84,493 18 4	-	5,476 0 0	

[Ch. i.] *Leeds Corporation (Consolidation) Act, 1905.* [5 EDW. 7.]

A.D. 1905.

*Eleventh
Schedule.*

STATEMENT AS TO PRINCIPAL

PART VI.—

Act Order or Sanction under which Borrowing Powers were originally obtained.	Purpose of Borrowing Power.	Original Amount of Borrowing Power.	Total Amount borrowed.	Amount extinguished out of Redemption Fund.
1.	2.	3.	4.	5.
As set out in Part I. of the Second Schedule to the Leeds Corporation (General Powers) Act 1901.	Commutation of contribution to county bridges.	£ 29,093 0 0	£ 29,093 0 0	£ 6,276 1 5
	Monk Bridge improvement - -	8,163 9 0	8,163 9 0	3,160 0 5
	Cost of issue of 2½ per cent. debenture stock.	19,430 9 7	19,430 9 7	2,039 9 7
	Electric lighting and ventilating apparatus.	16,100 0 0	16,100 0 0	16,100 0 0
	Judges' house - - - -	6,700 0 0	6,700 0 0	- - -
	Municipal buildings - - -	100,000 0 0	100,000 0 0	- - -
	Police stations - - - -	17,000 0 0	17,000 0 0	- - -
	Town hall - - - - -	12,950 0 0	12,950 0 0	2,950 0 0
	Recreation grounds - - - -	194,250 0 0	194,250 0 0	37,393 16 9
Provisional Orders 1883 1888 1890 and 1895:—		403,686 18 7	403,686 18 7	67,928 8 2
(Sanction 2nd January 1902) - -	Hoist in municipal buildings - -	1,094 0 0	1,094 0 0	57 12 0
(Sanction 2nd January 1902) - -	Verandah at the back of town hall -	344 0 0	344 0 0	18 2 2
Leeds Improvement Acts 1866 and 1893 and the Leeds Corporation Tramways Act 1896:—				
(Sanction 28th October 1901) - -	Recreation grounds - - - -	77,042 0 0	77,042 0 0	2,709 1 5
(Part of Sanction for 21,280£. dated 22nd August 1902.)	Recreation grounds - - - -	17,423 0 0	17,423 0 0	- - -
Leeds Corporation (General Powers) Act 1901.	Proportion of costs of issue of 3 per cent. stock.	209 5 5	209 5 5	- - -
Public Libraries Act 1892:—				
(Sanction 10th July 1901) - -	Land for Bramley Library - - -	409 0 0	409 0 0	7 7 2
Leeds Corporation Act 1899 - - -	Erection &c. of Smithfield Hall - -	30,000 0 0	- - -	- - -
Municipal Corporations Act 1882 Local Government Act 1888 and the Ine- briates Act 1898:—				
(Sanction 2nd December 1903) -	Contribution towards the cost of inebriates reformatory at Cattal.	5,705 0 0	2,000 0 0	- - -
Leeds Corporation (Consolidation) Act 1905.	Cost of the Act.	- - -	- - -	- - -
	Total - - - £	535,913 4 0	502,208 4 0	70,720 10 11
		And Costs of 1905 Act.		

[5 EDW. 7.] *Leeds Corporation (Consolidation) Act, 1905.* [Ch. i.]

MONEYS TO 25TH MARCH 1904—*cont.*

A.D. 1905.

*Eleventh
Schedule.*

CITY FUND.

Borrowing Powers exercised.						Borrowing Powers not yet exercised but still subsisting.	
Amount outstanding.			Amount in the Redemption Fund 25th March 1904.	Amount outstanding after deducting Amount in Redemption Fund.	Period for repayment.	Amount.	Period for repayment from date of borrowing.
Nature of Security by which raised.	Rate per Cent.	Amount.					
6.	7.	8.	9.	10.	11.	12.	13.
		£ s. d.	£ s. d.	£ s. d.		£ s. d.	
Mortgages - - -	Var.	22,816 18 7	- - -	22,816 18 7			
Mortgages - - -	Var.	4,094 8 7	- - -	4,094 8 7			
Debenture stock - -	2½	17,391 0 0	68 9 6	17,322 10 6			
- - - - -	-	- - -	- - -	- - -			
Debenture stock - -	4	6,700 0 0	2,386 5 5	4,313 14 7			
{ Debenture stock - -	4	14,753 0 0	18,919 10 1	81,080 9 11			
{ Debenture stock - -	3½	85,247 0 0					
Debenture stock - -	4	17,000 0 0	6,599 5 10	10,400 14 2			
Debenture stock - -	4	10,000 0 0	3,723 5 10	6,276 14 2			
{ Debenture stock - -	3½	25,123 0 0	- - -	156,856 3 3			
{ Debenture stock - -	3	54,721 0 0					
{ Debenture stock - -	2½	30,000 0 0					
{ Mortgages - - -	Var.	47,012 3 3					
		335,758 10 5	31,696 16 8	304,061 13 9	An equated period of 34 years from the 25th March 1904.		
Mortgages - - -	Var.	1,036 8 0	- - -	1,036 8 0			
Mortgages - - -	Var.	325 17 10	- - -	325 17 10			
Mortgages - - -	Var.	74,332 18 7	- - -	74,332 18 7			
{ Stock - - -	3	10,907 6 8	66 17 11	18,213 7 0			
{ Mortgages - - -	Var.	7,372 18 3					
Mortgages - - -	Var.	401 12 10	- - -	401 12 10			
- - - - -	-	- - -	- - -	- - -		30,000 0 0	50 years.
Mortgages - - -	Var.	2,000 0 0	- - -	2,000 0 0		3,705 0 0	30 years.
- - - - -	-	- - -	- - -	- - -		- - -	{ 7 years from the passing of the Act.
- - - - -	-	432,135 12 7	31,763 14 7	400,371 18 0		33,705 0 0	
						And Costs of 1905 Act.	

A.D. 1905.

*Eleventh
Schedule.*

STATEMENT AS TO PRINCIPAL

PART VII.—CONSOLIDATED

Act Order or Sanction under which Borrowing Powers were originally obtained.	Purpose of Borrowing Power.	Original Amount of Borrowing Power.	Total Amount borrowed.	Amount extinguished out of Redemption Fund.
1.	2.	3.	4.	5.
		£ s. d.	£ s. d.	£ s. d.
As set out in Part II to the Second Schedule of the Leeds Corporation (General Powers) Act 1901.	Allotments:—			
	Burley - - - - -	4,053 0 0	4,053 0 0	628 7 10
	Harehills - - - - -	3,000 0 0	3,000 0 0	485 2 11
	Baths:—			
	Kirkstall Road - - - - -	8,080 0 0	8,080 0 0	1,205 2 11
	Union Street - - - - -	8,123 0 0	8,123 0 0	1,206 19 8
	Holbeck - - - - -	11,180 0 0	11,180 0 0	1,480 19 11
	Hunslet - - - - -	10,741 0 0	10,741 0 0	1,462 4 1
	Meanwood Road - - - - -	14,421 0 0	14,421 0 0	1,218 6 8
	Cookridge Street - - - - -	25,000 0 0	25,000 0 0	1,332 5 7
	Becks - - - - -	60,000 0 0	60,000 0 0	21,628 17 10
	Bridges - - - - -	100,000 0 0	100,000 0 0	33,189 6 4
	Cemeteries:—			
	Leeds - - - - -	15,000 0 0	15,000 0 0	4,868 6 1
	Holbeck - - - - -	11,000 0 0	11,000 0 0	3,779 11 5
	Hunslet - - - - -	6,000 0 0	6,000 0 0	2,061 11 7
	Harehills - - - - -	20,000 0 0	20,000 0 0	855 15 11
	Fire Brigade - - - - -	25,000 0 0	25,000 0 0	8,297 6 7
	Hospitals - - - - -	343,499 0 0	343,499 0 0	27,320 9 7
	Housing of the Working Classes Act 1890.—Part I.—York Street Area.	150,000 0 0	150,000 0 0	5,811 8 2
	Do. Proportion of costs of issue of 3 per cent stock	*220 11 8	220 11 8	
	Markets:—			
	Kirkgate &c. - - - - -	300,000 0 0	300,000 0 0	6,742 9 2
	Do. Proportion of costs of issue of 3 per cent. stock	*2,774 16 0	2,774 16 0	
	Corn Exchange - - - - -	30,000 0 0	30,000 0 0	- - -
	Victoria (Cattle) - - - - -	45,000 0 0	45,000 0 0	- - -
	Smithfield - - - - -	25,000 0 0	25,000 0 0	25,000 0 0
	Central - - - - -	25,000 0 0	25,000 0 0	25,000 0 0
	Roundhay Park - - - - -	150,000 0 0	150,000 0 0	- - -
	Sanitary improvements - - - - -	140,000 0 0	140,000 0 0	31,719 19 8
	Sewage works:—			
	Knostrup - - - - -	200,000 0 0	200,000 0 0	- - -
	Carried forward - - -	£ 1,733,092 7 8	1,733,092 7 8	205,274 11 11

* Authorised by the Leeds Corporation (General Powers) Act 1901.

MONEYS TO 25TH MARCH 1904—*cont.*

A.D. 1905.

*Eleventh
Schedule.*

RATE ACCOUNT.

Borrowing Powers exercised.						Borrowing Powers not yet exercised but still subsisting.		
Amount outstanding.			Amount in the Redemption Fund 25th March 1904.	Amount outstanding after deducting Amount in Redemption Fund.	Period for repayment.	Amount.	Period for repayment from date of borrowing.	
Nature of Security by which raised.	Rate per Cent.	Amount.						
6.	7.	8.	9.	10.	11.	12.	13.	
		£ s. d.	£ s. d.	£ s. d.				
Mortgages -	Var.	3,424 12 2	- - -	3,424 12 2	An equated period of 42 years from the 25th March 1904.			
Mortgages - - -	Var.	2,534 17 1	- - -	2,534 17 1				
Mortgages - - -	Var.	6,874 17 1	- - -	6,874 17 1				
Mortgages - - -	Var.	6,916 0 4	- - -	6,916 0 4				
Mortgages - - -	Var.	9,699 0 1	- - -	9,699 0 1				
Mortgages - - -	Var.	9,278 15 11	- - -	9,278 15 11				
Mortgages - - -	Var.	13,202 13 4	- - -	13,202 13 4				
Mortgages - - -	Var.	23,667 14 5	- - -	23,667 14 5				
{ Debenture stock - -	4	33,090 6 4	- - -	38,371 2 2				
{ Mortgages - - -	Var.	5,280 15 10						
{ Debenture stock - -	4	45,520 2 9	2,858 16 5	63,951 17 3				
{ Debenture stock - -	3½	21,290 10 11						
Debenture stock - -	4	10,131 13 11	433 10 9	9,698 3 2				
Debenture stock - -	4	7,220 8 7	308 19 3	6,911 9 4				
Debenture stock - -	4	3,938 8 5	168 10 8	3,769 17 9				
Mortgages - - -	Var.	19,144 4 1	- - -	19,144 4 1				
Debenture stock - -	3½	16,702 13 5	714 14 2	15,987 19 3				
{ Debenture stock - -	4	20,000 0 0	- - -	316,173 10 5				
{ Mortgages - - -	Var.	296,178 10 5						
{ Stock - - -	3	11,496 18 2	8 0 3	145,084 3 2				
{ Mortgages - - -	Var.	133,595 5 3						
{ Debenture stock - -	4	160,000 0 0	37,636 16 4	266,987 4 4				
{ Stock - - -	3	144,624 0 8						
Debenture stock - -	4	30,000 0 0	10,574 19 2	19,425 0 10				
Debenture stock - -	3½	45,000 0 0	10,408 17 6	34,591 2 6				
- - -	-	- - -	- - -	- - -				
- - -	-	- - -	- - -	- - -				
Debenture stock - -	4	150,000 0 0	54,072 4 9	95,927 15 3				
{ Debenture stock - -	4	80,000 0 0	- - -	108,280 0 4				
{ Mortgages - - -	Var.	28,280 0 4						
{ Debenture stock - -	4	150,000 0 0	72,159 1 11	127,840 18 1				
{ Debenture stock - -	3½	50,000 0 0						
- - -	-	1,537,092 9 6	189,344 11 2	1,347,747 18 4				

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*Eleventh
Schedule.*

STATEMENT AS TO PRINCIPAL

PART VII.—CONSOLIDATED

Act Order or Sanction under which Borrowing Powers were originally obtained.	Purpose of Borrowing Power.	Original Amount of Borrowing Power.	Total Amount borrowed.	Amount extinguished out of Redemption Fund.
1.	2.	3.	4.	5.
	Brought forward	£ 1,733,092 7 8	£ 1,733,092 7 8	£ 205,274 11 11
	Rodley - - - - -	30,000 0 0	30,000 0 0	2,540 5 0
	Sewering and drainage - - - - -	629,443 0 0	629,443 0 0	152,456 17 2
As set out in Part II. to the Second Schedule of the Leeds Corporation (General Powers) Act 1901.	Street Improvements - - - - -	1,794,995 0 0	1,769,286 17 8	242,469 7 9
	Do. Proportion of costs of issue of 3 per cent. stock.	*3,277 2 0	3,277 2 0	
	Tolls purchase of - - - - -	80,000 0 0	80,000 0 0	28,838 11 3
		4,270,807 9 8	4,245,099 7 4	631,579 13 1
Leeds Corporation (General Powers) Act 1901.	Street Improvements - - - - -	450,000 0 0	200,000 0 0	}
Leeds Corporation (General Powers) Act 1901.	Do. Proportion of costs of issue of 3 per cent. stock.	4,164 14 2	4,164 14 2	
Leeds Corporation (General Powers) Act 1901.	Experimental works for sewage disposal —Knostrop.	60,000 0 0	50,000 0 0	}
Leeds Corporation (General Powers) Act 1901.	Do. Proportion of costs of issue of 3 per cent. stock.	1,041 3 0	1,041 3 0	
Housing of the Working Classes Act 1890:— (Sanction 17th March 1903) - - -	Camp Field - - - - -	8,498 0 0	8,498 0 0	}
Leeds Corporation (General Powers) Act 1901.	Do. Proportion of costs of issue of 3 per cent. stock.	176 19 1	176 19 1	
Housing of the Working Classes Act 1890:— (Sanction 17th March 1903) - - -	Erection of 10 houses at Derwent Avenue	2,485 0 0	2,485 0 0	}
Leeds Corporation (General Powers) Act 1901.	Do. Proportion of costs of issue of 3 per cent. stock.	51 14 10	51 14 10	
Leeds Corporation Act 1899:— (Sanction 22nd December 1902) - -	Baths:— Cookridge Street - - - - -	850 0 0	850 0 0	}
Leeds Corporation (General Powers) Act 1901.	Do. Proportion of costs of issue of 3 per cent. stock.	17 13 2	17 13 2	
Baths and Washhouses Acts:— (Sanction 19th March 1901) - - -	Baths:— York Road (land) - - - - -	2,653 0 0	2,653 0 0	47 14 11
	Bramley (land) - - - - -	1,200 0 0	1,200 0 0	
Leeds Improvement Acts 1866 and 1893 and the Leeds Corporation Tramways Act 1896:— (Sanction 11th November 1901) - -	Recreation Ground (Woodhouse Ridge)	1,475 0 0	1,475 0 0	26 10 10
(Sanction 22nd August 1902) - - -	Do. do. - - - - -	3,857 0 0	3,857 0 0	
Leeds Corporation (General Powers) Act 1901.	Do. Proportion of costs of issue of 3 per cent. stock.	80 6 3	80 6 3	}
Leeds Corporation Act 1899:— (Sanction 16th July 1903) - - -	Cemetery (Bramley Fall) - - - - -	13,950 0 0	13,950 0 0	
Housing of the Working Classes Act 1890:— (Sanction 12th October 1903) - - -	Improvement of York Street unhealthy Area.	46,668 0 0	46,668 0 0	}
Do. do. - - - - -	Improvement of Quarry Hill unhealthy Area.	360,000 0 0	300,000 0 0	
Public Health Act 1875:— (Sanction 26th October 1903) - - -	Street improvements - - - - -	433,000 0 0	393,256 2 11	}
Do. do. - - - - -	Do. (Paving, flagging, &c.)	117,000 0 0	117,000 0 0	
	Total	£ 5,777,976 0 2	£ 5,394,524 0 9	631,675 10 9

* Authorised by the Leeds Corporation (General Powers) Act 1901.

[5 EDW. 7.] *Leeds Corporation (Consolidation) Act, 1905.* [Ch. i.]

MONEYS TO THE 25TH MARCH, 1904—*cont.*

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RATE ACCOUNT—*cont.*

*Eleventh
Schedule.*

Borrowing Powers exercised.						Borrowing Powers not yet exercised but still subsisting.	
Amount outstanding.			Amount in the Redemption Fund 25th March 1904.	Amount outstanding after deducting Amount in Redemption Fund.	Period for repayment.	Amount.	Period for repayment from date of borrowing.
Nature of Security by which raised.	Rate per Cent.	Amount.					
6.	7.	8.	9.	10.	11.	12.	13.
		£ s. d.	£ s. d.	£ s. d.		£ s. d.	
{ Debenture stock - - - 3		1,537,092 9 6	189,344 11 2	1,347,747 18 4			
{ Mortgages - - - Var.		25,000 0 0		27,459 15 0			
{ Debenture stock - - - 4		50,000 0 0					
{ Debenture stock - - - 3½		100,000 0 0		476,986 2 10			
{ Debenture stock - - - 3		75,000 0 0					
{ Mortgages - - - Var.		251,986 2 10					
{ Debenture stock - - - 4		278,240 0 0					
{ Debenture stock - - - 3½		70,224 5 9					
{ Debenture stock - - - 3		184,859 0 0	142,800 14 0	1,397,440 17 4		{ 18,000 0 0	50 years.
{ Stock - - - 3		170,798 14 5				{ 7,708 2 4	45 years.
{ Mortgages - - - Var.		836,119 11 2					
{ Debenture stock - - - 3½		49,886 15 8		51,161 8 9			
{ Mortgages - - - Var.		1,774 13 1					
- - - - -		3,632,941 7 5	332,145 5 2	3,300,796 2 3	- - -	25,708 2 4	-
Stock - - - 3		217,060 0 5	1,881 4 5	215,728 16 0	- - -	250,000 0 0	60 years.
Stock - - - 3		54,264 17 6	719 13 7	53,545 3 11	- - -	10,000 0 0	40 years.
Stock - - - 3		9,222 17 2	88 6 8	9,134 10 6	An equated period of 42 years from the 25th March 1904.		
Stock - - - 3		2,696 19 3	32 17 7	2,664 1 8			
Stock - - - 3		922 6 8	7 11 7	914 15 1			
Mortgages - - - Var.		2,605 5 1	- - -	2,605 5 1			
Mortgages - - - Var.		1,178 8 1	- - -	1,178 8 1			
Mortgages - - - Var.		1,443 9 2	- - -	1,443 9 2			
Stock - - - 3		4,185 19 10	25 13 5	4,160 6 5			
Mortgages - - - Var.		13,950 0 0	- - -	13,950 0 0			
Mortgages - - - Var.		46,668 0 0	- - -	46,668 0 0			
Mortgages - - - Var.		300,000 0 0	- - -	300,000 0 0	- - -	60,000 0 0	80 years.
{ Mortgages - - - Var.		103,930 1 1					
{ Bills - - - Var.		291,326 1 10	28,167 8 0	367,088 14 11		37,743 17 1	60 years.
Mortgages - - - Var.		117,000 0 0	- - -	117,000 0 0			
- - - - -		1,799,400 13 6	362,518 0 5	4,436,882 13 1	- - -	383,451 19 5	

[Ch. i.] *Leeds Corporation (Consolidation) Act, 1905.* [5 EDW. 7.]

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Schedule.*

STATEMENT AS TO PRINCIPAL
PART VIII.--

Act Order or Sanction under which Borrowing Powers were originally obtained.	Purpose of Borrowing Power.	Date of Borrowing.	Total Amount borrowed.	Debt paid off not to be re-borrowed.
1.	2.	3.	4.	5.
Loans to the School Board from the Public Works Loan				
			£ s. d.	£ s. d.
		30th Sept. 1880	1,449 0 0	991 19 6
		10th March 1881	3,050 0 0	2,022 8 2
		8th Dec. 1881	3,996 0 0	2,930 8 0
		1st Jan. 1885	73,147 17 9	25,545 13 6
		1st Jan. 1885	97,431 2 3	30,967 7 2
		1st Jan. 1885	61,415 3 10	17,359 18 5
		1st Jan. 1885	65,595 16 11	17,767 1 6
		20th Nov. 1899	1,100 0 0	220 0 0
		20th Nov. 1899	4,580 0 0	660 13 4
		20th Nov. 1899	5,050 0 0	404 0 0
		12th Nov. 1901	2,190 0 0	440 0 0
		12th Nov. 1901	3,310 0 0	224 0 0
			£322,315 0 9	99,573 9 7
Loans to the School Board from the Leeds				
		6th Aug. 1885	26,690 0 0	6,103 4 10
		6th Aug. 1885	2,923 0 0	638 12 6
		6th Aug. 1885	3,552 0 0	741 15 1
		6th Aug. 1885	36,835 0 0	6,781 6 4
		18th Sept. 1885	6,906 0 0	1,261 17 4
		29th Jan. 1886	9,545 7 10	1,679 15 9
		12th March 1886	3,819 0 0	1,774 10 3
		12th Feb. 1887	1,106 0 0	475 7 7
		12th Feb. 1887	12,584 6 7	2,049 0 4
		20th Aug. 1887	10,000 0 0	1,564 3 9
		24th July 1888	13,759 0 0	1,980 17 10
		9th March 1889	12,259 18 6	1,793 5 3
		9th March 1889	446 0 0	166 6 0
		6th Aug. 1889	14,807 0 0	2,073 13 5
		23rd Dec. 1889	8,534 0 0	1,143 7 3
		25th March 1890	7,228 0 0	968 5 6
		12th July 1890	14,474 0 0	1,780 5 11
		12th July 1890	6,400 0 0	1,907 3 4
		12th July 1890	600 0 0	501 0 11
		26th March 1891	15,900 0 0	3,274 18 5
		9th July 1891	14,380 0 0	641 1 2
		15th Dec. 1891	6,390 0 0	832 9 8
		15th July 1892	3,270 0 0	701 10 1
		15th July 1892	1,030 0 0	309 0 3
		9th Sept. 1892	3,080 0 0	111 16 3
		9th Sept. 1892	940 0 0	456 17 2
		9th Sept. 1892	4,010 0 0	296 18 6
		9th Sept. 1892	2,720 0 0	254 4 10
		9th Sept. 1892	2,430 0 0	106 13 11
		9th Sept. 1892	420 0 0	714 8 8
		18th Feb. 1893	7,120 0 0	562 4 10
		6th May 1893	6,280 0 0	334 17 11
		6th May 1893	3,950 0 0	1,860 13 9
		28th Oct. 1893	20,780 0 0	1,532 6 6
		26th June 1894	19,360 0 0	2,116 7 11
		20th Nov. 1894	25,880 0 0	1,419 3 11
		11th July 1895	19,220 0 0	206 8 6
		11th July 1895	1,140 0 0	1,549 2 4
		6th Dec. 1895	19,650 0 0	2,762 18 6
		7th Aug. 1896	38,030 0 0	793 16 9
		7th Aug. 1896	4,800 0 0	549 13 10
		7th Aug. 1896	1,320 0 0	1,397 1 2
		14th Sept. 1897	22,780 0 0	1,174 8 0
		23rd Feb. 1898	19,150 0 0	
			£455,648 12 11	59,439 2 3
Loans to the School Board from other				
		8th Dec. 1881	9,254 0 0	2,060 3 10
		11th May 1882	20,969 0 0	4,517 1 9
		19th Oct. 1882	2,580 0 0	536 5 7
		9th Nov. 1882	9,200 0 0	1,911 13 0
		4th July 1893	25,670 0 0	1,208 4 1
		20th Oct. 1898	1,800 0 0	145 1 6
		20th Oct. 1898	20,530 0 0	966 6 2
		22nd April 1899	38,300 0 0	1,420 11 0
		7th April 1900	31,200 0 0	739 16 5
		1st Nov. 1900	67,045 0 0	1,589 15 6
		1st Nov. 1900	5,030 0 0	119 5 6
		13th March 1902	13,630 0 0	211 14 10
		2nd March 1903	30,000 0 0	229 0 3
		18th June 1903	19,000 0 0	
			£293,738 0 0	15,655 4 5
			£1,071,701 13 8	174,667 1 3
Elementary Education Act 1873 sec. 10.	Education Purposes.			

[5 EDW. 7.] *Leeds Corporation (Consolidation) Act, 1905.* [Ch. i.]

MONEYS TO 25TH MARCH 1904.—*cont.*

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EDUCATION ACCOUNT.

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Amount owing by Corporation by reason of the transfer of the Liabilities of the School Board.	Amount owing by the Corporation in respect of Sums lent by them to the School Board.	Principal Moneys outstanding.			Period for Repayment.
		Security.	Rate.	Amount.	
6.	7.	8.	9.	10.	11.
Commissioners.					
£ s. d.	£ s. d.			£ s. d.	
457 0 6	- - -	Mortgage -	3½	457 0 6	30 years
1,027 11 10	- - -	Do. -	3½	1,027 11 10	30 do.
1,065 12 0	- - -	Do. -	3½	1,065 12 0	30 do.
47,602 4 3	- - -	Do. -	3½	47,602 4 3	38 do.
66,463 15 1	- - -	Do. -	3½	66,463 15 1	40 do.
44,015 5 5	- - -	Do. -	3½	44,015 5 5	43 do.
47,828 15 5	- - -	Do. -	3½	47,828 15 5	44 do.
880 0 0	- - -	Do. -	2½	880 0 0	20 do.
3,919 6 8	- - -	Do. -	2½	3,919 6 8	30 do.
4,646 0 0	- - -	Do. -	3½	4,646 0 0	50 do.
1,750 0 0	- - -	Do. -	3½	1,750 0 0	10 do.
3,086 0 0	- - -	Do. -	3½	3,086 0 0	30 do.
£222,741 11 2	- - -	- - -	-	222,741 11 2	
Corporation.					
20,586 15 2	396,209 10 8	Mortgage } Stock. } Mortgages -	2½ Various	164,330 0 0 231,879 10 8	An equated period of 40 years from the 25th March 1904.
2,284 7 6					
2,810 4 11					
30,103 13 8					
5,644 2 8					
7,865 12 1					
2,044 9 9					
630 12 5					
10,535 6 3					
8,435 16 3					
11,778 2 2					
10,468 13 3					
279 14 0					
12,733 1 7					
7,390 12 9					
6,259 14 6					
12,693 14 1					
4,402 11 8					
93 19 1					
26,105 1 7					
5,748 18 10					
2,437 10 4					
323 9 11					
2,770 19 9					
828 3 9					
3,553 2 10					
2,423 2 0					
2,175 15 2					
313 1 1					
6,405 11 4					
5,717 15 2					
3,565 2 1					
18,919 1 3					
17,827 13 6					
23,763 12 1					
17,800 16 1					
933 11 6					
18,100 17 8					
35,317 1 6					
4,001 3 3					
770 6 2					
21,382 18 10					
17,975 11 3					
£396,209 10 8				396,209 10 8	
Sources.					
7,193 16 2	- - -	Mortgage -	-	7,193 16 2	
16,431 18 3	- - -	Do. -	-	16,431 18 3	
2,043 14 5	- - -	Do. -	-	2,043 14 5	
7,288 2 0	- - -	Do. -	-	7,288 2 0	
24,461 15 11	- - -	Do. -	-	24,461 15 11	
1,154 18 6	- - -	Do. -	-	1,154 18 6	
19,563 13 10	- - -	Do. -	-	19,563 13 10	
30,879 9 0	- - -	Do. -	-	30,879 9 0	
30,460 3 7	- - -	Do. -	-	30,460 3 7	
65,455 4 6	- - -	Do. -	-	65,455 4 6	
4,910 14 6	- - -	Do. -	-	4,910 14 6	
13,418 5 2	- - -	Do. -	-	13,418 5 2	
29,770 19 9	- - -	Do. -	-	29,770 19 9	
19,000 0 0	- - -	Do. -	-	19,000 0 0	
£278,082 15 7	- - -	- - -	-	278,082 15 7	
£897,033 17 5	- - -	- - -	-	897,033 17 5	

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THE TWELFTH SCHEDULE.

FORMS.

(A.)

RESOLUTIONS ON CREATION OF STOCK.

City of Leeds.

[190 .]
At a meeting of the council of the city of Leeds holden on [day the
day of 190] at [] o'clock in the noon
[in the]

Present :

[]

Resolved first—

That the Corporation acting by the council do hereby in exercise of their powers create stock to be called Leeds Corporation Redeemable Stock and to be issued to an amount which shall be sufficient for the following purposes but not exceeding [] pounds (£):

That is to say :—

[*Here set out purposes.*]

Resolved secondly—

That such stock shall be issued at the price and shall bear the dividends and be transferable in the manner hereinafter specified (that is to say):—

A. The minimum price of issue to be [£] per cent. the first dividend to be payable on the [1st January 190];

B. Tenders for stock to be made to [] A deposit of 5 per cent. on the amount of stock tendered for to be paid at [] at the time of the delivery of the tender;

C. The dates for the further payments on account of the said tenders when accepted to be as follows:—On [Wednesday the 20th day of October 190] so much of the amount tendered and accepted as when added to the deposit will leave £75 (sterling) to be paid for each £100 of stock. On Friday the 26th day of November 190 25 per cent. On Tuesday the 11th day of January 190 25 per cent. On Tuesday the 1st day of March 190 25 per cent.] In case of default in the payment of any instalment at its proper date the deposit and instalments previously paid will be liable to forfeiture;

D. Dividends at £ per cent. per annum payable [quarterly];

E. Dividends on the total amount of stock [calculated from the 1st of October 190], to be payable on the [1st of January 190];

F. Stock certificates to be issued in exchange for the provisional receipts;

[5 EDW. 7.] *Leeds Corporation (Consolidation) Act, 1905.* [Ch. i.]

- G. In the event of the receipt of tenders for a larger amount of stock than that proposed to be issued at or above the minimum price the tenders at the lowest price accepted to be subject to proportionate diminution ;

H. Stock to be issued in sums of not less than £100 ;

J. Stock to be transferable [in books and not by deed] or [by deed and not in books].
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Schedule.

Resolved thirdly—

That such stock shall be redeemable as follows [*state terms*].

Resolved fourthly—

That such stock shall be redeemed or purchased and extinguished within a period of _____ years from the creation of such stock.

Resolved fifthly—

That an agreement be entered into with the Commissioners of the Inland Revenue for the payment to them of composition under the provisions of the Customs and Inland Revenue Act 1887 for the stamp duty on transfers of stock issued under the foregoing resolutions.

(B.)

STOCK RECEIPT.

Leeds Corporation [Redeemable] Stock (£ _____ per cent.).

	Received this _____ day of _____ 190 _____ of _____ hereinafter called the said transferee the sum of _____ being the consideration for _____ interest or share in Leeds Corporation [Redeemable] Stock (£ _____ per cent.) transferable at the _____ and all my property and interest in and right to the same and the dividends thereon by _____ this day transferred unto the said transferee.	The proprie- tors to protect themselves from fraud are recom- mended to accept by themselves or their attorneys all transfers made to them. £ s. d.
Transfer days: Monday Tuesday Wednesday Thursday Friday Holidays excepted.		
	Witness _____ hand _____	
	Witness _____	

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Schedule.

[Indorsement.]

NOTICE TO HOLDERS OF LEEDS CORPORATION [REDEEMABLE] STOCK
(£ PER CENT.).

Payment of Dividends.

Dividends are due on _____ unless
the [1st] of either of these months fall on a Sunday Good Friday or Bank
Holiday in which case the dividends will be payable on the following business
day.

Dividends will be paid in one of the following modes:—

I. To the stockholders personally or to their attorneys at the

N.B.—Stockholders may arrange for the receipt of their dividends
free of charge at [_____].

II. By transmission of dividend warrants by post at the risk of the
stockholder under the following regulations:—

1. Any stockholder residing within the United Kingdom or in the
Channel Islands or the Isle of Man who desires to have his
dividend warrant sent to his address by post must fill up a form
of application to be obtained at [_____]:

2. In the case of joint accounts the applications must be signed by
all the members of the account directing the warrant to be sent
to one of them at a given address:

3. Post dividend warrants will be crossed & Co. and will only be
payable through a banker. They will be drawn to the order of
the stockholder and must be indorsed.

Stockholders whose warrants are sent by post should give notice to
[_____] if they are *not* received on the day on which they ought to be
delivered but need not acknowledge those that arrive in due course.

Stock Certificates to Bearer.

Stock certificates to bearer of the denominations of [£10 or any multiple
of £10] with coupons for the quarterly dividends attached may be obtained
in exchange for inscribed stock except in the case of stock held upon any
trust.

(C.)

CORPORATION STOCK CERTIFICATE.

City of Leeds.

Number

This is to certify that A.B. of [_____] is the proprietor
of [_____] pounds of Leeds Corporation [Redeemable] Stock [_____]
per cent. subject to the regulations relating thereto.

Given under the common seal of the lord mayor aldermen and citizens
of the city of Leeds this [_____] day of [_____] [19 ____].

A.D. 1905.

(F.)

*Twelfth
Schedule.*

POWER OF ATTORNEY FOR SALE AND TRANSFER AND FOR RECEIPT OF
DIVIDENDS.

*Corporate }
Account. }*

LEEDS CORPORATION [REDEEMABLE] STOCK.

ACCEPTANCE SALE OF £_____ AND DIVIDENDS.

We

our attorneys and attorney
for us and in our name and on our behalf—

FIRST—to accept all transfers made or to be made to us of any sum of
[] Leeds Corporation [Redeemable] Stock ;

SECONDLY—to sell and transfer all or any part of the sum of

said stock standing in our name in the books of the [] ;

THIRDLY—to receive and give receipts for all dividends or payments
due or to become due on any sum of the said stock from time to
time standing in our name in the books of the [] ;

and also—to do whatever is necessary or proper to be done for the purposes
aforesaid or any of them.

In witness whereof we have hereunto affixed our corporate seal this
_____ day of _____ in the year of our Lord one thousand nine
hundred and _____.

Sealed with the corporate seal and delivered in the presence of

N.B.—The execution of this letter must be attested by [two witnesses who are]
not of the corporate body and who must be present when the corporate
seal is affixed.

[*Indorsement.*]

INSTRUCTIONS FOR EXECUTING THE WITHIN LETTER OF ATTORNEY.

*Corporate }
Account. }*

The *date* must be inserted in *words* and not in figures.

The execution must be attested by [*two credible witnesses* who are] not
of the corporate body and who must add [their addresses and their qualities
professions or occupations].

A *witness resident in a town* must give the No. of the house as well as
the name of the street.

[5 EDW. 7.] *Leeds Corporation (Consolidation) Act, 1905.* [Ch. i.]

If *clerks or servants* are witnesses they must give the names and addresses of their employers. A.D. 1905.

When a witness is a *female* she must state whether she is a *spinster wife* or *widow* and if a *wife* she must give her husband's name address and quality profession or occupation. *Twelfth Schedule.*

A *wife* is not a *valid witness* to the execution of this letter of attorney when her husband's name appears in the letter as attorney or transferee.

If any *alteration interlineation or erasure* be made in this letter of attorney it must be particularly stated in the attestation subscribed to by the witnesses that such alteration interlineation or erasure was made previously to the execution of the letter.

I demand to act by this letter of attorney this day of 19 .

Witness

(G.)

DEED OF TRANSFER.

City of Leeds.

I *A.B.* of [] in consideration of the sum of [] pounds paid to me by *C.D.* of [] (hereinafter called the said transferee) do hereby transfer to the said transferee the sum of [] pounds Leeds Corporation [Redeemable] per cent. Stock standing [or part of the stock standing] in name in the books of my lord mayor aldermen and citizens of the city of Leeds to hold unto the said transferee his executors administrators and assigns [or successors and assigns] subject to the several conditions on which I hold the same at the time of the execution hereof and I the said transferee do hereby agree to take the said stock subject to the same conditions.

As witness our hands and seals the [] day of [].

(H.)

DIVIDEND WARRANT.

000000

LEEDS CORPORATION [REDEEMABLE] STOCK.
(£ per cent.)

To the
One quarter of a year's }
dividend on the sum of - }
Leeds Corporation [Redeemable]
Stock due 190 - -
Less property tax at *d.* per £ -

--	--	--	--	--	--

Pay self or bearer.

Examined

Witness

A.D. 1905.

*Twelfth
Schedule.*

(I.)

DIVIDEND WARRANT BY POST.

(1.)

LEEDS CORPORATION [REDEEMABLE] STOCK.

(£ PER CENT.)

Request for transmission of Dividend Warrants by post.

Amount.

To the

A sum of £

Leeds Corporation [Redeemable] Stock

"my" or
"our."

(£ per cent.) is now standing in name as follows:—

Names
addresses
and de-
scriptions as
recorded in
the books.

"I" or "we."
"myself" or
"our nominee."

As the person entitled to the dividends upon the above-mentioned
amount of stock hereby authorise []
in the name of

"my" or
"our."
"I" or "we."
"my" or
"our."

to draw upon the [] for the amount of the quarterly
dividends due and to become due on the said amount of stock or on the
amount for the time being standing in name:

And hereby request the said [] to send
through the post at risk and until further notice the warrants
so drawn to—

If the account
is a sole one
insert here the
name and
address of the
stockholder:
If the account
is a joint one
insert here the
name and
address of one
of the stock-
holders as
nominee.

Name _____

Present address _____

SIGN HERE.

In the case of joint
stockholders or of
co-executors all
must sign.

Date _____ 190 ____.

[5 EDW. 7.] *Leeds Corporation (Consolidation) Act, 1905.* [Ch. i.]

[On second half-sheet of same form.]

A.D. 1905.

This half-sheet is to be retained by the stockholder Reference to it will often save unnecessary correspondence.

*Twelfth
Schedule.*

NOTICE TO HOLDERS OF LEEDS CORPORATION [REDEEMABLE] STOCK
[] (£ PER CENT.).

Transmission of Dividend Warrants by post.

Dividends upon the above-named stock may be transmitted through the post to the *stockholder* in sole accounts and to *any one of the stockholders* in joint accounts *at their risk* upon a form of request being duly filled up and forwarded to [] at [].
(Forms are obtainable at []).

N.B.—This arrangement does not apply to stockholders whose addresses are beyond the United Kingdom the Channel Islands and the Isle of Man.

Persons receiving dividends under letters of attorney cannot have the warrants for such dividends sent to them by post.

A separate form must be used for each separate holding of stock.

When forwarding a form of request care should be taken to state the number of overdue dividends if any.

Dividends are payable on [1st January 1st April 1st July and 1st October].

When the [1st] happens on a Sunday the dividends are not payable until the [2nd].

Forms of request may be delivered at any date either by hand or through the post but when received between the day on which the balance for a dividend is struck and the day on which the dividend is payable the warrants for such *next* dividend will be forwarded as soon as possible but the [] will not guarantee their being posted on the day before the dividend is payable.

For the dividend payable [1st January] the balance is struck on or about the [1st December].

For the dividend payable [1st April] the balance is struck on or about the [1st March].

For the dividend payable [1st July] the balance is struck on or about the [1st June].

For the dividend payable [1st October] the balance is struck on or about the [1st September].

Warrants for overdue dividends will be forwarded as promptly as possible but not necessarily by return of post.

Any change of address of the stockholder in sole accounts or of the nominee in joint accounts should be notified at once to the []
When any such notification reaches [] less than a fortnight before the next dividend is due there may be a delay of a few days in the delivery of the warrant for such next dividend.

[Ch. i.] *Leeds Corporation (Consolidation) Act, 1905.* [5 EDW. 7.]

A.D. 1905.

*Twelfth
Schedule.*

In the absence of any notification to the contrary it will be taken for granted that dividend warrants have duly reached their destinations. When they are not received on the correct day notice should be given to the [] without delay.

As postal dividend warrants are made payable to order they must be endorsed they are crossed in blank and consequently are only payable on presentation by a banker [] will not undertake to cross postal dividend warrants with the names of particular bankers.

Instructions to transmit warrants by post remain in force although the stock may have been added to or a part sold.

Stockholders selling stock by attorney if they wish to continue to receive their dividends through the post should instruct their bankers or brokers to obtain letters of attorney *for sale only*.

All communications with reference to postal dividend warrants should be addressed to [] and the postage should be prepaid.

(2.)

Div.	POST DIVIDEND WARRANT.					
000000	LEEDS CORPORATION [REDEEMABLE] STOCK.					
	(£ per cent.)					
To the						
One quarter of a year's } dividend on the sum of						
Leeds Corporation [Redeemable] Stock						
due 190 - - -						
Less property tax at d. per £ -						
Pay _____ or bearer.						
Examined						

[]

The person to whom this warrant is payable must sign here.

Warrants outstanding more than six months after date are required to be sent to [] for verification before being presented for payment.

[5 EDW. 7.] *Leeds Corporation (Consolidation) Act, 1905.* [Ch. i.]

(K.)

A.D. 1905.

STOCK CERTIFICATE WITH COUPONS TO BEARER.

Twelfth
Schedule.

Leeds Corporation [Redeemable] Stock Certificate to Bearer.

Dividend at £ per cent. per annum.

£50

A00000

This is to certify that the bearer of this certificate is entitled to fifty pounds Leeds Corporation [Redeemable] Stock with dividend thereon at the rate of £ per cent. per annum transferable at [].

Dated 190 .

[Signed] _____.

[Countersigned]

[Sealed]

A00000

£50

The coupons attached to this certificate are payable at [].

When the coupons are exhausted this certificate will be exchanged on presentation at [] for a new certificate with fresh coupons attached.

[Coupons.]

5 Div.	LEEDS CORPORATION [REDEEMABLE] STOCK.	5 Div.	LEEDS CORPORATION [REDEEMABLE] STOCK.	4 Div.	LEEDS CORPORATION [REDEEMABLE] STOCK.	4 Div.	LEEDS CORPORATION [REDEEMABLE] STOCK.
Coupon for	Shillings and Pence	[]	Coupon for	Shillings and Pence	[]	Coupon for	Shillings and Pence
	(Less Income Tax)			(Less Income Tax)			(Less Income Tax)
	being Three Months' Dividend at £			being Three Months' Dividend at £			being Three Months' Dividend at £
	Per Cent. per Annum.			Per Cent. per Annum.			Per Cent. per Annum.
A00000	Due [1st January 190]	Due [1st Jan. 190]	A00000	Due [1st October 190]	Due [1st Oct. 190]	A00000	Due [1st Oct. 190]
	on Certificate for FIFTY POUNDS			on Certificate for FIFTY POUNDS			on Certificate for FIFTY POUNDS
LEEDS CORPORATION [REDEEMABLE] STOCK.	A00000	A00000	LEEDS CORPORATION [REDEEMABLE] STOCK.	A00000	A00000	LEEDS CORPORATION [REDEEMABLE] STOCK.	A00000
£0 0 0 Payable at [].	£0 0 0	£0 0 0	£0 0 0 Payable at [].	£0 0 0	£0 0 0	£0 0 0 Payable at [].	£0 0 0
3 Div.	LEEDS CORPORATION [REDEEMABLE] STOCK.	3 Div.	LEEDS CORPORATION [REDEEMABLE] STOCK.	2 Div.	LEEDS CORPORATION [REDEEMABLE] STOCK.	2 Div.	LEEDS CORPORATION [REDEEMABLE] STOCK.
Coupon for	Shillings and Pence	[]	Coupon for	Shillings and Pence	[]	Coupon for	Shillings and Pence
	(Less Income Tax)			(Less Income Tax)			(Less Income Tax)
	being Three Months' Dividend at £			being Three Months' Dividend at £			being Three Months' Dividend at £
	Per Cent. per Annum.			Per Cent. per Annum.			Per Cent. per Annum.
A00000	Due [1st July 190]	Due [1st July 190]	A00000	Due [1st April 190]	Due [1st Apr. 190]	A00000	Due [1st Apr. 190]
	on Certificate for FIFTY POUNDS			on Certificate for FIFTY POUNDS			on Certificate for FIFTY POUNDS
LEEDS CORPORATION [REDEEMABLE] STOCK.	A00000	A00000	LEEDS CORPORATION [REDEEMABLE] STOCK.	A00000	A00000	LEEDS CORPORATION [REDEEMABLE] STOCK.	A00000
£0 0 0 Payable at [].	£0 0 0	£0 0 0	£0 0 0 Payable at [].	£0 0 0	£0 0 0	£0 0 0 Payable at [].	£0 0 0

FEEs.

	£	s.	d.
On original issue of stock receipt or stock certificate ...	0	2	6
On any new stock certificate ...	0	2	6
On transfer including certificate ...	0	5	0
On any issue of stock certificate to bearer in respect of every ten pounds of stock specified therein ...	0	0	6
On re-entry in stock register of stock specified in stock certificate to bearer ...	0	5	0

A.D. 1905.

*Thirteenth
Schedule.*

THE THIRTEENTH SCHEDULE.

EXISTING STOCKS AND SECURITIES.

PART I.—IRREDEEMABLE.

Description.	Nominal Value.	Interest.		Date of Issue.	Terms and Conditions of Issue.
		Rate.	How Payable.		
Leeds Corporation stock	£ 217,420 0 0	5 0 0	Half-yearly on 30th June and 31st December.	18th May 1899.	Redeemable only by agreement with holders.
Leeds Gas Light Company's Debenture stock.	7,900 0 0	4 10 0		1863-5	Do.
Leeds New Gas Debenture stock.	50,705 0 0	4 10 0		1862-8	Do.
Leeds Corporation Funded debt.	30,580 3 0	4 5 0		1870-1	Do.
Leeds Corporation Funded Debt (gas) (bearer certificates).	29,250 0 0	4 0 0		1875-6	Do.
Leeds Corporation Funded Debt (water) (bearer certificates).	94,350 0 0	4 0 0		1875-6-7	Do.

PART II.—REDEEMABLE.

Leeds Corporation Consolidated Debenture stock.	*2,340,250 0 0	4 0 0	Half-yearly on 30th June and 31st December.	1877-1902	Redeemable at par 1st July 1927.
Leeds Corporation Annuity Debt (water) (bearer).	4,500 0 0	4 0 0		1877	Do.
Leeds Corporation Consolidated Debenture stock.	†772,540 0 0	3 10 0		1881-1887	Do.
Leeds Corporation Debenture stock.	290,004 5 9	3 10 0		1887-9	Redeemable at par on or after the 1st July 1927 at the option of the Corporation upon one year's previous notice of redemption.
Leeds Corporation Debenture stock.	482,900 0 0	3 0 0		1890 & 1894	Do.
Leeds Corporation stock	2,000,000 0 0	3 0 0		1902	Stamp duty free Redeemable at par on or after the 1st July 1927 at the option of the Corporation upon three months' previous notice of redemption.
Leeds Corporation stock	750,000 0 0	2 10 0		1896-7	Redeemable at par on or after the 1st July 1927 at the option of the Corporation upon one year's previous notice of redemption.

* Includes bearer certificates representing £131,800.

† Includes bearer certificates representing £15,000.

THE FOURTEENTH SCHEDULE.

A.D. 1905.

*Fourteenth
Schedule.*

ENACTMENTS REPEALED.

PART I.—IMPROVEMENT ACTS AND ORDERS.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
5 & 6 Vict. c. civ.	The Leeds Improvement Act 1842	The whole of the Act.
11 & 12 Vict. c. cii.	The Leeds Improvement Amendment Act 1848.	The whole of the Act except sections 16 17 18 19 20 21 22 23 24 25 26 27 28 29 30 31 32 33 and 39 and Schedule B.
19 & 20 Vict. c. cxv.	The Leeds Improvement Amendment Act 1856.	The whole of the Act except Schedule B.
29 & 30 Vict. c. cli.	The Leeds Improvement of Becks Act 1866.	The whole of the Act except sections 45 and 46.
29 & 30 Vict. c. clvii.	The Leeds Improvement Act 1866 -	The whole of the Act.
32 & 33 Vict. c. xi.	The Leeds Improvement Act 1869 -	The whole of the Act except sections 7 and 8 and subsections (1) and (2) of section 11.
33 & 34 Vict. c. xciii.	The Leeds Corporation Gas and Improvements &c. Act 1870.	The whole of the Act except sections 7 50 and 51.
35 & 36 Vict. c. xcvi.	The Leeds Improvement Act 1872 -	The whole of the Act except sections 8 9 77 and 78.
40 & 41 Vict. c. clxxviii.	The Leeds Improvement Act 1877 -	The whole of the Act except sections 18 19 29 and 33.
42 Vict. c. xxiii.	The Leeds Corporation Act 1879 -	The whole of the Act except sections 14 and 15.
56 & 57 Vict. c. ccx.	The Leeds Improvement Act 1893 -	The whole of the Act except sections 7 and 110.
60 & 61 Vict. c. cxcix.	The Leeds Corporation Act 1897 -	The whole of the Act.
62 & 63 Vict. c. cclxiii.	The Leeds Corporation Act 1899 -	The whole of the Act except section 17.
1 Edw. 7. c. cclv.	The Leeds Corporation (General Powers) Act 1901.	Parts III. and V. and sections 32 33 34 41 54 and 59 and subsection (3) of section 51 and subsection (3) of section 52.

PART I.—IMPROVEMENT ACTS AND ORDERS—*cont.*

A.D. 1905.

*Fourteenth
Schedule.*

Session and Chapter.	Title or Short Title.	Extent of Repeal.
44 & 45 Vict. c. lxvi.	The Leeds Order 1881 confirmed by the Local Government Board's Provisional Orders Confirmation (Halifax &c.) Act 1881.	The whole of the Order and so much of the Act as relates to the said Order.
46 & 47 Vict. c. xcix.	The Leeds Order 1883 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 8) Act 1883.	
46 & 47 Vict. c. xci.	The Leeds Order 1883 (2) confirmed by the Local Government Board's Provisional Order Confirmation (No. 10) Act 1883.	
48 & 49 Vict. c. cvi.	The Leeds Order 1885 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 3) 1885.	
51 & 52 Vict. c. cxxxiii.	The Leeds Order 1888 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 8) Act 1888.	
52 & 53 Vict. c. lxii.	The Leeds Order 1889 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 10) Act 1889.	
53 & 54 Vict. c. clxxxv.	The Leeds Order 1890 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 7) Act 1890.	
53 & 54 Vict. c. clxxvii.	The Leeds Order 1890 (2) confirmed by the Local Government Board's Provisional Orders Confirmation (No. 8) Act 1890.	
59 Vict. c. ix.	The Leeds Order 1895 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 15) Act 1895 Session 2.	
61 & 62 Vict. c. lxxviii.	The Leeds Order 1898 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 5) Act 1898.	
61 & 62 Vict. c. lxxxiv.	The Leeds Order 1898 (2) confirmed by the Local Government Board's Provisional Orders Confirmation (No. 12) Act 1898.	
63 & 64 Vict. c. cxevi.	The Leeds Order 1900 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 15) Act 1900.	
2 Edw. 7. c. lxxxiv.	The Leeds Order 1902 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 11) Act 1902.	
3 Edw. 7. c. lxxvii.	The Leeds Order 1903 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 9) Act 1903.	

[5 EDW. 7.] *Leeds Corporation (Consolidation) Act, 1905.* [Ch. i.]

PART II.—WATER ACTS.

A.D. 1905.

*Fourteenth
Schedule.*

Session and Chapter.	Title or Short Title.	Extent of Repeal.
10 & 11 Vict. c. cclxii.	The Leeds Waterworks Act 1847 -	The whole of the Act except section 50.
15 Vict. c. cii.	The Leeds Waterworks (Wharfe Supply) Act 1852.	The whole of the Act.
19 & 20 Vict. c. lxxx.	The Leeds Waterworks (Wharfe Supply) Act 1856.	The whole of the Act.
25 Vict. c. lii.	The Leeds Waterworks Act 1862 -	The whole of the Act.
30 & 31 Vict. c. cxli.	The Leeds Waterworks Act 1867 -	The whole of the Act except sections 12 13 27 28 and 54.
37 & 38 Vict. c. xxxiv.	The Leeds Corporation Water Act 1874.	The whole of the Act.
1 Edw. 7. c. cclvi.	The Leeds Corporation Water Act 1901.	Sections 36 43 44 and sub-section 3 of section 41.

PART III.—GAS ACTS.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
16 Vict. c. xlv.	The Leeds Gaslight Company's Act 1853.	The whole of the Act.
17 Vict. c. iv.	The Leeds New Gas Company's Act 1854.	The whole of the Act except section 58.
25 Vict. c. xxviii.	The Leeds New Gas Company's Act 1862.	The whole of the Act.
26 Vict. c. xv.	The Leeds Gaslight Company's Act 1863.	The whole of the Act.
31 & 32 Vict. c. xlv.	The Leeds New Gas Company's Act 1868.	The whole of the Act.
33 & 34 Vict. c. lvi.	The Leeds Corporation Gas Act 1870	The whole of the Act except section 45.

PART IV.—TRAMWAYS ACTS AND ORDERS.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
35 & 36 Vict. c. clxxiv.	The Leeds Tramways Act 1872 -	} The whole of the Act.
40 & 41 Vict. c. clxix.	The Leeds Tramways Act 1877 -	
44 & 45 Vict. c. cl.	The Leeds Tramways Act 1881 -	
59 & 60 Vict. c. lxxv.	The Leeds Corporation Tramways Act 1896.	

PART IV.—TRAMWAYS ACTS AND ORDERS—*cont.*

A.D. 1905
—
*Fourteenth
Schedule.*

Session and Chapter.	Title or Short Title.	Extent of Repeal.
34 & 35 Vict. c. clxxxix.	The Leeds Tramways Order 1871 confirmed by the Tramways Orders Confirmation Act 1871.	The whole of the Order and so much of the Act as relates to the said Order.
51 & 52 Vict. c. lxiv.	The Leeds Corporation Tramways Order 1888 confirmed by the Tramways Orders Confirmation (No. 1) Act 1888.	
2 Edw. 7. c. cciii.	The Leeds Corporation Tramways Order 1902 confirmed by the Tramways Orders Confirmation (No. 2) Act 1902.	
3 Edw. 7. c. cxlv.	The Leeds Corporation Tramways Order 1903 confirmed by the Tramways Orders Confirmation (No. 1) Act 1903.	

PART V.—ELECTRIC LIGHTING ACTS AND ORDERS.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
54 & 55 Vict. c. cvi.	The Electric Supply Order 1891 confirmed by the Electric Lighting Orders Confirmation (No. 12) Act 1891.	The whole of the Order and so much of the Act as relates to the said Order.

PART VI.—BURIAL GROUND ACT.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
5 & 6 Vict. c. ciii.	The Leeds Burial Ground Act 1842	The whole of the Act.

*Fifteenth
Schedule.*

THE FIFTEENTH SCHEDULE.

PARTS AND SECTIONS OF ACTS OF PARLIAMENT EXCEPTED FROM REPEAL.

LEEDS WATERWORKS ACT 1847 SECTION 50.

Not to erect
unnecessary
buildings.

L. Provided always and be it enacted that it shall not be lawful for the said company without the consent in writing of the Earl of Harewood or of George Lane Fox William Thomas Carruthers and Henry Englefield or of the owners for the time being of their respective estates to erect or make upon any part of the lands of said parties respectively which were authorised to be taken for the purpose of the said recited Act any building

[5 EDW. 7.] *Leeds Corporation (Consolidation) Act, 1905.* [Ch. i.]

or erection of any kind but such as shall be necessary for the proper construction completion conduct protection and management of the said waterworks.

A.D. 1905.

*Fifteenth
Schedule.*

LEEDS IMPROVEMENT ACT 1848 SECTIONS 16 17 18 19 20 21 22 23 24
25 26 27 28 29 30 31 32 33 AND 39 AND SCHEDULE B.

XVI. And in order to prevent the undertakers of the navigation of the Rivers Aire and Calder and the owners lessees and occupiers of certain mills situate on the said River Aire (that is to say) the Nether Mills the Hunslet Mills the Knostrop Mills and the Thwaites Mills from being injuriously affected by the sewerage or works by the said recited Act or by this Act authorised to be made be it enacted that the council shall cause and procure all and singular the works of or connected with the sewerage by this Act and by the said recited Act or by either of them authorised to be made to be so constructed and maintained and the said sewerage to be from time to time and at all times so managed and conducted as not in any way to diminish the quantity of water now flowing and which if the said sewerage had never been constructed would have flowed into and along the River Aire and the several streams and runners of water whether the same respectively be open covered or underground which are enumerated in the Schedule B to this Act annexed or into or along any other natural or living streams or runners of water within the borough although not enumerated in the said Schedule B and that the said river streams and runners of water shall at all times hereafter so far as regards the said sewerage and works respectively be preserved and maintained at their present levels and in their present channels without any diversion or diminution whatever and so that none of the water of the said river streams and runners respectively shall at any time hereafter be taken or applied for the purposes of the said sewerage or works Provided always that nothing in this Act contained shall or is intended to apply or extend to any waters which the Leeds Waterworks Company under the powers of the Leeds Waterworks Act 1847 do now or shall at any time hereafter bring or convey into the borough of Leeds from any place beyond the limits of the said borough and which waters would not if left to flow in their accustomed course have run or flowed into the said River Aire or into or along any of the streams or runners enumerated in the said Schedule B or into or along any other natural or living streams or runners of water within the said borough nor in any manner to prevent hinder or interfere with the use appropriation or distribution of any such waters pursuant to the said Act and that notwithstanding any of the provisions or restrictions in this Act contained such waters or any part thereof may from time to time be lawfully passed and conveyed in and through any of the public sewers drains and other sewerage works which are now or may at any time hereafter be made or constructed in any part of the borough of Leeds.

For protection
of the naviga-
tion of the
Rivers Aire
and Calder.

XVII. And be it enacted that if any difference or dispute shall at any time arise between the council and the undertakers of the said navigation as to the existence number source or direction of any such streams or runners

Disputes to be
settled by two
engineers.

A.D. 1905. or alleged streams or runners within the borough not enumerated in the said Schedule B every such difference or dispute shall be decided by two arbitrators (both being engineers) one to be appointed by each of the parties in difference or by an umpire (being an engineer) to be appointed by such two arbitrators which said two arbitrators and umpire respectively shall have such and the like powers and be subject to such and the like provisions and regulations in every respect (so far as such powers provisions and regulations respectively are or may be applicable to the case) as arbitrators and an umpire appointed by virtue of the Lands Clauses Consolidation Act 1845 to decide upon any question of disputed compensation.

*Fifteenth
Schedule.*

Regulating
mode of repair-
ing sewers &c.
when such re-
pairs &c. inter-
fere with flow
of water.

XVIII. And be it enacted that when and so often as for the purpose of the actual construction or needful repair of the said sewerage and works it shall be necessary to intercept the flow of the water of any one or more of the said streams or runners in their present channels respectively it shall be lawful for the council to cause the flow of the water of such stream or streams runner or runners in its present channel or their present channels to be intercepted for the purpose of such actual construction and needful repairs and for so long a time as shall be necessary for such purpose and no longer and during all the time that such flow shall be so intercepted the council shall cause all the waters which but for such interceptions would have flowed along the streams or runners so intercepted to be conducted and flow along sufficient temporary channels to come down the line of the said streams or runners respectively or if that shall be impracticable to the same pool in the said river as the said streams or runners respectively at present discharge themselves into and shall as soon as such constructions or repairs will permit restore such streams and runners to their present channels respectively and shall from time to time and at all times make good any damage which shall at any time be occasioned to the said channels or any of them by the said sewerage and works or the construction repairs or management thereof.

Council not to
divert water
raised from the
River Aire.

XIX. Provided always and be it enacted that in the construction repair or management of the said sewerage and works the council shall not apply to the purposes of the said sewerage or works or otherwise divert or intercept any water that shall at any time hereafter have been raised or received by any person from the said River Aire or the said streams or runners or any of them or from any boreholes or wells to the enjoyment of which or of the surplus or other waters whereof the said undertakers or their trustees or the owners lessees or occupiers of the said mills or any of them are now entitled or which would otherwise have been retained in or have flowed or been returned or discharged into the said River Aire or the said streams or runners respectively but shall from time to time and at all times hereafter suffer the said last-mentioned waters to be returned or discharged in their present channels to or into the same pool of the said river or to the same streams or runners respectively to or into which such last-mentioned waters respectively are now returned or discharged.

Sewers &c. to
be kept water-
tight.

XX. And be it enacted that the council shall from time to time and at all times construct maintain and keep all the sewers drains vaults culverts

[5 EDW. 7.] *Leeds Corporation (Consolidation) Act, 1905.* [Ch. i.]

watercourses wells pumps and other works of the said sewerage and every part thereof respectively perfectly watertight and secured externally where necessary so as to prevent the percolation leakage or other passage or escape of any part of the water of or draining into or towards the said river or of or draining into or towards the said streams or runners wells or boreholes or of the water which ought as aforesaid to have flowed or to be returned to or discharged into the said river or to or into the said streams and runners or any of them into or by or along the external parts of any of the sewers drains vaults culverts watercourses wells or pumps or other works of the said sewerage so as that such water shall be discharged into a lower pool of the said river than that into which it would otherwise have flowed.

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XXI. And be it enacted that the council shall by all lawful means which either by virtue of the said recited Act or otherwise howsoever now are or from time to time hereafter shall be in their power cause all private drains or works communicating or to communicate immediately or mediately with the said sewerage or works to be so constructed maintained and regulated as to prevent the percolation leakage or other passage or escape of any part of the water of the said river or of or naturally draining into or towards the said streams or runners wells or boreholes or of the water which ought as aforesaid to be returned to or discharged into the said river or to or into the said streams and runners or any of them into or by or along the external parts of any such private drains or works.

Private drains communicating with sewers to be kept watertight.

XXII. And be it enacted that the culvert to be constructed for the purpose of the said sewerage under the Hunslet Mills Pool of the said river shall be constructed of cast iron made perfectly watertight and that the upper surface of such culvert at its highest part shall not be placed at a higher level than the upper surface of the upper sill of the new lock at the bottom of Knostrop Cut.

Regulating construction of culvert under Hunslet Mills.

XXIII. And be it enacted that if at any time or times hereafter the said undertakers shall be desirous of deepening the bed of the said navigation at the point or points where the said culvert shall be so constructed as aforesaid it shall be lawful for the said undertakers from time to time at their own expense to substitute a new culvert of the same dimensions and materials as the said original culvert for such original culvert but at such lower depth or depths as they may think necessary but so that such substituted culvert shall be efficient for the purposes of the said sewerage.

If bed of navigation deepened at Hunslet Mills new culvert to be constructed to satisfaction of council.

XXIV. And be it enacted that the council shall not at any time hereafter in the construction or repair of the works of the said sewerage or any of them cause any complete stoppage whatsoever of any part of the said navigation but shall at all times leave a sufficient width open for the passage of vessels and shall not for any longer space of time than shall be absolutely necessary in that behalf cause any partial contraction or obstruction of any part of the said navigation or any other inconvenience whatsoever than can possibly be avoided in such construction or repairs and in case the council or any person or persons acting under them shall detain any vessel barge or

Council at no time completely to stop any part of navigation in the construction &c. of their works.

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Certain works
not to be exe-
cuted without
the consent of
the Admiralty.

boat contrary to the provisions of this Act the said council or every person so offending shall in every such case forfeit and pay the sum of ten pounds but nothing in this Act shall prevent any remedy for damages which any party may sustain in respect of any such detention as aforesaid.

XXV. And be it enacted that it shall not be lawful for the council to construct any work affecting the River Aire hereby authorised to be made without the previous consent of the Lord High Admiral of the United Kingdom of Great Britain and Ireland or the Commissioners for executing the office of Lord High Admiral aforesaid for the time being to be signified in writing under the hand of the Secretary of the Admiralty and then only according to such plan and under such restrictions and regulations as the said Lord High Admiral or the said Commissioners for executing the office of Lord High Admiral may approve of such approval being signified as last aforesaid and where any such work shall have been constructed it shall not be lawful for the council at any time to alter or extend the same without obtaining previously to making any such alteration or extension the like consent or approval and if any such work shall be commenced or completed or altered or extended without or contrary to such consent restrictions or regulations as last aforesaid it shall be lawful for the said Lord High Admiral or the said Commissioners for executing the office of Lord High Admiral to abate and remove the same and to restore the site thereof to its former condition at the cost and charge of the council and the amount thereof shall be a debt due to the Crown and be recoverable accordingly.

Expenses of
any local sur-
vey and exa-
mination
ordered by
Admiralty to
be defrayed by
council.

XXVI. And be it enacted that if after working drawings of the works hereby authorised shall have been submitted to the Lord High Admiral of the United Kingdom or to the Commissioners for executing the office of Lord High Admiral it shall be deemed expedient by him or them to order a local survey and examination of such works or of the intended site thereof the council shall defray the costs of such local survey and examination and the amount thereof shall be a debt due to Her Majesty from the council and if not paid upon demand may be recovered as a debt due to the Crown with the costs of suit or may be recovered with costs as a penalty is or may be recoverable from the council.

In case any
work in or
under a navi-
gable river
shall be aban-
doned the Ad-
miralty may
remove same
at expense of
council.

XXVII. And be it enacted that if any work to be constructed by the council in or under any navigable river or if any portion of the work which affects any such river or access thereto shall be abandoned or suffered to fall into disuse or decay by the council it shall be lawful for the Lord High Admiral or the Commissioners for executing the office of Lord High Admiral to abate and remove the same or such part or parts thereof as he or they may at any time or times deem fit and proper and to restore the site thereof to its former condition at the cost and charge of the council and the amount thereof shall be a debt due from the council to the Crown and be recoverable accordingly.

Lights to be
exhibited at
night during
construction
&c. of works.

XXVIII. And be it enacted that during the construction of the said works or the repairing thereof the said council shall cause to be hung out or exhibited every night from sunset to sunrise a light to be kept burning by

[5 EDW. 7.] *Leeds Corporation (Consolidation) Act, 1905.* [Ch. i.]

and at the expense of the council for the navigation and safe guidance of vessels and which light shall be from time to time altered by the council in such manner and be of such description and be so used as the Lord High Admiral or the Commissioners for executing the office of Lord High Admiral shall by writing under the hand of the Secretary of the Admiralty approve of and in case the said council shall neglect to exhibit and keep either of such lights burning as aforesaid they shall forfeit and pay for every such neglect the sum of ten pounds.

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Penalty for
neglect.

XXIX. And be it enacted that if at any time hereafter the said sewerage and works or the construction or repair or management thereof or of any part thereof shall cause or shall by the engineer for the time being of the said undertakers be alleged to cause any damage obstruction inconvenience or loss of water whatsoever to the said navigation or to the said mills or any of them or to any part or parts of the property for the time being of the said undertakers or of their trustees for the time being the council shall from time to time according to the damage loss or injury then actually sustained in that behalf pay to the trustees for the time being of the said undertakers such sum and sums of money by way of compensation in that behalf as shall from time to time be agreed upon in that behalf by the council and the committee for the time being of the managing directors of the said undertakers and in case the council and the said managing committee shall not have agreed upon the amount of any such compensation at the expiration of one calendar month next after the claim for any such compensation shall have been signified in writing under the hand of any one member of the said committee for the time being of managing directors or of the clerk of the said undertakers to the mayor or the town clerk of the borough or if any other matter in difference shall exist between the council and the said undertakers touching the said sewerage and works or the construction repairs or management thereof and shall not be settled by agreement between the council and the said committee for the time being of managing directors at the expiration of one calendar month next after a statement of the subject of any such matter in difference shall have been expressed in writing under the hand of any one member of the said committee for the time being of managing directors or of the clerk of the said undertakers to the mayor or town clerk of the borough the amount of such compensation and every such matter in difference shall from time to time be decided by arbitration in the manner directed by the Lands Clauses Consolidation Act 1845 with regard to any question of disputed compensation.

Compensation
to be paid for
damage and
differences to
be settled by
arbitration.

XXX. And be it enacted that the council shall from time to time and at all reasonable times permit the said sewerage and works and every part thereof and the construction and repairs thereof and of every part thereof and the management of the said sewerage and works to be inspected and examined by such person as shall from time to time be appointed for that purpose by writing under the hands of any three members of the said committee for the time being of managing directors of the said undertakers.

Council to
allow inspec-
tion of sewer-
age &c.

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Act not to pre-
judice claims
to compensa-
tion under
former Act.

XXXI. And be it enacted that nothing in this Act contained shall in anywise annul affect prejudice or diminish any claims rights or remedies for compensation or otherwise which either by virtue of the said recited Act or otherwise howsoever the said undertakers or their trustees as owners of the said mills called the Nether Mills and Hunslet Mills respectively or as owners of part of the said mills called the Knostrop Mills and Thwaites Mills respectively can or may or if this Act had not been passed could or might have claim recover or enforce against the said mayor aldermen and burgesses for any loss of water injury to or deterioration of the said mills or any of them or any part thereof.

Not to enter
wharves &c. of
Aire and
Calder Naviga-
tion without
consent.

XXXII. Provided always and be it enacted that nothing in this or in the said recited Act or in any of the said incorporated Acts contained shall authorise or empower the council to open or break up any of the existing wharves dockyards quays or towing paths belonging to the undertakers of the navigation of the Rivers of Aire and Calder in the county of York for any of the purposes of this or of the said recited Act or any of the said incorporated Acts (except for the purpose of carrying any sewer across the said towing paths and of constructing the said culvert under and across the Hunslet Mills Pool of the said river) without the consent in writing of three of the committee of directors of the said undertakers being first obtained for that purpose.

Council not to
be responsible
for pumping
water from
boreholes &c.

XXXIII. And be it enacted that nothing in this Act contained shall make the council responsible to the said undertakers for the diversion or use of any water raised by pumping from boreholes now turned into the common sewers already constructed in the borough of Leeds.

Compensation
to be made by
undertakers of
navigation of
Rivers Aire
and Calder for
damage to gas
or water pipes.

XXXIX. And be it enacted that if the undertakers of the navigation of the Rivers Aire and Calder or any committee or any member of the committee of the said undertakers in the exercise by them of any of the powers or provisions in this Act contained shall at any time do or commit any damage or injury to any of the mains pipes or other works of any company established by Act of Parliament for lighting with gas or supplying with water the town and neighbourhood of Leeds aforesaid or the water pipes or gas pipes of any other body or person connected with the mains pipes or other works of any such company or shall displace alter remove or otherwise prejudicially interfere with any such mains pipes or works the said undertakers in respect thereof shall and they are hereby declared to be subject and liable to such and the same enactments provisions conditions and restrictions and to make such and the like compensation and in like manner as the council of the borough of Leeds are by this Act or any Act incorporated therewith made subject or liable to for and in respect of any damage injury or other matter or thing as aforesaid which may be done or committed by the council in carrying this Act into execution and before the said undertakers or any committee or any members of such committee of the said undertakers shall open into any street highway road or other place in or near to which any mains pipes or other works of any such company shall be placed or deposited the said undertakers shall give such

and the like notice thereof to every such company as the council under the like or similar circumstances are by this Act or any Act incorporated therewith required to do in that behalf.

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SCHEDULE (B).

Halton Beck Timble Beck Gipton Beck Sheepscar Beck Horsforth Beck
Holbeck Little Holbeck Wortley Beck and their respective tributaries.

No. on the Plan referred to in this Act showing the Point at which the Stream enters the River.	
1	Bramley or Rodley Beck.
2	Mill goit.
3	Drain at Newlay Dyeworks.
4	Drain for mill near New Laiths Bridge (Messrs. Ripley Thorpe and Company).
5	Streams from mill near New Laiths Bridge (Messrs. Ripley Thorpe and Company).
6	Horsforth Beck.
7	Natural stream of pure water.
8	Natural stream of pure water.
9	Natural stream of pure water.
10	Tail Goit of Kirkstall Forge.
11	Natural stream of pure water.
12	Water from Kirkstall Bridge Mills.
13	Stream of pure water.
14	Mill goit.
15	Natural stream.
16	Mill goit.
17	Spring of water.
18	Drain dyewater &c. from Armley Mill (Messrs. Benjamin Gott and Sons).
19	Drain dyewater &c. from Messrs. Green's mill.
20	Spring near Leeds and Liverpool Canal.
21	Drain from Messrs. Witham's foundry.
22	Natural stream dividing the townships of Leeds and Headingley.
23	Drain from dyeworks.
24	Spring at Spring Gardens.
25	Small runner of clear water.
26	Small runner of clear water.
27	Drain from dyeworks.
28	Drain from dyeworks (Messrs. Calvert's).
29	Drain from dyeworks (Messrs. Calvert's).
30	Drain from mill.
31	Drain from mill (Airdale Mills).
32	Drain from mill (Airdale Mills).
33	Drain from mill.
34	Runner of clear water.
35	Runner of clear water.
36	Dyewater from Messrs. Benjamin Gott and Sons (Wellington Mills).
37	Water from engines (Messrs. Benjamin Gott and Sons) (Wellington Mills).
38	Clear water from Messrs. Benjamin Gott and Sons (Wellington Mills).
39	Drain from Britannia Mill (Obadiah Williams and Son).

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No. on the Plan referred to in this Act showing the Point at which the Stream enters the River.	
40	Drain from saw mill (Townend's).
41	Drain from mill (late George Banks Esq.).
42	Drain from mill (Messrs. Hirst Bramley and Co.).
43	Mouth of Holbeck.
44	Drain from Messrs. Boyle and Gill's Mill.
45	Tail goit of King's and other mills.
46	Goit (Messrs. Carr's dyehouse).
47	Waste weir of waterworks engine.
48	Feeder and return drain to Aire and Calder Company's hoisting engine.
49	Old waterworks tail goit.
50	Drain from Medley's mill.
51	Drain from engines of mills (Leeds Paper Mills).
52	Aire and Calder Deck.
53	Large pipe to Sayner's dyehouse.
54	Ancient entrance of Timble Beck.
55	Mill goit.
56	Drain from dyeworks above Messrs. Hives and Atkinson's Mill.
57	Drain from Messrs. Hives and Atkinson's Mill.
58	Goit.
59	Drain from Lowfolds Mill.
60	Drain from Lowfolds Mill.
61	Natural runner of canker water.
62	Drain to supply water to Messrs. Wilkinson's and other mills in the Larch Field Estate.
63	Drain to return water from the mills &c. supplied from No. 62.
64	Mill goit (Hunslet Mills).
65	Drain dyewater from mills at a distance.
66	Drain from Hunslet Mills.
67	Drain from mill.
68	Drain from mill.
69	Drain from mill.
70	Drain from mill (pipe from Lister's Mill).
71	Drain from Lister's Mill.
72	Drain from Lowgate Mill.
73	Mouth of Hunslet Beck.
74	Natural stream.
75	Mill goit.
76	Covered beck.

THE LEEDS NEW GAS COMPANY'S ACT 1854 SECTION 58.

Saving the
rights of the
undertakers of
navigation of
Rivers Aire
and Calder.

LVIII. That nothing in this Act contained shall extend to abridge alter prejudice or take away any of the rights privileges powers or authorities of or belonging to or vested in the undertakers of the navigation of the Rivers Aire and Calder in the county of York and that it shall not be lawful for the company to carry or lay any main or pipe into or through any land or ground which or the surface whereof now is occupied or used by the said undertakers as or for a wharf dock quay lock hill private towing-path or inclosed yard without the consent in writing of the said undertakers or of

their clerk for the time being first had and obtained for that purpose anything in this Act contained to the contrary thereof in anywise notwithstanding Provided always that such last-mentioned restrictions shall not extend or apply to any main or pipe laid by the company previously to the passing of the secondly-recited Act nor abridge alter prejudice or take away any of the rights privileges powers or authorities of or belonging to or vested in the company in respect of such last-mentioned main or pipe.

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THE LEEDS IMPROVEMENT AMENDMENT ACT 1856 SCHEDULE (B).

ARTICLES OF AGREEMENT made the fourteenth day of April in the year of our Lord one thousand eight hundred and fifty-six between the MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF LEEDS in the west riding of the county of York of the one part and the Reverend JAMES ARMITAGE RHODES of Roundhay in the said west riding clerk and WILLIAM NICHOLSON NICHOLSON of the same place Esquire two of Her Majesty's justices of the peace acting in and for the said west riding (in pursuance of an order for this purpose made at the quarter sessions in and for the said riding held by adjournment at Wakefield in the said riding on the first day of January one thousand eight hundred and fifty-six) of the other part.

WHEREAS by an Act passed in the forty-sixth year of the reign of His late Majesty King George the Third intituled "An Act to enable the Justices of the Peace for the West Riding of the County of York to provide convenient courthouses for holding the General Quarter Sessions of the Peace within the said Riding" after reciting amongst other things that the general quarter sessions of the peace for the said west riding had theretofore been from time to time holden at the town of Leeds and other places therein named all in the said riding it is amongst other things enacted that it should be lawful for the justices of the said riding assembled in the Easter general quarter sessions to make any order for the granting and contributing by and out of the public stock or county rates of the said riding of such sum or sums of money as the said justices should from time to time deem requisite and necessary for the purpose of rebuilding repairing altering or enlarging of any courthouse or courthouses or any building or buildings used for that purpose then the property of any corporation or corporations bodies politic or corporate in any of the said towns or places at which the said general quarter sessions of the peace had been usually held Provided that the free and uninterrupted use and enjoyment of any such courthouse or courthouses or building or buildings used for that purpose towards the rebuilding repairing altering or enlarging whereof any sum or sums of money which should be so granted or contributed as aforesaid should be for ever afterwards effectually secured to the justices of the peace for the said riding for the

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purposes thereinafter mentioned And whereas at the general quarter sessions of the peace holden at Pontefract in and for the said west riding of the county of York on the twenty-second day of April one thousand eight hundred and eleven the sum of three thousand pounds was granted out of the public stock or county rates of the said riding towards rebuilding the courthouse within the borough of Leeds aforesaid which sum was duly paid and appropriated And whereas ever since the said courthouse was built and completed the justices of the peace and inhabitants of the said west riding and others have had the free and uninterrupted use and enjoyment thereof and of the court courts rooms cells and other buildings and conveniences connected therewith for the purpose of holding the quarter and adjourned sessions of the peace for the said riding and for holding special and petty sessions and other meetings of the justices of the said riding and for the confinement of prisoners and other purposes appertaining to the business of the said riding as provided by the said in part recited Act And whereas the mayor aldermen and burgesses of the said borough of Leeds are applying in the present session of Parliament for a Bill to enable them (amongst other things) to let grant or occupy or to sell the said courthouse at Leeds aforesaid and to apply the money arising by such sale as therein mentioned And whereas the council of the said borough have applied to the justices of the peace for the said riding for their consent to and concurrence in the disposal as aforesaid of the said existing courthouse and the application of the money arising thereby which consent the justices of the peace acting in and for the said riding have agreed to give on the terms and conditions hereinafter contained Now therefore it is hereby mutually covenanted agreed and declared by and between the said parties hereto and the said mayor aldermen and burgesses in consideration of the said sum of three thousand pounds so having been granted and contributed from the public stock or county rates of the said west riding towards rebuilding the said courthouse at Leeds aforesaid and also in consideration of the premises do hereby for themselves and their successors covenant and agree with the said James Armitage Rhodes and William Nicholson Nicholson their executors and administrators that from and immediately after the completion of the said town hall courthouses and other buildings and conveniences now in course of erection in the said borough of Leeds the justices of the peace of the said west riding and the commissioners and deputy lieutenants for the same riding and all others whom it may concern shall have free and uninterrupted use and enjoyment of the said courthouses and other parts of the said town hall as are hereinafter particularly mentioned with the appurtenances for the purposes of holding the courts of quarter sessions of the peace for the said riding and all other courts and meetings to be holden for the administration of justice by the said justices or any of them and all other Her Majesty's justices of the peace and commissioners and deputy lieutenants for the said riding or any part thereof and for all such other public uses and purposes incident to the office and duties of justices of the peace as the justices of the peace for the said riding or the major part of them at their Easter general quarter sessions of the peace shall from time to time direct

[5 EDW. 7.] *Leeds Corporation (Consolidation) Act, 1905.* [Ch. i.]

order or appoint with free liberty for the said justices and commissioners and deputy lieutenants and all others whom it may concern to act officiate in and resort to and attend upon the said courts and meetings as they shall have occasion or think proper and particularly that the said justices commissioners and deputy lieutenants and all others whom it may concern shall for ever thereafter have the free and uninterrupted enjoyment of the following rooms or apartments in the said town hall court houses and other buildings (that is to say) :—

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The two courts or courthouses for holding sessions of the peace at the quarter or adjourned quarter sessions :

A room for holding special or petty sessions and meetings of magistrates commissioners or deputy lieutenants :

A private room for the justices of the peace for the said riding :

A room for the grand jury at the quarter or adjourned quarter sessions which said courts and rooms above-mentioned are shown upon the plan hereto annexed

Also in some convenient part of the said town hall the following rooms (that is to say) :—

Two retiring rooms for petty juries at the quarter or adjourned quarter sessions :

A room for counsel at the quarter or adjourned quarter sessions :

A room for the clerk of indictments of the west riding at the quarter or adjourned quarter sessions :

A room for the treasurer of the same riding at the quarter or adjourned quarter sessions :

A room for witnesses and others attending the quarter or special or petty sessions or other meetings of magistrates :

A room for the use of the governor of the house of correction and officers of the west riding during the sessions for locking up food irons and other things :

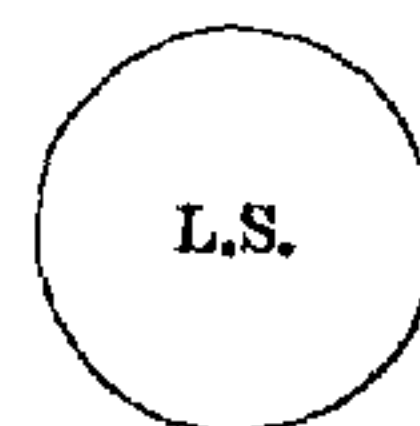
Cells and accommodation for the safe custody of prisoners during quarter or adjourned sessions or committed or remanded by justices :

With use of waterclosets and other necessary conveniences :

And further that all the said courthouses buildings and other rooms conveniences and appurtenances shall be at all times kept in good order and repair cleansed and furnished by the said mayor aldermen and burgesses And it is mutually covenanted declared and agreed by and between the said parties hereto that the terms of these articles of agreement shall be fully and effectually carried out by a clause or clauses to be inserted in the said Bill which the said mayor aldermen and burgesses are soliciting in the present session of Parliament In witness whereof the said mayor aldermen and

A.D. 1905. *Fifteenth Schedule.* burgesses in council assembled have caused the corporate common seal of the said borough to be hereunto set and the said James Armitage Rhodes and William Nicholson Nicholson have hereunto set their hands and seals.

The corporate common seal of the borough of Leeds was
affixed hereto at a quarterly meeting of the council
of the said borough held at the courthouse in Leeds
on the fourteenth day of May one thousand eight
hundred and fifty-six in the presence of



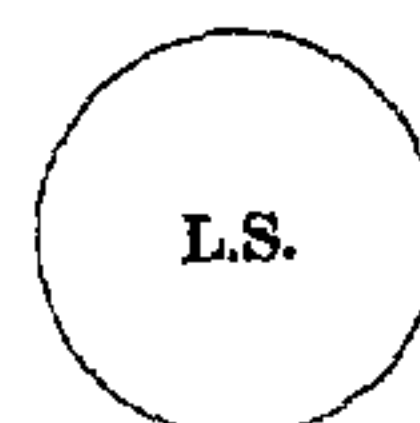
JOHN ARTHUR IKIN

Town Clerk

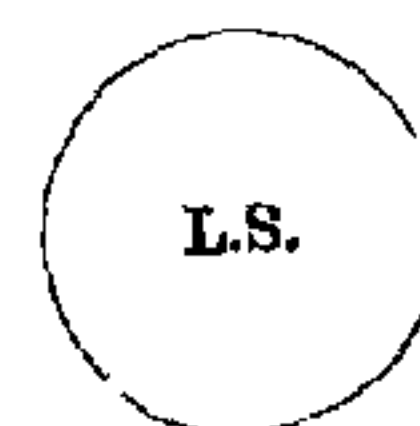
Leeds.

Signed sealed and delivered by the
within named James Armitage
Rhodes and William Nicholson
Nicholson in the presence of

J. A. RHODES



W. N. NICHOLSON



JOHN ARTHUR IKIN

W. TICKEN SMITH

(Clerk to Mr. Marsden West Riding Solr.
Wakefield).

THE LEEDS IMPROVEMENT OF BECKS ACT 1866 SECTIONS 45 AND 46.

For protect-
ing the Aire
and Calder
Navigation.

45. In order to prevent the undertakers of the navigation of the Rivers Aire and Calder and the owners lessees and occupiers of certain mills situate on the River Aire (that is to say) the Nether Mills the Hunslet Mills the Knostrop Mills and the Thwaite Mills from being injuriously affected by the works by this Act authorised to be made be it enacted that the clauses of the Leeds Improvement Amendment Act 1848 which in the Queen's Printers' copy of the said Act are numbered respectively XVI. to XXI. both inclusive XXIV. and XXIX. to XXXII. both inclusive shall extend to the works by this Act authorised to be made and to every Act to be done by the Corporation by virtue of this Act as fully and effectually in all respects as to the sewerage and works authorised by the said Leeds Improvement Amendment Act 1848 or any Act incorporated therewith.

Not to inter-
fere with navi-
gation of River
Aire.

46. No works by this Act authorised shall in any way obstruct or injure the free navigation of the River Aire.

THE LEEDS IMPROVEMENT ACT 1869 SECTIONS 7 AND 8 AND
SUBSECTIONS 1 AND 2 OF SECTION 11.

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7. The following provisions shall be for the protection of the undertakers of Aire and Calder Navigation in relation to the Beck improvement:—

Provisions for
protection of
Aire and
Calder Naviga-
tion in relation
to the Beck
improvement.

1. In making the Sheepscar Beck improvement the Corporation shall allow the water of the said beck to flow as freely as it at present does under and on the west side of East Street for the supply of the River Aire above Nether Mill Dam either in its present open channel or in a culvert not less than fifteen feet wide and five feet high such culvert to be at all times after construction maintained by the Corporation in good repair and the said undertakers their agents and workmen to have access at all times thereto for the purpose of inspecting and cleansing the same and the Corporation shall construct and maintain across the proposed diversion of the beck a weir at least as high as the present weir on the west side of East Street shown on the deposited plans such weir to be in the direction from north to south across the property numbered 261 on the said plan.

2. In making the several improvements of becks hereby authorised the Corporation shall construct and maintain proper sufficient and watertight channels and culverts for conveying the water of the several becks so that the whole of the waters thereof shall continue to fall into the River Aire at the same places and levels as at present and the sections of the Act of 1848 numbered respectively 16 17 18 19 20 and 21 shall apply to the works hereby authorised as fully as to the sewerage and works authorised by the said Act of 1848.

8. Nothing in this Act contained shall take away lessen prejudice alter or affect any of the rights privileges property powers or authorities of the undertakers of the Aire and Calder Navigation except as by this Act expressly authorised.

Saving rights
of undertakers
of Aire and
Calder Naviga-
tion.

11. The following provisions shall apply to the rebuilding of Leeds Bridge:—

As to con-
struction of
Leeds Bridge.

1. The bridge shall be substantially constructed of stone brick or iron or of those materials or some of them combined and shall have one arch the span of which shall be not less than one hundred feet the height of the said arch at the soffit thereof being not less than thirteen feet above the top of the deals on the dam at Nether Mills in Leeds which shall be deemed to be the height of the surface water and the height from the surface water to the springing of the arch shall be three feet and six inches The abutment shall be perpendicular without any projection under water And the Corporation shall remove the existing piers in the waterway to a depth of not less than eight feet six inches

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below the surface water and shall after the completion of the bridge remove and take from the bed of the river all obstructions caused by the execution of the works ;

The face of the south abutment of the bridge shall be distant from the face of the present river wall nineteen feet six inches on the west side thereof and twenty-one feet nine inches on the east side thereof and the Corporation shall construct through the same abutment a culvert of not less diameter than ten feet the bottom whereof shall not be less than five feet below the level of the top of the aforesaid deals ;

At the back of the intended abutment on the north side of the new bridge there shall be a culvert parallel with such abutment not less than seven feet in diameter and placed as near the face thereof as shall be safe and reasonably convenient :

2. The Corporation shall at all times during the removal of the present bridge and the works connected therewith and during the construction and repair of the substituted bridge keep open and uninterrupted a navigable waterway not less than twenty-five feet in width and not less in height than eleven feet from the surface water to the centreing and not less in depth than eight feet throughout below the surface water and such waterway shall be at all times provided with proper dolphins up stream and down stream and shall be properly lighted every night from sunset to sunrise and the Corporation shall at all times after the completion of the new bridge keep open and uninterrupted a headway of not less height and width than is provided by the first subsection of this section.

LEEDS CORPORATION GAS ACT 1870 SECTION 45.

Saving rights
of Aire and
Calder Naviga-
tion.

45. Nothing in this Act contained shall take away lessen prejudice alter or affect any of the estates rights privileges property powers or authorities of the undertakers of the navigation of the Rivers Aire and Calder in the county of York.

LEEDS CORPORATION GAS AND IMPROVEMENTS &C. ACT 1870 SECTIONS 7
50 AND 51.

Certain land
not to be pur-
chased without
consent of Aire
and Calder
Navigation.

7. Notwithstanding anything in this Act contained it shall not be lawful for the Corporation without the consent of the undertakers of the navigation of the Rivers Aire and Calder in the county of York under the hand of their clerk to purchase enter upon take hold or use any land lying within eighty feet measured westward from the eastern boundary shown on the deposited plan as the boundary of the lands proposed to be taken for the purposes of this Act and also within five hundred and twenty feet measured northward from the southern boundary of the said lands shown as aforesaid which portion of the said lands not to be purchased without consent as

[5 Edw. 7.] *Leeds Corporation (Consolidation) Act, 1905.* [Ch. i.]

aforesaid is coloured pink upon a copy of the deposited plan signed by the town clerk of the borough and deposited with the trustees of the Aire and Calder Navigation.

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50. In order to prevent the undertakers of the navigation of the Rivers Aire and Calder from being injuriously affected by the works by this Act authorised to be made be it enacted that the clauses of the Leeds Improvement Amendment Act 1848 which in the Queen's Printers' copy of the said Act are numbered respectively 16 to 21 both inclusive 24 and 29 to 32 both inclusive shall extend to the works by this Act authorised to be made and to every act to be done by the Corporation by virtue of this Act as fully and effectually in all respects as to the sewerage and works authorised by the said Leeds Improvement Amendment Act 1848 or any Act incorporated therewith.

No works affecting the Aire and Calder Navigation to be constructed without approval of Navigation.

51. Save as in this Act expressly provided nothing in this Act contained shall take away lessen prejudice alter or affect any of the estates rights privileges property powers or authorities of the undertakers of the navigation of the Rivers Aire and Calder in the county of York.

Saving rights of the Aire and Calder Navigation.

LEEDS IMPROVEMENT ACT 1872 SECTIONS 8 9 77 AND 78.

8. Provided always that notwithstanding anything in this Act contained the Corporation shall not alter the level of the drain stream or beck known as the Sheepscar Beck otherwise the Meanwood Beck otherwise the Carr Beck otherwise the Addle Beck otherwise the Mabgate Beck otherwise the Lady Beck otherwise the Timble Beck below or to the south of Timble Bridge carrying Marsh Lane over the said stream or of any stream or channel below the said bridge into which any of the waters of the said beck flow nor remove or alter any weir therein or thereon nor alter the level of the said drain stream or beck called Benyon Beck at the point where the said beck falls into the River Aire without the consent in writing of the undertakers of the navigation of the Rivers of Aire and Calder under the hands of three members of the committee of management of the said undertakers being first obtained.

Certain becks not to be altered without consent of Aire and Calder Navigation.

9. In executing the works by this Act authorised for culverting or covering over any drain stream or beck the Corporation shall construct and for ever thereafter maintain a suitable manhole at or as near as conveniently may be to the place where each highway crosses the course of such drain stream or beck and the undertakers of the navigation of the Rivers of Aire and Calder and all persons appointed by them or acting on their behalf shall at all times have free access to the said drains streams or becks and manholes Provided always that the Corporation shall not disturb or displace or in any manner interfere with any coffins or graves or any body or bodies lying or made or now interred in the burial ground of the Society of Friends situate in or near Great Wilson Street aforesaid and that they shall restore and make good to the satisfaction of the surveyor of the said society any ground or soil in the said burial ground which they shall in the execution of

Where becks covered manholes to be provided.

[Ch. i.] *Leeds Corporation (Consolidation) Act, 1905.* [5 EDW. 7.]

A.D. 1905. any of the works aforesaid open or disturb and also the retaining walls of so much of the beck as runs through the said burial ground and also the boundary walls of the said burial ground which they shall disturb or interfere with.

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Schedule.*

For protecting
the Aire and
Calder Naviga-
tion.

77. In order to prevent the undertakers of the navigation of the Rivers of Aire and Calder and the owners lessees and occupiers of certain mills situate on the River Aire (that is to say) the Nether Mills the Hunslet Mills the Knostrop Mills and the Thwaite Mills from being injuriously affected by the works by this Act authorised be it enacted that the clauses of the Leeds Improvement Act 1848 which in the Queen's Printers' copy of the said Act are numbered respectively sixteen to twenty-one both inclusive twenty-four and twenty-nine to thirty-two both inclusive shall extend to the works by this Act authorised and to every act to be done by the Corporation by virtue of this Act as fully and effectually in all respects as to the sewerage and works authorised by the said Leeds Improvement Act 1848 or any Act incorporated therewith but not so as to prevent the execution of any work by this Act expressly authorised.

Saving rights
of the Aire and
Calder Naviga-
tion.

78. Nothing in this Act contained shall take away lessen prejudice alter or affect any of the rights privileges property powers or authorities of the undertakers of the navigation of the Rivers of Aire and Calder except by this Act expressly authorised.

LEEDS IMPROVEMENT ACT 1877 SECTIONS 29 AND 33.

Power to alter
and divert
sewers &c.

29. The Corporation from time to time may alter and divert either temporarily or permanently all sewers mains and pipes within the borough which they find it necessary or convenient for any of the purposes of this Act so to interfere with making to all persons who sustain any damage thereby compensation in that behalf the compensation to be ascertained apportioned and recovered under the Lands Clauses Consolidation Act 1845 as in cases of disputed compensation for lands Provided always that in altering or diverting any such sewers mains and pipes the Corporation shall construct and maintain proper sufficient and watertight channels and culverts for conveying the water of such sewers mains and pipes so that the whole of the waters of such of the said sewers mains and pipes as now discharge into the River Aire or the navigation of the Rivers Aire and Calder shall continue to fall into the same at the same places and levels as at present and the sections of the Act of 1848 numbered respectively 16 17 18 19 20 and 21 shall apply to the works hereby authorised as fully as to the sewerage and works authorised by the Act of 1848.

Provisions for
Leeds and
Liverpool
Canal Com-
pany.

33. For the protection of the company of proprietors of the Canal Navigation from Leeds to Liverpool (hereafter in this Act called "the Leeds and Liverpool Canal Company") the following provisions shall have effect (to wit):—

(a) The Corporation shall make and maintain the new road from Leeds to Armley by this Act authorised where the same will pass through the land of the Leeds and Liverpool Canal Company

lying between their canal and the River Aire in the lines and situation marked in red on duplicate copies of the deposited plan both signed by Alfred William Morant the surveyor of the Corporation and Charles White the engineer of the Leeds and Liverpool Canal Company one of such copies to be kept by the Corporation and the other by the Leeds and Liverpool Canal Company :

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Schedule.*

- (b) Part of the said new road where it passes through the said land of the Leeds and Liverpool Canal Company shall instead of being made upon a solid embankment be constructed upon arches or girders in the situations and of the heights and spans shown on the same copies of the deposited plans :
- (c) The footpath shown on the deposited plans shall instead of passing across the said land of the Leeds and Liverpool Canal Company in the manner shown on those plans be carried by means of steps up to the level of the said intended new road at the northern end of the intended bridge over the Leeds and Liverpool Canal and in the situation shown on the same copies of the said plan :
- (d) The intended bridge shall be carried across the canal and towing-path works and lands of the Leeds and Liverpool Canal Company in the line and at the point of such crossing as shown on the deposited plans and (unless with the consent of the Leeds and Liverpool Canal Company under their common seal) not elsewhere :
- (e) In carrying the said bridge across the canal towing-path works and lands of the Leeds and Liverpool Canal Company the Corporation shall not otherwise than by agreement with the Leeds and Liverpool Canal Company deviate from the lines of such bridge as shown on the deposited plans or from the levels or mode of construction shown on the deposited sections :
- (f) The Corporation may purchase and take so much land of the Leeds and Liverpool Canal Company as shall be necessary for the construction of the said new road but with regard to such parts of the said land as will lie between the said arches or girders the Corporation shall only purchase and take an easement :
- (g) Nothing herein contained shall prevent the Corporation from entering upon the lands and works of the Leeds and Liverpool Canal Company when and for such periods as may be necessary for the fulfilment of the obligations of the Corporation under this section :
- (h) The bridge over the canal and towing-path of the Leeds and Liverpool Canal Company shall be a good and substantial bridge of brick stone wood or iron to be constructed by the Corporation at their own expense :
- (i) The bridge shall be constructed with perpendicular foundation walls and its opening or span shall span over the entire width of the

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Schedule.*

canal and towing-path and the clear height of the underside of the arch or (as the case may be) beams or girders of the bridge above the top water level of the canal shall throughout the whole breadth of the span be not less than eleven feet :

- (k) The space between the piers of the bridge (except so much thereof as the towing-path will occupy) shall at all times after the completion of the bridge (except during necessary repairs or reconstruction) be left and preserved an open and uninterrupted navigable waterway :
- (l) The Corporation shall at their own expense maintain the bridge and the works thereof of the height and width aforesaid and in perfect repair at all times unless they abandon the new road and bridge or the portion thereof which crosses the canal and in either of those cases they shall (if required so to do by the Leeds and Liverpool Canal Company but not otherwise) remove the said bridge and works at their own expense :
- (m) If and whenever the height of the bridge or works shall by subsidence of the ground be lowered below the height hereinbefore prescribed the Corporation shall at their own expense restore the same to that height as soon as reasonably may be :
- (n) The Corporation shall make good all damage that may be occasioned to the works or property of the Leeds and Liverpool Canal Company by the construction renewal or want of repair of any of the Corporation's works or by any such subsidence as aforesaid But—
 - (a) In every case of pressing necessity ; and
 - (b) In every other case if for seven days after notice in writing thereof given to the Corporation by the Leeds and Liverpool Canal Company the Corporation neglect to proceed with due diligence to make good such damage ;
 the Leeds and Liverpool Canal Company may if they think fit make good the damage and the amount expended by them in so doing shall be repaid to them by the Corporation :
- (o) If and whenever by any act or omission of the Corporation any part of the canal or towing-path shall be obstructed or rendered dangerous to boats barges or other vessels navigating or using the canal the Corporation shall pay to the Leeds and Liverpool Canal Company as or by way of ascertained damages the sum of fifty pounds for every day during which the obstruction or danger shall continue and so in proportion for any less time than a day :
- p) Provided that nothing in this Act contained shall prevent the Leeds and Liverpool Canal Company from recovering from the Corporation any special damage that may be sustained by the Leeds and Liverpool Canal Company in consequence of the works to be

executed by the Corporation or by the Leeds and Liverpool Canal Company for the Corporation under the provisions hereinbefore contained or by reason of any water oozing or escaping from the canal or on account of any other act or omission of the Corporation :

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- (g) If and whenever any damages or other sums payable by the Corporation to the Leeds and Liverpool Canal Company are not paid on demand made on the town clerk of Leeds the same may together with costs of suit be recovered against the Corporation in any court of competent jurisdiction :
- (r) All questions and differences which may at any time arise between the Corporation and the Leeds and Liverpool Canal Company as to the construction or effect of subsections *a b c d e f g h* or *i* of this section or the performance observance non-performance or non-observance of any of the provisions thereof or any matters connected therewith or consequent thereon shall be determined by an arbitrator to be appointed by the Corporation and the Leeds and Liverpool Canal Company or (if for fourteen days after the question or difference arises the said parties do not agree upon an arbitrator) by the Board of Trade upon the application in writing of both or either of the parties and the decision of every such arbitrator (by whomsoever appointed) shall be binding and conclusive upon both the parties in difference and the costs of the arbitration shall be in his discretion :
- (s) Except as is by this Act otherwise expressly provided nothing in this Act shall take away lessen prejudice alter or affect any of the rights privileges property powers or authorities of the Leeds and Liverpool Canal Company.

THE LEEDS WATERWORKS ACT 1867 SECTIONS 12 13 27 28 AND 54.

12. Francis Hawksworth Fawkes or other the owner for the time being of the mansion of Farnley Hall shall have the exclusive right of boating fowling shooting and fishing upon and over the Lindley Wood Reservoir and the borders thereof but so nevertheless as not to foul the water of the said reservoir nor in any way to injure the works of the Corporation and for such purposes or any of them shall at all times have free access thereto for himself his family visitors and gamekeepers and if required so to do the Corporation shall erect for him and at his cost and charge a suitable boathouse on the border of the said reservoir or permit the said Francis Hawksworth Fawkes or such other owner as aforesaid to erect such boathouse.

The owner of Farnley Hall to have the right of fishing &c. over Lindley Wood Reservoir.

13. The Corporation shall only be entitled to lay down and maintain across the property of the North Eastern Railway Company and in the ground beneath the fourth archway from the south-west end of the viaduct carrying the railway of that Company over the River Wharfe in the township of Arthington iron pipes or conduits for the purpose of conveying

Restrictions to works affecting North Eastern Railway.

[Ch. i.] *Leeds Corporation (Consolidation) Act, 1905.* [5 EDW. 7.]

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water through the same and shall not make any excavation in or execute any work across or under the railway or land of the said railway company which shall in any way affect the stability of that railway or of the said viaduct and all works executed under the authority of this Act on the property of the said railway company shall be executed under the superintendence and to the reasonable satisfaction of the engineer of that company.

As to right of
fishing &c. in
Fewston
Reservoir.

27. Lady Frankland Russell or other the owner for the time being of the lands in Fewston now belonging to her shall have the exclusive rights of boating fowling shooting and fishing upon and over so much of the Fewston Reservoir as shall be made upon her said lands and over which she may now have such rights of sporting but so nevertheless as not to foul the water of the said reservoir nor in any way to injure the works of the Corporation or to interfere with the use of the reservoir or of the waters thereof for the purposes of this Act and for the exercise of the rights aforesaid or any of them shall at all times have free access from such lands to such part of the said reservoir for herself or himself her or his family visitors and gamekeepers and if required so to do the Corporation shall erect for such owner and at her or his cost and charge a suitable boathouse on the border of the said reservoir adjoining to such lands or permit the said Lady Frankland Russell or such other owner as aforesaid to erect such boathouse and it shall not be lawful for any person to fish with nets upon any part of the said reservoir Provided always that nothing herein contained shall alter diminish prejudice or affect any rights of Her Majesty in right of Her Duchy of Lancaster as Lady of the Forest and Liberty of Knaresborough.

As to minerals
in Lady
Frankland
Russell's
estate.

28. Nothing in this Act shall prevent any of the owners lessees and occupiers from time to time of any of the lands now belonging to Lady Frankland Russell and not taken under this Act by the Corporation from or prejudicially affect them in working or unwatering any mine or getting washing or dealing with any mineral in any of those lands as they lawfully might do if this Act were not passed and if and whenever they are by or by reason of anything done or authorised under this Act by the Corporation so prevented or prejudicially affected the Corporation shall make to every person so prevented or prejudicially affected full compensation in that behalf Provided always that this enactment shall not operate to alter or diminish the effect of the several provisions of the Waterworks Clauses Act 1847 with respect to mines.

Saving rights
of the Crown
and the Duchy
of Lancaster.

54. Nothing in this Act contained shall extend to prejudice diminish alter or take away any of the rights privileges powers or authorities vested in or enjoyed by the Queen's most Excellent Majesty Her heirs and successors as well in right of Her Crown as in right of Her Duchy of Lancaster.

LEEDS IMPROVEMENT ACT 1877 SECTIONS 18 AND 19.

Gas and water
pipes &c. crossing
railways to be
laid down under
inspection of
railway com-
pany's engineer.

18. Any gas or water pipes culverts or other works which the Corporation may lay down or execute under or over the railway of any railway company shall be so laid down and executed and subsequently maintained and repaired under the direction and superintendence and to the reasonable

[5 EDW. 7.] *Leeds Corporation (Consolidation) Act, 1905.* [Ch. i.]

satisfaction of the engineer for the time being of such railway company and in accordance with plans and sections previously submitted to and approved of by him.

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19. For the protection of the Right Honourable Henry Thynne Earl of Harewood or other the owner for the time being of Harewood Park (hereinafter in this section referred to as "the owner") the following provisions shall have effect (that is to say):—

Provisions for
the protection
of the Earl of
Harewood.

- (1) Notwithstanding anything in this Act contained and except as in this section otherwise expressly provided it shall not be lawful for the Corporation to enter upon take use or otherwise interfere with either temporarily or permanently any lands belonging to the owner except such as shall be actually required for the enlargement by this Act authorised of the existing Eccup Reservoir of the Corporation:
- (2) With respect to any land belonging to the owner and which the Corporation may require to use enter upon or interfere with for the purposes of the Conduit No. 1 and the Conduit No. 2 and the road of access to the Eccup Reservoir by this Act authorised the Corporation shall not purchase the same but the Corporation may purchase and the owner may and shall sell and grant accordingly an easement or right of using the same for the purposes of the said Conduit No. 1 and Conduit No. 2 and road of access:
- (3) The Conduit No. 2 by this Act authorised shall be constructed and maintained by the Corporation as a covered conduit throughout the entire length thereof:
- (4) The powers of the Corporation for the compulsory purchase of any lands belonging to the owner required for the enlargement of the existing Eccup Reservoir shall not be exercised after the thirty-first of December one thousand eight hundred and seventy-eight:
- (5) The enlargement of the Eccup Reservoir and the Conduit No. 2 by this Act authorised shall be completed within six years from the passing of this Act and on the expiration of that period if such works are not then completed the powers of the Corporation for the execution of those works or in relation thereto shall absolutely cease and all lands purchased by the Corporation from the owner for the purposes of the enlargement shall thereupon vest in and become the property of the owner:
- (6) Before the Corporation shall proceed to commence the enlargement of the Eccup Reservoir they shall make and complete the Conduit No. 1 by this Act authorised:
- (7) In order to prevent the fouling of the ornamental waters of Harewood Park the Corporation shall previously to commencing the enlargement of the Eccup Reservoir make and for ever after maintain a settling pond or rough filter into or through which

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they shall cause to flow all the waters from the site of the said enlargement or which shall be pumped into the Eccup Beck or which shall pass from any lands and buildings above the embankment of the Eccup Reservoir when enlarged :

- (8) The embankment of the Eccup Reservoir when enlarged shall be constructed with a benching on the outer side of the slope thereof of not less than ten yards wide and at a level not less than fifty-five feet from the top level of the embankment :
- (9) Notwithstanding anything in this Act contained it shall not be lawful for the Corporation except with the consent of the owner to erect any building or erection of any kind on any land purchased or taken by them of the owner except such as shall be necessary for the maintenance conduct protection and management of the said reservoir and works connected therewith :
- (10) The road of access by this Act authorised to the Eccup Reservoir shall only be used by the Corporation for the purpose of constructing maintaining examining and repairing the Eccup Reservoir and the works connected therewith and subject as aforesaid the owner shall have the exclusive right of user of the said road of access and shall at all times have free access thereto for himself his family visitors tenants and servants :
- (11) When the Corporation have purchased the lands of the owner for the purposes of the enlargement of the Eccup Reservoir it shall not be lawful for the Corporation to take or divert any waters from the Stubhouse Beck and the Corporation shall within one month after such purchase cut off the said beck from their works in order that the same may as far as practicable be restored to its original course The water so restored from Stubhouse Beck being compensation for the water which would flow into Eccup Beck from the watershed of the land required for the purpose of extending the said reservoir :
- (12) The Corporation shall from time to time make full compensation to the owner and to all other persons for all damages and injury losses and expenses whatsoever as well immediate as consequential which they respectively from time to time may incur or suffer by reason of the bursting or giving way or leaking of the Eccup Reservoir as by this Act authorised :
- (13) Except as is by this Act otherwise expressly provided with respect to George Lane Fox the owner shall have the exclusive right of boating fowling shooting and fishing upon and over the Eccup Reservoir as by this Act authorised to be enlarged and the borders thereof but so nevertheless as not to foul the water of the reservoir nor in any way to injure the works of the Corporation and for such purposes or any of them shall at all times have free access thereto for himself his family visitors and servants

and if so required to do the Corporation shall erect for him at his own cost a suitable boathouse on the borders of the reservoir or permit him to erect such boathouse :

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Schedule.*

- (14) The purchase money or compensation to be paid for any lands or easements to be purchased of the owner by the Corporation including compensation for all injury to the estate or the enjoyment thereof as a residence or otherwise shall be fixed by such single arbitrator as hereinafter mentioned who shall be deemed to be a single arbitrator duly appointed under the Lands Clauses Consolidation Acts and shall have all powers thereby given to arbitrators. Such arbitrator shall be at liberty to inform himself in such manner as he shall think proper and no objection shall be taken to any informality in his proceedings. The remuneration of the arbitrator shall be fixed by himself and shall together with all the costs of the arbitration to be ascertained in the usual manner be paid by the Corporation :
- (15) The arbitrator for the purposes of this section shall be Sir Henry Arthur Hunt of Parliament Street Westminster C.B. or in case of his death or refusal or inability to act John Clutton of Whitehall Place London or in case of his death or refusal or inability to act such person as the owner and the Corporation shall agree on or in case they cannot agree such person as Her Majesty's Attorney-General for the time being shall nominate for that purpose :
- (16) The Corporation may discharge into the Eccup Beck below the before-mentioned embankment of the Eccup Reservoir when enlarged all waters from any drains from lands and buildings above the said embankment.

THE LEEDS CORPORATION ACT 1879 SECTIONS 14 AND 15.

14. After the purchase of Hunslet Moor by the Corporation it shall be lawful for the Corporation for the avoidance of accidents and for the more safe and convenient use of the moor to make and erect a good and substantial fence with the necessary posts ditches or drains along and on either side of the several waggon-ways crossing Hunslet Moor and belonging or reputed to belong to the Middleton Estate and Colliery Company (Limited) together with any necessary gates or stiles at suitable points for giving access through or across the same. Provided always that any such gates shall be so constructed as to open outwards.

Fencing of
waggon-ways
for public
security.

15. In the construction of the roads and works by this Act authorised the Corporation shall as far as may be reasonably practicable avoid all interference with the waggon-ways of the Middleton Estate and Colliery Company (Limited) and with the traffic thereon.

For protection
of Middleton
Estate and
Colliery Com-
pany's lines.

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THE LEEDS IMPROVEMENT ACT 1893 SECTIONS 7 AND 110.

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Dwelling-
houses in
blocks.

7.—(1) It shall be lawful with the previous consent of the Corporation but not otherwise to erect back to back dwelling-houses in blocks and every block which shall contain not more than eight dwelling-houses when built back to back or four dwelling-houses not being through houses when built in a single row shall have an open space at the end thereof such open space to be on the land of the owner or owners of such block of dwelling-houses and to be and remain free from any erection thereon above the level of the ground except closet accommodation and the distance across such open space between every such block of dwelling-houses and the opposite property at the end or side shall be not less than fifteen feet at all points or if any block shall contain more than eight dwelling-houses built back to back or more than four dwelling-houses not being through houses when built in a single row each of such dwelling-houses shall have at the front thereof an open space exclusively belonging thereto to the extent of two hundred square feet at the least free from any erection thereon above the level of the ground except a bay window or porch which shall not project more than four feet from the front of the house and the distance across such open space at the front of any such house shall be fifteen feet at all points from the front wall thereof.

(2) The paragraph marked (B) in section twenty-three of the Leeds Improvement Act 1872 is hereby repealed from the words "It shall not be lawful" to "front wall thereof" and the foregoing enactment shall be substituted for that paragraph.

(3) The spaces hereinbefore mentioned are exclusive of the site of any street or intended street on which the buildings may abut and such spaces shall never afterwards be built upon in such manner as to reduce the area of open space below that hereinbefore respectively required.

(4) When in the case of the rebuilding of such dwelling-houses the dimensions required by the preceding enactments cannot be obtained without undue sacrifice of property the Corporation may in special cases at their discretion modify those dimensions but not so as to prevent thorough ventilation.

Undertakings
&c. to bind
successive
owners.

110. Every undertaking or agreement in writing given by or to the Corporation after the passing of this Act to or by or on behalf of any owner of property on the passing of plans or for the removal of obstructions or otherwise in connection with the property of such owner shall be binding on the owner of the property for the time being and on his successors in title and on the Corporation and may be enforced by either party in any court of summary jurisdiction by a penalty not exceeding five pounds for each breach of such undertaking or agreement and a daily penalty not exceeding twenty shillings for each such breach and such owner shall be entitled to require from the Corporation a copy of such undertaking or agreement and every intending owner or lessee of property shall be entitled to information from the Corporation as to the existence of any such undertaking or agreement affecting the property and the terms of the undertaking or agreement if any such exist.

THE LEEDS CORPORATION ACT 1899 SECTION 17.

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Schedule.*

For protection
of Aire and
Calder Naviga-
tion.

17. The following provisions for the protection of the undertakers of the navigation of the Rivers of Aire and Calder (hereinafter called "the undertakers") shall unless otherwise agreed between the undertakers and the Corporation have effect (that is to say):—

- (1) Notwithstanding anything in this Act or shown on the deposited plans and sections the Corporation shall not for the purpose of carrying out the widening of East Street being Street Work No. 3 by this Act authorised purchase or take any land or property belonging to the undertakers or their trustees other than the land and property shown on the plan marked A and signed by Thomas Hewson on behalf of the Corporation and William Hamond Bartholomew on behalf of the undertakers and thereon coloured red so as to leave the remainder of the property of the undertakers lying to the south-westward of the land and property taken by the Corporation with a frontage upon the street as widened :
- (2) In carrying out the street widening the Corporation shall make the same so far as the property of the undertakers or their trustees abuts thereon according to the level and gradients shown on the deposited sections and shall not interfere with or obstruct the access to the land or property of the undertakers lying to the south-westward of the lands coloured red on the said plan by means of the road or access numbered 108A on the deposited plans except temporarily during the execution of the works and so as not at any time entirely to stop such access :
- (3) Where the Corporation take or acquire part of any building or property belonging to the undertakers they shall without any unnecessary delay and to the reasonable satisfaction of the trustees of the undertakers in the case of any building make good any damage caused to the remaining portion of the said building and execute any works necessary to render such remaining portion fit for use and occupation and in the case of any other property rebuild the fence walls and make good any interference with drains and culverts caused by the works of the Corporation.

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